



Local Government Finance Act 1988

1988 CHAPTER 41

An Act to create community charges in favour of certain authorities, to create new rating systems, to provide for precepting by certain authorities and levying by certain bodies, to make provision about the payment of grants to certain authorities, to require certain authorities to maintain certain funds, to make provision about the capital expenditure and the administration of the financial affairs of certain authorities, to abolish existing rates, precepts and similar rights, to abolish rate support grants and supplementary grants for transport purposes, to make amendments as to rates and certain grants, to make certain amendments to the law of Scotland as regards community charges, rating and valuation, to provide for the establishment of valuation and community charge tribunals, and for connected purposes. [29th July 1988]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

COMMUNITY CHARGES

Charges

1. In accordance with this Part, each charging authority shall have rights and duties in respect of the following community charges— The charges.

- (a) personal community charges,
- (b) standard community charges, and
- (c) collective community charges.

PART I
Persons subject to
personal
community
charge.

2.—(1) A person is subject to a charging authority's personal community charge on any day if—

- (a) he is an individual who is aged 18 or over on the day,
- (b) he has his sole or main residence in the area of the authority at any time on the day, and
- (c) he is not an exempt individual on the day.

(2) Schedule 1 below shall have effect to determine whether a person is for the purposes of this section an exempt individual on a particular day.

(3) In deciding whether a person has his sole or main residence in an area, the fact that he does not live in a building is irrelevant.

(4) If a person's sole or main residence at a particular time consists of premises, and the premises are situated in the areas of two or more authorities, he shall be treated as having his sole or main residence in the area in which the greater or greatest part of the premises is situated.

(5) A person undertaking a full-time course of education and resident in England and Wales for the purpose of undertaking the course shall be treated as having his sole or main residence, on each day of the course, in the place where he is resident for the purpose of undertaking the course.

(6) A person detained in legal custody (other than an individual for the time being exempt) is not to be treated as having his sole or main residence in the place where he is detained.

Persons subject to
standard
community
charge.

3.—(1) A person is subject to a charging authority's standard community charge on any day if he has at any time on the day a freehold interest in the whole of a building, and the following conditions are fulfilled as regards the building throughout the day—

- (a) it is situated in the authority's area,
- (b) it is not the sole or main residence of an individual (construing sole or main residence in accordance with section 2 above),
- (c) it is domestic property,
- (d) it is not designated for the purposes of collective community charges of the authority,
- (e) it is not divided into self-contained parts, and
- (f) it is not subject (as a whole) to a single relevant leasehold interest.

(2) A person is subject to a charging authority's standard community charge on any day if he has at any time on the day a relevant leasehold interest in the whole of a building, and the following conditions are fulfilled as regards the building throughout the day—

- (a) the conditions mentioned in subsection (1)(a) to (e) above, and
- (b) the condition that it is not subject (as a whole) to a single relevant leasehold interest inferior to his interest.

(3) A person is subject to a charging authority's standard community charge on any day if he has at any time on the day a freehold interest in the whole of a self-contained part of a building, and the following conditions are fulfilled as regards the part throughout the day—

- (a) the conditions mentioned in subsection (1)(a) to (d) above, and
- (b) the condition that it is not subject (as a whole) to a single relevant leasehold interest.

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(4) A person is subject to a charging authority's standard community charge on any day if he has at any time on the day a relevant leasehold interest in the whole of a self-contained part of a building, and the following conditions are fulfilled as regards the part throughout the day—

- (a) the conditions mentioned in subsection (1)(a) to (d) above, and
- (b) the condition that it is not subject (as a whole) to a single relevant leasehold interest inferior to his interest.

(5) A person is subject to a charging authority's standard community charge on any day if he is at any time on the day the owner of a caravan, and the following conditions are fulfilled as regards the caravan throughout the day—

- (a) the conditions mentioned in subsection (1)(a) and (b) above, and
- (b) the condition that it is stationed on land which is a protected site.

4.—(1) This section applies for the purposes of section 3 above.

Section 3:
interpretation.

(2) "Interest" means a legal estate.

(3) A relevant leasehold interest is an interest under a lease or underlease which was granted for a term of 6 months or more and conferred the right to exclusive possession throughout the term.

(4) A building or self-contained part of a building is domestic property if it is used wholly for the purposes of living accommodation.

(5) But a building or self-contained part of a building is not domestic property if it is wholly or mainly used in the course of a business for the provision to individuals whose sole or main residence is elsewhere of accommodation for short periods together with domestic or other services or other benefits or facilities.

(6) In construing subsections (4) and (5) above, anything not in use shall be treated as domestic property if it appears that when next in use it will be domestic property.

(7) The Secretary of State may by order amend, or substitute another definition for, any definition of domestic property for the time being effective for the purposes of section 3 above.

(8) A self-contained part of a building is a part of a building used, or suitable for use, as a separate dwelling.

(9) "Owner" in relation to a caravan—

- (a) means, if it is subject to an agreement for hire-purchase or conditional sale, the person in possession under the agreement;
- (b) means, if it is subject to a bill of sale or mortgage, the person entitled to the property in it apart from the bill or mortgage.

(10) Land is a protected site at any time if it is at that time a protected site for the purposes of Part I of the Caravan Sites Act 1968.

1968 c. 52.

(11) Where a building is situated in the areas of two or more authorities, it and each part of it shall be treated as situated in the area in which the greater or greatest part of the building is situated; and where a caravan is situated in the areas of two or more authorities, it shall be treated as situated in the area in which the greater or greatest part of it is situated.

PART I
Persons subject to
collective
community
charge.

5.—(1) A person is subject to a charging authority's collective community charge on any day if—

- (a) he has on the day a qualifying interest in a dwelling situated in the authority's area, and
- (b) on the day the dwelling is a designated dwelling.

(2) For the purposes of this Part a dwelling is a designated dwelling on a particular day if it is a building, or part of a building, which on the day concerned is designated under this section.

(3) The registration officer may designate all or part of a building for the purposes of a charging authority's collective community charges if at the time of designation—

- (a) the building is situated in the authority's area,
- (b) in his opinion the building or part is used wholly or mainly as the sole or main residence of individuals most or all of whom reside there for short periods and are not undertaking full-time courses of education,
- (c) in his opinion it would probably be difficult to maintain the register in respect of, and collect payments in respect of personal community charges from, individuals who would be subject to such charges of the authority if the designation were not made, and
- (d) the building does not fall within a description prescribed for the purposes of this paragraph by regulations made by the Secretary of State.

(4) A registration officer who has designated a building or part may revoke the designation if at the time of revocation the conditions for designation in subsection (3) above are no longer satisfied.

(5) A designation under this section shall take effect at the end of the period of 7 days beginning with the day on which it is made, and shall cease to have effect at the end of the day (if any) on which it is revoked.

(6) A person has a qualifying interest in a designated dwelling on a particular day if at any time on the day—

- (a) he has a freehold interest in the whole dwelling and it is not subject (as a whole) to a single leasehold interest, or
- (b) he has an interest in the whole dwelling under a lease or underlease and it is not subject (as a whole) to a single inferior leasehold interest.

(7) "Interest" means a legal estate.

(8) Where a building is situated in the areas of two or more authorities, it and each part of it (whether or not designated) shall be treated as situated in the area in which the greater or greatest part of the building is situated.

Registers

Community
charges register.

6.—(1) The registration officer for a charging authority shall compile, and then maintain, a community charges register for the authority in accordance with this Part.

(2) A charging authority's register must be compiled on or before 1 December 1989.

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(3) A charging authority's register shall contain an item in relation to each community charge of the authority to which a person becomes subject on or after 1 December 1989.

(4) The item shall state—

- (a) whether the charge is a personal, a standard or a collective community charge,
- (b) the person's name,
- (c) the day of his becoming subject to the charge and (if applicable) the day of his ceasing to be subject to it, and
- (d) which (if any) of the days on which he is shown in the register as subject to the charge is a day on which he is undertaking a full-time course of education.

(5) The item shall also state—

- (a) in the case of a personal community charge, the address of the residence by virtue of which the person is subject to the charge,
- (b) in the case of a standard community charge, the address of the property by virtue of which the person is subject to the charge and (if different) his residential address for the time being, and
- (c) in the case of a collective community charge, the address of the dwelling by virtue of which the person is subject to the charge and (if different) his residential address for the time being.

(6) The item shall also state, in the case of a standard community charge, the class (if any) which is for the time being specified under section 40 below and into which the property concerned falls.

(7) Where a person is subject to a personal community charge, and the place of residence giving rise to the charge has no address, under subsection (5)(a) above the item shall state that place.

(8) A registration officer's duty to compile and maintain a register in accordance with this Part includes the duty to take reasonable steps to obtain information for that purpose under the powers conferred on him.

Charges and registers: miscellaneous

7.—(1) A person shall by virtue of different residences, or different periods of residence in the same residence, be subject (if at all) to different personal community charges, whether of the same or different authorities.

Persons subject to charges: miscellaneous.

(2) If a person becomes and ceases to be exempt under section 2 above he shall be subject (if at all) to different personal community charges by virtue of different periods when he is not exempt.

(3) A person shall by virtue of different properties, or different periods of having an interest in the same property, be subject (if at all) to different standard community charges, whether of the same or different authorities.

(4) A person shall by virtue of different dwellings, or different periods of having an interest in the same dwelling, be subject (if at all) to different collective community charges, whether of the same or different authorities.

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(5) The day a person becomes subject to a community charge shall be taken, subject to the rules in section 8(2) and (4) below, to be the first (or only) day on which he is subject to it.

(6) The day a person ceases to be subject to a community charge shall be taken, subject to the rule in section 8(3) below, to be the last (or only) day on which he is subject to it.

**Registers:
miscellaneous.**

8.—(1) An entry may be made in an authority's register in anticipation of, or after, the occurrence of an event (such as a person's becoming or ceasing to be subject to a community charge of the authority).

(2) If on any day a person becomes subject to an authority's community charge but a period of more than 2 years (beginning with the day) ends without an entry being made in the register in respect of the charge, he shall be treated as becoming subject to it 2 years before the day on which an entry is made in the register in respect of it.

(3) If a person becomes subject to an authority's community charge, an entry is made in the register accordingly, he then ceases to be subject to it and a period of more than 2 years (beginning with the day of his ceasing) ends without an entry being made in the register in respect of his ceasing, he shall be treated as having ceased to be subject to the charge 2 years before the day on which an entry is made in the register in respect of his ceasing.

(4) If a person in fact becomes and ceases to be subject to an authority's community charge but a period of more than 2 years (beginning with the day of his ceasing) ends without an entry being made in the register in respect of the charge, he shall be treated as not having become subject to it; and subsection (2) above shall have effect subject to this.

(5) The registration officer may remove from an authority's register an item relating to a community charge of the authority at any time after the end of the period of 2 years beginning with the day on which the register shows the person subject to the charge as having ceased to be subject to it.

(6) For the purposes of this Part—

- (a) a day on which a person is shown in a charging authority's register as becoming subject to a community charge of the authority shall be treated as a day on which he is shown in the register as subject to the charge,
- (b) a day on which a person is shown in a charging authority's register as ceasing to be subject to a community charge of the authority shall not be treated as a day on which he is shown in the register as subject to the charge, and
- (c) as regards a day on which a person is shown in a charging authority's register as both becoming and ceasing to be subject to the same community charge of the authority, paragraph (b) above shall apply and paragraph (a) shall not.

*Collective community charge contributions***PART I**

9.—(1) A period of a day or successive days is a contribution period if it falls within a chargeable financial year and each of the following conditions is fulfilled on each day in the period—

Liability to contribute.

- (a) an individual is resident in a dwelling,
- (b) he is a qualifying individual,
- (c) the dwelling is a designated dwelling, and
- (d) another person is shown in a charging authority's register as subject to a collective community charge of the authority in respect of the dwelling.

(2) In respect of the contribution period, the individual shall be liable to pay to the person mentioned in subsection (1)(d) above an amount by way of contribution to the amount he is liable to pay to the authority in respect of the charge as it has effect for the year.

(3) The amount shall be calculated by—

- (a) finding the amount to be paid by way of contribution for each day in the contribution period, and
- (b) aggregating the amounts found under paragraph (a) above.

(4) The amount to be paid by way of contribution for a day in the contribution period shall be calculated in accordance with the formula—

$$\frac{A}{B}$$

(5) A day which falls in the financial year beginning in 1990 shall be ignored in ascertaining a contribution period if, when the day begins, no amount has been set by the authority for its personal community charges for the financial year.

(6) The liability to pay an amount under this section must be discharged by making a payment or payments in accordance with regulations under Schedule 2 below.

10.—(1) This section applies for the purposes of section 9 above.

Contributions:
interpretation of
formula.

(2) In a case where (when the day concerned begins) no amount has been set by the authority for its personal community charges for the financial year, A is the amount set by the authority for its personal community charges for the previous financial year for its area or (as the case may be) for that part of its area which contains the building constituting or containing the designated dwelling.

(3) In any other case A is the amount set by the authority for its personal community charges for the financial year for its area or (as the case may be) for that part of its area which contains the building constituting or containing the designated dwelling.

(4) B is the number of days in the financial year.

(5) In construing subsection (3) above in relation to a particular day the amount or amounts to be taken shall be the amount or amounts set or last set before the day begins.

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(6) For the purposes of subsections (2) and (3) above the Secretary of State may make regulations containing rules—

- (a) for treating a building as contained in an authority's area if part only falls within the area;
- (b) for ascertaining what part of an authority's area contains a building (whether contained in the area in fact or by virtue of the regulations).

**Contributions:
further provisions.**

11.—(1) For the purposes of section 9 above—

- (a) a day on which an individual becomes resident in a dwelling shall be treated as a day on which he is resident in it,
- (b) a day on which an individual ceases to be resident in a dwelling shall not be treated as a day on which he is resident in it, and
- (c) as regards a day on which an individual both becomes and ceases to be resident in the same dwelling, paragraph (b) above shall apply and paragraph (a) shall not.

(2) For the purposes of section 9 above an individual is a qualifying individual on a particular day if—

- (a) he is aged 18 or over on the day,
- (b) he is not an exempt individual on the day within the meaning of paragraph 1, 2, 3, 4, 5, 7, 8, 9 or 10 of Schedule 1 below, and
- (c) the day does not fall within a period in which he is undertaking a full-time course of education.

(3) An individual shall by virtue of different dwellings, or different periods of residence in the same dwelling, be liable (if at all) to make different payments under section 9 above, whether to the same or different persons.

(4) If, in an individual's period of residence in a dwelling, different collective community charges arise in respect of it because of a change of person with a qualifying interest, the individual shall be liable (if at all) to make different payments under section 9 above as regards the different charges.

(5) If an individual is, ceases to be and again becomes a qualifying individual for the purposes of section 9 above he shall be liable (if at all) to make different payments under that section by virtue of different periods when he is a qualifying individual.

(6) If a period of successive days begins in one chargeable financial year and ends in another it shall be deemed to be as many periods as there are chargeable financial years for which it subsists, and each deemed period shall be deemed to fall within a different year.

(7) Different contribution periods shall be calculated in accordance with subsections (3) to (6) above.

Liability to pay in respect of charges

**Personal
community
charge.**

12.—(1) If a person is entered in an authority's register as subject in a chargeable financial year to a personal community charge of the authority, he shall be liable to pay to the authority an amount in respect of the charge as it has effect for the year.

(2) The amount shall be calculated in accordance with the formula—

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$$\frac{A \times B}{C}$$

(3) A is the amount set by the authority for its personal community charges for the financial year for its area or (as the case may be) for that part of its area which contains the residence by virtue of which the person is shown in the register as subject to the charge.

(4) B is the number of days which fall within the financial year and on which he is shown in the register as subject to the charge.

(5) C is the number of days in the financial year.

(6) For the purposes of subsection (3) above the Secretary of State may make regulations containing rules—

- (a) for treating a residence which consists of premises as contained in an authority's area if part only falls within the area;
- (b) for ascertaining what part of an authority's area contains a residence which consists of premises (whether contained in the area in fact or by virtue of the regulations).

13.—(1) This section applies where—

Relief for students.

- (a) a person is liable under section 12 above to pay an amount to an authority in respect of a personal community charge as it has effect for a chargeable financial year, and
- (b) on any day in the period represented by B he is undertaking a full-time course of education.

(2) If he is undertaking the course on each day of that period, the amount he is liable to pay under that section shall be one fifth of the amount it would be apart from this section.

(3) If he is not undertaking the course on each day of that period, the amount he is liable to pay under that section shall be determined in accordance with the formula—

$$\left(\frac{P \times A}{C} \right) + \left(\frac{Q \times A}{C} \times \frac{1}{5} \right)$$

(4) A and C have the meanings given in section 12 above.

(5) P is the number of days which fall within the financial year and on which—

- (a) he is shown in the register as subject to the charge, and
- (b) he is not undertaking the course.

(6) Q is the number of days which fall within the financial year and on which—

- (a) he is shown in the register as subject to the charge, and
- (b) he is undertaking the course.

(7) The Secretary of State may by order substitute such proportion as he sees fit for the proportion of one fifth mentioned in subsections (2) and (3) above or for the proportion for the time being mentioned there by virtue of an order under this subsection.

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(8) For the purposes of this section a person shall not be treated as undertaking a full-time course of education on a particular day unless he is shown in the register as undertaking the course on that day.

Standard
community
charge.

14.—(1) If a person is entered in an authority's register as subject in a chargeable financial year to a standard community charge of the authority, he shall be liable to pay to the authority an amount in respect of the charge as it has effect for the year.

(2) The amount shall be calculated by—

(a) finding the amount to be paid for each day which falls within the financial year and on which he is shown in the register as subject to the charge, and

(b) aggregating the amounts found under paragraph (a) above.

(3) The amount to be paid for a day which falls within the financial year and on which he is shown in the register as subject to the charge shall be calculated in accordance with the formula—

$$\frac{A \times B}{C}$$

(4) A is the amount set by the authority for its personal community charges for the financial year for its area or (as the case may be) for that part of its area which contains the property by virtue of which he is shown in the register as subject to the charge.

(5) B is the standard community charge multiplier which by virtue of section 40 below is effective for the financial year for the following properties or class of property (as the case may be)—

(a) all properties in the authority's area;

(b) the specified class of property to which the relevant property belongs on the day concerned.

(6) C is the number of days in the financial year.

(7) For the purposes of subsection (4) above the Secretary of State may make regulations containing rules—

(a) for treating a property as contained in an authority's area if part only falls within the area or (in the case of a property which is a self-contained part of a building) if part only of the building falls within the area;

(b) for ascertaining what part of an authority's area contains a property (whether contained in the area in fact or by virtue of the regulations).

(8) For the purposes of subsection (5) above the relevant property—

(a) is the property by virtue of which the person is shown in the register as subject to the charge, and

(b) belongs to a particular class on a particular day if (and only if) it belongs to the class immediately before the day ends.

Collective
community
charge.

15.—(1) If a person is entered in an authority's register as subject in a chargeable financial year to a collective community charge of the authority, he shall be liable to pay to the authority an amount in respect of the charge as it has effect for the year.

(2) The amount shall be found by deducting amount B from amount A. **PART I**

(3) Amount A is the aggregate of the amounts payable (and whether or not paid) to the person by way of contribution to the amount he is liable to pay to the authority in respect of the charge as it has effect for the year.

(4) Amount B is an amount equal to the relevant proportion of amount A; and the relevant proportion is 5 per cent. or such other proportion as may be prescribed by the Secretary of State by order.

16.—(1) This section applies where—

Joint and several liability: spouses.

- (a) a person (the chargeable person) is liable to pay an amount (the chargeable amount) to an authority in respect of a community charge as it has effect for a chargeable financial year,
- (b) the liability arises under section 12 above (read with section 13 above, where it is appropriate) or section 14 above, and
- (c) on any day in the chargeable period the chargeable person is married to a person (the spouse) who is aged 18 or over on the day.

(2) In this section “the chargeable period” means the period consisting of the days which fall within the financial year and on which the chargeable person is shown in the register as subject to the charge.

(3) If, on each day of the chargeable period—

- (a) the chargeable person and the spouse are married to each other, and
- (b) the spouse is aged 18 or over,

they shall be jointly and severally liable to pay the chargeable amount.

(4) In any other case—

- (a) they shall be jointly and severally liable to pay such fraction of the chargeable amount as is represented by $\frac{A}{B}$, and
- (b) the chargeable person shall be liable to pay the remainder of the chargeable amount.

(5) A is the number of days which fall within the chargeable period and on which—

- (a) the chargeable person and the spouse are married to each other, and
- (b) the spouse is aged 18 or over.

(6) B is the number of days in the chargeable period.

(7) In a case where—

- (a) the chargeable person and the spouse are jointly and severally liable to pay an amount by virtue of this section,
- (b) the chargeable person fails to pay all or part of it because of wilful refusal or culpable neglect, and
- (c) the spouse accordingly pays an amount to the authority,

the spouse may recover from the chargeable person an amount equal to the amount paid by the spouse to the authority.

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(8) Subject to subsection (7) above, the spouse may not recover from the chargeable person anything by way of contribution to any amount paid by the spouse to the authority by virtue of this section.

(9) For the purposes of this section people are married to each other if they are a man and woman—

- (a) who are married to each other and are members of the same household, or
- (b) who are not married to each other but are living together as husband and wife.

(10) For the purposes of this section people are not married to each other on a particular day unless they are married to each other throughout the day.

Joint and several
liability:
management
arrangements.

17.—(1) This section applies where—

- (a) a person (the chargeable person) is liable to pay an amount (the chargeable amount) to an authority in respect of a standard or collective community charge as it has effect for a chargeable financial year,
- (b) on any day in the chargeable period he has a management arrangement with another person (the manager) who is neither the chargeable person's employee nor (if an individual) aged under 18 on the day, and
- (c) if the charge is a standard community charge, the chargeable person is a company.

(2) In this section "the chargeable period" means the period consisting of the days which fall within the financial year and on which the chargeable person is shown in the register as subject to the charge.

(3) For the purposes of this section a management arrangement is—

- (a) where the charge is a standard community charge, an arrangement under which the manager is to collect payments for the use of the property in respect of which the charge arises;
- (b) where the charge is a collective community charge, an arrangement under which the manager is to collect payments for residential accommodation in the designated dwelling in respect of which the charge arises, or amounts by way of contribution in respect of the charge, or both.

(4) If, on each day of the chargeable period—

- (a) the management arrangement subsists, and
- (b) the manager is neither the chargeable person's employee nor (if an individual) aged under 18,

they shall be jointly and severally liable to pay the chargeable amount.

(5) In any other case—

- (a) they shall be jointly and severally liable to pay such fraction of the chargeable amount as is represented by $\frac{A}{B}$, and
- (b) the chargeable person shall be liable to pay the remainder of the chargeable amount.

(6) A is the number of days which fall within the chargeable period and on which—

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- (a) the management arrangement subsists, and
- (b) the manager is neither the chargeable person's employee nor (if an individual) aged under 18.

(7) B is the number of days in the chargeable period.

(8) The manager may recover from the chargeable person an amount equal to any amount paid by the manager to the authority by virtue of this section.

(9) For the purposes of this section a management arrangement subsists on a particular day if it subsists at any time on the day.

18. The liability to pay an amount under any provision of sections 12 to 17 above must be discharged by making a payment or payments in accordance with regulations under Schedule 2 below.

Discharge of liability.

Miscellaneous

19.—(1) The Secretary of State may make regulations as regards any prescribed case where (apart from the regulations) co-owners would be subject to different standard or collective community charges by virtue of the same property.

Co-owners.

(2) The regulations may contain—

- (a) provision that as regards the period for which the co-ownership subsists there shall be one charge only, that the co-owners shall be jointly subject to it, and that the registration officer for the charging authority concerned shall enter an item in the register accordingly;
- (b) provision that the amount payable in respect of the charge concerned as it has effect for a chargeable financial year shall be calculated in a prescribed manner, and that the co-owners shall be jointly and severally liable to pay the amount;
- (c) provision that, notwithstanding that the co-owners are jointly and severally liable, section 16 or 17 above shall have effect to make a spouse or manager of any of the co-owners jointly and severally liable as well;
- (d) where the charge concerned is collective, provision as to the person or persons to whom any amount payable under section 9 above is to be paid.

(3) The regulations may provide that there shall be different charges as regards each of the following—

- (a) the period for which the co-ownership subsists (that is, for which the co-owners concerned are co-owners);
- (b) any period for which one only of the co-owners has an interest in the building, part of a building or dwelling concerned, or is owner of the caravan concerned;

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(c) any period for which there is a co-ownership as regards the property concerned but the participants of it do not correspond with those of the co-ownership mentioned in paragraph (a) above (whether because the number of members differs or because any of the personnel differs).

(4) The regulations may include provision conferring rights of recovery as between parties (whether co-owners, spouses or managers).

(5) Without prejudice to section 143(2) below, the regulations may include provision amending or adapting provisions of this Part; and in particular the regulations—

(a) may provide that section 11(4) above shall apply where different charges arise because of the operation of the regulations;

(b) may amend or adapt provisions of this Part which themselves confer power to make regulations (such as Schedules 2 and 4).

(6) References to co-owners include references to persons who together have an interest under a lease or underlease, and references to co-ownership shall be construed accordingly.

Contributions in aid.

20.—(1) Where a person would be subject to a personal community charge but for paragraph 11 of Schedule 1 below, and a contribution in aid of community charges is made in respect of him, the contribution shall be paid to the charging authority to whose charge he would be subject.

(2) Where a person would be subject to a standard community charge but for the rules as to Crown exemption, and a contribution in aid of community charges is made in respect of him, the contribution shall be paid to the charging authority to whose charge he would be subject.

Standard community charge: special cases.

21.—(1) Subsection (2) below applies in the case of property provided and maintained by an authority mentioned in subsection (3) below for purposes connected with the administration of justice, police purposes or other Crown purposes.

(2) Any rules as to Crown exemption which would have applied apart from this subsection shall not prevent—

(a) a person being subject to a charging authority's standard community charge by virtue of the property,

(b) an entry being made in the register in relation to the charge, or

(c) the person being liable to pay in respect of the charge.

(3) The authorities are—

(a) a county council,

(b) a district council,

(c) a London borough council,

(d) the Common Council,

(e) a metropolitan county police authority, and

(f) the Northumbria Police Authority.

Administration and penalties.

22.—(1) Schedule 2 below (which contains provisions about administration, including collection) shall have effect.

(2) Schedule 3 below (which contains provisions about civil penalties) shall have effect. **PART I**

(3) Schedule 4 below (which contains provisions about the recovery of sums due, including sums due as penalties) shall have effect.

23.—(1) A person aggrieved by any of the matters mentioned in subsection (2) below may appeal to a valuation and community charge tribunal established under Schedule 11 below. **Appeals.**

(2) The matters are—

- (a) the fact that the person is or is not at any time entered in a charging authority's register as subject to a community charge of the authority,
- (b) the contents of any item which is contained in a charging authority's register and relates to a charge to which the person is there shown as subject at any time,
- (c) any designation of an individual as a certification officer under regulations under section 30 below,
- (d) the fact that such a designation has not been revoked,
- (e) any estimate, made for the purposes of regulations under Schedule 2 below, of the amount the person is liable to pay in respect of a charging authority's community charge,
- (f) any designation of an individual as a responsible individual under regulations under Schedule 2 below,
- (g) the fact that such a designation has not been revoked,
- (h) the imposition of a penalty on the person under Schedule 3 below,
- (i) the fact that a relevant dwelling has been designated under section 5 above, and
- (j) the fact that a designation of a relevant dwelling under that section has not been revoked under that section.

(3) Subsection (2)(e) above shall not apply where the grounds on which the person concerned is aggrieved fall within such category or categories as may be prescribed by the Secretary of State by regulations.

(4) Where a penalty is imposed on a person under Schedule 3 below, and he alleges that there is no power in the case concerned to impose a penalty of the amount imposed, he may appeal under subsections (1) and (2)(h) above against the imposition.

(5) In subsection (2)(i) above "relevant dwelling" means a building, or part of a building, in respect of which the person would be subject to an authority's collective community charge if the designation were valid.

(6) In subsection (2)(j) above "relevant dwelling" means a building, or part of a building, in respect of which the person would cease to be subject to an authority's collective community charge if the revocation were made.

24.—(1) No appeal may be made under section 23 above unless—

- (a) the aggrieved person serves a written notice under this section, and

Appeals:
preliminary steps.

PART I

- (b) one of the conditions mentioned in subsection (4) below is fulfilled.
- (2) A notice under this section must be served on—
 - (a) the charging authority concerned, where the grievance relates to an estimate mentioned in section 23(2)(e) above or to the imposition of a penalty by a charging authority;
 - (b) the community charges registration officer concerned, in any other case.
- (3) A notice under this section must state the matter by which and the grounds on which the person is aggrieved.
- (4) The conditions are that—
 - (a) the aggrieved person is notified in writing, by the authority on which or officer on whom he served the notice, that the authority or officer believes the grievance is not well founded, but the person is still aggrieved;
 - (b) the aggrieved person is notified in writing, by the authority on which or officer on whom he served the notice, that steps have been taken to deal with the grievance, but the person is still aggrieved;
 - (c) the period of 2 months, beginning with the date of service of the aggrieved person's notice, has ended without his being notified under paragraph (a) or (b) above.
- (5) Where a notice under this section is served on an authority or officer, it or he shall—
 - (a) consider the matter to which the notice relates;
 - (b) include in any notification under subsection (4)(a) above reasons for the belief concerned;
 - (c) include in any notification under subsection (4)(b) above a statement of the steps taken.

Death.

- 25.—**(1) The Secretary of State may make such regulations as he sees fit to deal with any case where a person dies and at any time before his death—
- (a) he was (or is alleged to have been) subject to a charging authority's community charge,
 - (b) he was (or is alleged to have been) liable to pay an amount under section 9 above,
 - (c) he was (or is alleged to have been) liable, as spouse or manager, under section 16 or 17 above, or
 - (d) a penalty was imposed on him under Schedule 3 below.
- (2) Nothing in the following provisions of this section shall prejudice the generality of subsection (1) above.
- (3) The regulations may provide that where before his death a sum has become payable by the deceased but has not been paid his executor or administrator shall be liable to pay the sum and may deduct out of the assets and effects of the deceased any payments made (or to be made).

(4) The regulations may provide that where before his death a sum in excess of his liability has been paid (whether the excess arises because of his death or otherwise) and has not been repaid or credited his executor or administrator shall be entitled to the sum.

PART I

(5) The regulations may provide for the recovery of any sum which is payable under the regulations and is not paid.

(6) The regulations may provide that proceedings (whether by way of appeal under section 23 above or otherwise) may be instituted, continued or withdrawn by the deceased's executor or administrator.

26.—(1) There shall be a community charges registration officer for each charging authority.

Community charges registration officer.

(2) The registration officer for a district council, a London borough council or the Council of the Isles of Scilly shall be the person having responsibility for the administration of its financial affairs under section 151 of the Local Government Act 1972.

1972 c. 70.

(3) The registration officer for the Common Council shall be the chamberlain.

(4) A charging authority shall provide the registration officer with such staff, accommodation and other resources as are sufficient to allow his functions under this Part to be exercised.

27.—(1) If it appears to the Secretary of State that a charging authority's register does not contain items in relation to all community charges of the authority, the Secretary of State may direct the registration officer or the authority (or both) to supply the Secretary of State with such information as he considers necessary to enable him to decide whether his belief is well founded and what action (if any) he should take under subsection (3) below.

Default powers as to registers.

(2) A direction under subsection (1) above—

- (a) must specify the information to be provided and the period within which it is to be provided;
- (b) may be amended by another direction under subsection (1) above;
- (c) may be revoked by a direction under this paragraph.

(3) If the period specified in a direction under subsection (1) above ends (whether or not the direction has been complied with) and it still appears to the Secretary of State as mentioned in that subsection, he may direct the officer or the authority (or both) to take such steps as the Secretary of State considers appropriate to secure that the register contains items in relation to as many of the authority's community charges as practicable; and the steps may involve conducting canvasses or otherwise.

(4) A direction under subsection (3) above—

- (a) must specify the steps to be taken and the period within which they are to be taken;
- (b) may include a requirement to make a report or periodic reports to the Secretary of State as to what steps have been taken and the results of taking them;

PART I

- (c) must, if a requirement is included under paragraph (b) above, specify the period within which any report is to be made;
- (d) may be amended by another direction under subsection (3) above (but without the need for a further direction under subsection (1) above);
- (e) may be revoked by a direction under this paragraph.

Default powers as to resources.

28.—(1) If it appears to the Secretary of State that a charging authority has failed to comply with section 26(4) above he may direct the authority to supply him with such information as he considers necessary to enable him to decide whether his belief is well founded and what action (if any) he should take under subsection (3) below.

(2) A direction under subsection (1) above—

- (a) must specify the information to be provided and the period within which it is to be provided;
- (b) may be amended by another direction under subsection (1) above;
- (c) may be revoked by a direction under this paragraph.

(3) If the authority purports to comply with a direction under subsection (1) above or the period specified in the direction ends without its purporting to comply and (in either case) it still appears to the Secretary of State as mentioned in that subsection, he may direct the authority to provide the registration officer with such staff, accommodation and other resources as the Secretary of State considers sufficient to allow the officer's functions under this Part to be exercised.

(4) A direction under subsection (3) above—

- (a) must specify the staff, accommodation and other resources the authority is to provide under the direction and the period within which it is to provide them;
- (b) may include a requirement to make a report or periodic reports to the Secretary of State as to what steps have been taken to comply with the requirement included under paragraph (a) above and the results of taking them;
- (c) must, if a requirement is included under paragraph (b) above, specify the period within which any report is to be made;
- (d) may be amended by another direction under subsection (3) above (but without the need for a further direction under subsection (1) above);
- (e) may be revoked by a direction under this paragraph.

Rights of electoral registration officers.

29. For the purpose of exercising his functions the electoral registration officer for any area in England and Wales may inspect the register of any charging authority.

General

Students.

30.—(1) For the purposes of this Part a person shall be treated as undertaking a full-time course of education on a particular day if (and only if) he fulfils such conditions as may be prescribed by regulations made by the Secretary of State.

(2) The regulations may include provision that—

PART I

- (a) as regards any educational establishment of a prescribed description an individual (to be called a certification officer) may be designated by the appropriate registration officer, or otherwise identified, in accordance with prescribed rules;
- (b) a certification officer shall at a prescribed time supply to a person who is pursuing or is about to pursue a course at the establishment, and who is of a prescribed description, a certificate in a prescribed form and containing prescribed particulars;
- (c) conditions prescribed under subsection (1) above shall include a condition as to the possession of such a certificate;
- (d) failure to supply a certificate to a person in accordance with the regulations is actionable by the person concerned as a breach of statutory duty.

(3) The regulations shall include a statement of what courses constitute, in the Secretary of State's opinion, full-time courses of nursing education; but this is without prejudice to the power to provide, or not to provide, that a person undertaking such a course is to be treated as undertaking a full-time course of education for the purposes of this Part.

(4) The regulations may include provision allowing or requiring the appropriate registration officer to revoke a designation of an individual as a certification officer.

(5) "The appropriate registration officer" means the registration officer for such charging authority as may be prescribed as regards the educational establishment concerned.

31.—(1) This section applies for the purposes of this Part.

Interpretation.

(2) References to the register, in relation to a charging authority, are to its community charges register.

(3) References to anything shown in a register on a day are references to what is shown for the day (including what is shown by virtue of a retrospective entry).

(4) References to the registration officer, in relation to a charging authority, are to the community charges registration officer for the authority.

(5) The residential address of a person who is a company is the address of the company's registered office.

(6) References to a building include references to a chalet or hut.

(7) Whether anything is a caravan at a particular time shall be construed in accordance with Part I of the Caravan Sites and Control of Development Act 1960. 1960 c. 62.

(8) If at a particular time a person has no fixed abode (in England and Wales or elsewhere) he shall at that time be treated as having his sole or main residence in the place where he is at the time.

(9) Section 2(6) above shall not apply to a person to whom subsection (8) above applies at the time concerned.

PART I

(10) The Secretary of State may make regulations containing rules for ascertaining what is to be treated as the greater or greatest part of premises or a building or caravan.

(11) Nothing in a private or local Act passed before this Act shall prevent a person being subject to a community charge or being liable to pay anything in respect of a community charge or anything by way of contribution in respect of a collective community charge.

PART II**CHARGES AND MULTIPLIERS***Charges*

Amount for
personal
community
charges.

32.—(1) For each chargeable financial year, a charging authority shall set for its personal community charges an amount or amounts in accordance with this section and section 33 below.

(2) Any amount must be set on or before 1 April on which the financial year for which it is set begins, but is not invalid merely because it is set after that date.

(3) In setting any amount the authority must secure (so far as practicable) that the total amount yielded by its community charges for the year is sufficient to provide for the items mentioned in subsection (4) below, to the extent that they are not to be provided for by other means.

(4) The items are—

- (a) any precept issued to the authority for the year,
- (b) the authority's estimate of the aggregate of the payments to be met from its collection fund in the year under section 90(2)(b) to (g) below or section 90(4)(b) and (c) below (as the case may be),
- (c) the amount calculated (or last calculated) by the authority in relation to the year under section 95(4) below, and
- (d) the authority's estimate of the amount to be transferred from its collection fund in the year under section 98(4) below.

(5) In construing subsection (4)(a) above any precept for which another has been substituted shall be ignored.

Setting of different
amounts.

33.—(1) A charging authority must set one amount for its area under section 32 above, except as provided by the following provisions of this section.

(2) Where an item mentioned in subsection (3) below relates to a part only of its area, a charging authority must set different amounts for different parts so as to secure (so far as practicable) that the item is provided for only by amounts yielded by such of its community charges as relate to the part, to the extent that the item is not to be provided for by other means.

(3) The items are—

- (a) any precept or portion of a precept issued to the authority if the precept or portion is stated to be applicable to a part, and

PART II

- (b) any expenses of the authority which are its special expenses and were taken into account by it in making the calculation (or last calculation) in relation to the year concerned under section 95(2) below.
- (4) For the purposes of subsection (3) above—
 - (a) provided a resolution of a charging authority to the following effect is in force, its expenses needed to meet a levy issued to it are its special expenses or (if the resolution relates to some only of those expenses) those to which the resolution relates are its special expenses,
 - (b) any expenses which a charging authority believes will have to be met out of amounts transferred or to be transferred from its collection fund to its general fund or to the City fund (as the case may be), and which arise out of its possession of property held in trust for a part of its area, are its special expenses,
 - (c) any expenses which a charging authority believes will have to be met out of amounts transferred or to be transferred from its collection fund to its general fund or to the City fund (as the case may be), and which relate to a part of its area, are its special expenses provided that expenses of the same kind which relate to another part of its area are to be met out of property held in trust for that part, and
 - (d) any expenses incurred by a charging authority in performing in a part of its area a function performed elsewhere in its area by the sub-treasurer of the Inner Temple, the under-treasurer of the Middle Temple, a parish or community council or the chairman of a parish meeting are the authority's special expenses provided a resolution of the authority to that effect is in force.
- (5) A community charge relates to a part of an area if it is—
 - (a) a personal community charge arising in respect of a residence contained in the part;
 - (b) a standard community charge arising in respect of a building, self-contained part of a building or caravan contained in the part;
 - (c) a collective community charge arising in respect of a dwelling constituting or contained in a building which is contained in the part.
- (6) Rules contained in regulations under sections 10(6), 12(6) and 14(7) above shall apply for the purpose of construing subsection (5) above.
- (7) As regards any charging authority the Secretary of State may make directions that, for the purposes of subsection (2) above, the extent (if any) to which an item is to be provided for by other means shall be determined by the authority in accordance with the directions.
- (8) Directions under subsection (7) above—
 - (a) must be made in writing;
 - (b) may contain rules in accordance with which, or specify factors by reference to which, a determination is to be made;
 - (c) may specify (as the extent concerned) an amount in relation to a particular item;

PART II

- (d) may relate to one item or to a number of items;
- (e) may contain different provision as to different items;
- (f) may be amended or revoked by other directions under subsection (7) above.

(9) The power to give directions under subsection (7) above may be exercised differently for different authorities.

(10) No directions under subsection (7) above shall have effect in relation to a determination unless they are served on the authority concerned before it makes the determination.

(11) In construing subsection (3)(a) above any precept for which another has been substituted shall be ignored.

Power to set substituted amounts.

34.—(1) An authority which has set an amount or amounts for a financial year under section 32 above, this section or section 35 below may set an amount or amounts in substitution.

(2) Any amount set in substitution under this section must be set in accordance with sections 32 and 33 above, ignoring section 32(2) for this purpose.

(3) No amount may be set in substitution under this section if it would be greater than that for which it is substituted, except as provided by subsection (4) below.

(4) Any amount set in substitution under this section may be greater than that for which it is substituted (the old amount) if the setting of the old amount has been quashed because of a failure to fulfil section 32(3) or 33(2) above.

Duty to set substituted amounts.

35.—(1) Where an authority has set an amount or amounts for a financial year under section 32 or 34 above or under this section and a precept of a relevant authority is then issued to it for the year (originally or by way of substitute) it must as soon as is reasonably practicable after the issue set an amount or amounts in substitution, even if it or any of them is equal to or greater than that for which it is substituted.

(2) Each of the following is a relevant authority for the purposes of subsection (1) above—

- (a) a county council,
- (b) a metropolitan county police authority,
- (c) the Northumbria Police Authority,
- (d) a metropolitan county fire and civil defence authority,
- (e) the London Fire and Civil Defence Authority, and
- (f) the Receiver for the Metropolitan Police District.

(3) Any amount set in substitution under subsection (1) above must be set in accordance with sections 32 and 33 above, but applying the following rules—

- (a) section 32(2) shall be ignored for this purpose;
- (b) the amount must be set by reference to the precept whose issue gives rise to the amount being set;

PART II

- (c) the amount must be set by reference to any other precept issued to the authority for the year since the time when it set (or last set) an amount or amounts for the year under section 32 or 34 above or under subsection (6) below;
- (d) the amount must be set by reference to any amount calculated by the authority in relation to the year under section 95(4) below since the time mentioned in paragraph (c) above;
- (e) subject to paragraphs (b) to (d) above, the amount must be set by reference to the information in the authority's possession at the time mentioned in paragraph (c) above.

(4) Where an authority has set an amount or amounts for a financial year under section 32 or 34 above or under this section and it then makes substitute calculations in accordance with section 95 below, it must as soon as is reasonably practicable after making the substitute calculations set an amount or amounts in substitution, even if it or any of them is equal to or greater than that for which it is substituted.

(5) Any amount set in substitution under subsection (4) above must be set in accordance with sections 32 and 33 above, but applying the following rules—

- (a) section 32(2) shall be ignored for this purpose;
- (b) the amount must be set by reference to the amount calculated by the authority in relation to the year under section 95(4) below in making the calculations giving rise to the amount being set;
- (c) the amount must be set by reference to any precept issued to the authority for the year since the time when it set (or last set) an amount or amounts for the year under section 32 or 34 above or under subsection (6) below;
- (d) subject to paragraphs (b) and (c) above, the amount must be set by reference to the information in the authority's possession at the time mentioned in paragraph (c) above.

(6) Where a special authority has set an amount or amounts for a financial year under section 32 or 34 above or under this section and it then sets a multiplier in substitution under paragraph 10 of Schedule 7 below, it must as soon as is reasonably practicable after setting the multiplier in substitution set an amount or amounts in substitution, even if it or any of them is equal to or greater than that for which it is substituted.

(7) Any amount set in substitution under subsection (6) above must be set by reference to the multiplier set in substitution and in accordance with sections 32 and 33 above, ignoring section 32(2) for this purpose.

(8) In construing subsections (3)(c) and (5)(c) above any precept for which another has been substituted shall be ignored; and in construing subsection (3)(d) above any calculation for which another has been substituted shall be ignored.

36.—(1) Where an authority sets any amount in substitution under section 34 or 35 above (a new amount) anything paid to it by reference to the amount for which it is substituted (the old amount) shall be treated as paid by reference to the new amount.

Substituted
amounts:
supplementary.

PART II

(2) But if the old amount exceeds the new amount, the following shall apply as regards anything paid if it would not have been paid had the old amount been the same as the new amount—

- (a) it shall be repaid if the person by whom it was paid so requires;
- (b) in any other case it shall (as the charging authority determines) either be repaid or be credited against any subsequent liability of the person to pay in respect of any community charge of the authority.

(3) Where an authority sets an amount or amounts in substitution under section 35(1) above it may recover from the precepting authority administrative expenses incurred by it in, or in consequence of, so doing.

**Power to
anticipate precept.**

37.—(1) For the purposes of this section a district council, the Common Council and the Council of the Isles of Scilly are relevant charging authorities, and—

- (a) in relation to a district council, a relevant precepting authority is any parish or community council, chairman of a parish meeting or charter trustees with power to issue a precept to the district council;
- (b) in relation to the Common Council, a relevant precepting authority is the sub-treasurer of the Inner Temple or the under-treasurer of the Middle Temple;
- (c) in relation to the Council of the Isles of Scilly, a relevant precepting authority is any parish council or chairman of a parish meeting with power to issue a precept to the Council.

(2) Subsections (3) to (7) below apply if at the time a relevant charging authority sets an amount or amounts for a financial year under section 32 above a precept for the year has not been issued to it by a relevant precepting authority.

(3) If a precept for the previous financial year has been issued to it by the precepting authority, in setting an amount or amounts for the financial year under section 32 above the charging authority may include among the items listed in section 32(4) above an amount equal to that payable under the precept (or last precept) issued for the previous financial year; and in such a case section 32(4) shall be read accordingly.

(4) If the charging authority sets an amount or amounts in substitution for the year under section 34 or 35 above at a time when a precept for the year has not been issued to it by the precepting authority, and an amount was included under subsection (3) above, the charging authority shall include among the items listed in section 32(4) above an amount equal to that included under subsection (3) above; and in such a case section 32(4) shall be read accordingly.

(5) If the precepting authority issues to the charging authority a precept for the year (originally or by way of substitute) then—

- (a) if subsection (3) above does not apply, or no amount was included under it, the precept shall be treated as not having been issued,
- (b) if an amount was included under subsection (3) above, and it is equal to or less than the amount of the precept, the amount of the precept shall be treated as equal to the amount included, and

PART II

- (c) if an amount was included under subsection (3) above, and it exceeds the amount of the precept, the amount of the precept shall be treated as equal to its actual amount.

(6) If the precepting authority issues no precept to the charging authority for the year, the fact that an amount is included under subsection (3) above does not make the charging authority liable to pay anything to the precepting authority.

(7) If the charging authority sets an amount or amounts in substitution for the year under section 34 or 35 above at a time when a precept for the year has been issued to it by the precepting authority, section 32(4) and 35(3) and (5) above shall be read in accordance with subsection (5) above.

(8) Where the financial year mentioned in subsection (2) above is that beginning in 1990 this section shall have effect as if subsection (3) read—

“(3) The charging authority may include among the items listed in section 32(4) above an amount equal to its estimate of the amount of any precept it expects will be issued to it for the year by the precepting authority; and in such a case section 32(4) shall be read accordingly.”

38.—(1) References in this section to the charging authority, the precepting authority and the financial year are to the charging authority, the precepting authority and the financial year mentioned in section 37(2) to (7) above.

Anticipated
precepts:
supplementary.

(2) Where the charging authority includes under section 37(3) or (4) above an amount equal to that payable under a precept, section 33 above shall have effect as if among the items listed in subsection (3) there were included an amount equal to that payable under the precept, in a case where the precept is stated to be applicable to a part of the authority's area.

(3) Where the charging authority includes under section 37(3) or (4) above an amount equal to its estimate of the amount of any precept it expects to be issued, in a case where it expects the precept will relate to a part only of its area section 33 above shall have effect as if—

- (a) the reference in subsection (2) to an item relating to a part included a reference to an item the authority expects will relate to a part, and
- (b) among the items listed in subsection (3) there were included an amount equal to the authority's estimate of the amount of the precept it expects will be issued to it in relation to a part.

(4) If the charging authority sets an amount or amounts in substitution for the year under section 34 or 35 above at a time when a precept for the year has been issued to it by the precepting authority, sections 33 and 35(3) and (5) above shall be read in accordance with section 37(5) above.

39.—(1) An authority which has set an amount or amounts under section 32, 34 or 35 above shall, before the end of the period of 21 days beginning with the day of doing so, publish a notice of the amount or amounts in at least one newspaper circulating in the authority's area.

Information.

(2) Failure to comply with subsection (1) above does not make the setting of an amount or amounts invalid.

PART II

Multipliers

Standard
community charge
multipliers.

40.—(1) A charging authority shall determine a standard community charge multiplier for properties in its area.

(2) If the authority sees fit, different multipliers may be determined for properties of different specified classes.

(3) A specified class is such class as may be specified in regulations made by the Secretary of State.

(4) If the Secretary of State so requires by regulations, a multiplier for a specified class of property shall not exceed whichever of the following he specifies in the regulations as regards the class, namely, 0, $\frac{1}{2}$, 1, $1\frac{1}{2}$ and 2.

(5) An authority must determine under this section before 1 April 1990.

(6) Once a multiplier has been determined it shall remain effective for all chargeable financial years until varied (whether to comply with a requirement under subsection (4) above or otherwise).

(7) A multiplier as it has effect for a given financial year may only be varied before the year begins.

(8) Regulations under this section in their application to a particular financial year (including regulations amending or revoking others) shall not be effective unless they come into force before 1 January in the preceding financial year.

(9) A multiplier must be one of the following, namely, 0, $\frac{1}{2}$, 1, $1\frac{1}{2}$ or 2.

(10) References to properties are to buildings, self-contained parts of buildings and caravans in respect of which persons are or may become subject to standard community charges of the authority.

(11) A class may be specified by reference to such factors as the Secretary of State sees fit.

(12) Without prejudice to the generality of subsection (11) above, a class may be specified by reference to one or more of the following factors—

- (a) the physical characteristics of properties;
- (b) the fact that properties are unoccupied or are occupied for prescribed purposes or by persons of prescribed descriptions;
- (c) the circumstances of persons subject to standard community charges.

PART III

NON-DOMESTIC RATING

Local rating

Local rating lists.

41.—(1) In accordance with this Part the valuation officer for a charging authority shall compile, and then maintain, lists for the authority (to be called its local non-domestic rating lists).

(2) A list must be compiled on 1 April 1990 and on 1 April in every fifth year afterwards.

PART III

(3) A list shall come into force on the day on which it is compiled and shall remain in force until the next one is compiled five years later.

(4) Before a list is compiled the valuation officer must take such steps as are reasonably practicable to ensure that it is accurately compiled on 1 April concerned.

(5) Not later than 31 December preceding a day on which a list is to be compiled the valuation officer shall send to the authority a copy of the list he proposes (on the information then before him) to compile.

(6) As soon as is reasonably practicable after receiving the copy the authority shall deposit it at its principal office and take such steps as it thinks most suitable for giving notice of it.

(7) A list must be maintained for so long as is necessary for the purposes of this Part, so that the expiry of the five year period for which it is in force does not detract from the duty to maintain it.

(8) In compiling and maintaining the list which must be compiled on 1 April 1990, the valuation officer may take into account information obtained under section 82 or 86 of the 1967 Act.

42.—(1) A local non-domestic rating list must show, for each day in each chargeable financial year for which it is in force, each hereditament which fulfils the following conditions on the day concerned—

Contents of local lists.

- (a) it is situated in the authority's area,
- (b) it is a relevant non-domestic hereditament,
- (c) at least some of it is neither domestic property nor exempt from local non-domestic rating, and
- (d) it is not a hereditament which must be shown for the day in a central non-domestic rating list.

(2) For each day on which a hereditament is shown in the local list, it must also show whether the hereditament—

- (a) consists entirely of property which is not domestic, or
- (b) is a composite hereditament.

(3) For each day on which a hereditament is shown in the list, it must also show whether any part of the hereditament is exempt from local non-domestic rating.

(4) For each day on which a hereditament is shown in the list, it must also show—

- (a) the rateable value of the hereditament (in a case where none of it consists of domestic property, and none of it is exempt from local non-domestic rating, on the day);
- (b) the rateable value of such part of the hereditament as is neither domestic property nor exempt from local non-domestic rating on the day (in any other case).

(5) The list must also contain such information about hereditaments shown in it as may be prescribed by the Secretary of State by regulations; and the information so prescribed may include information about the total of the rateable values shown in the list.

PART III
Occupied
hereditaments:
liability.

43.—(1) A person (the ratepayer) shall as regards a hereditament be subject to a non-domestic rate in respect of a chargeable financial year if the following conditions are fulfilled in respect of any day in the year—

- (a) on the day the ratepayer is in occupation of all or part of the hereditament, and
- (b) the hereditament is shown for the day in a local non-domestic rating list in force for the year.

(2) In such a case the ratepayer shall be liable to pay an amount calculated by—

- (a) finding the chargeable amount for each chargeable day, and
- (b) aggregating the amounts found under paragraph (a) above.

(3) A chargeable day is one which falls within the financial year and in respect of which the conditions mentioned in subsection (1) above are fulfilled.

(4) Subject to subsection (5) below, the chargeable amount for a chargeable day shall be calculated in accordance with the formula—

$$\frac{A \times B}{C}$$

(5) Where subsection (6) below applies the chargeable amount for a chargeable day shall be calculated in accordance with the formula—

$$\frac{A \times B}{C \times 5}$$

(6) This subsection applies where on the day concerned the ratepayer is a charity or trustees for a charity and the hereditament is wholly or mainly used for charitable purposes (whether of that charity or of that and other charities).

(7) The amount the ratepayer is liable to pay under this section shall be paid to the charging authority in whose local non-domestic rating list the hereditament is shown.

(8) The liability to pay any such amount shall be discharged by making a payment or payments in accordance with regulations under Schedule 9 below.

Occupied
hereditaments:
supplementary.

44.—(1) This section applies for the purposes of section 43 above.

(2) A is the rateable value shown for the day under section 42(4) above as regards the hereditament or (as the case may be) such part of it as is neither domestic property nor exempt from local non-domestic rating.

(3) The Secretary of State may make regulations providing that where—

- (a) the chargeable day falls within a period in which the ratepayer is in occupation of part only of the hereditament,
- (b) the period is such limited one as may be prescribed, and
- (c) other prescribed conditions are fulfilled,

for the day A shall be taken to be a value which is smaller than it would be apart from the regulations and which is found in accordance with prescribed rules.

(4) Subject to subsection (5) below, B is the non-domestic rating multiplier for the financial year.

PART III

(5) Where the charging authority is a special authority, B is the authority's non-domestic rating multiplier for the financial year.

(6) C is the number of days in the financial year.

45.—(1) A person (the ratepayer) shall as regards a hereditament be subject to a non-domestic rate in respect of a chargeable financial year if the following conditions are fulfilled in respect of any day in the year—

Unoccupied hereditaments: liability.

- (a) on the day none of the hereditament is occupied,
- (b) on the day the ratepayer is the owner of the whole of the hereditament,
- (c) the hereditament is shown for the day in a local non-domestic rating list in force for the year, and
- (d) on the day the hereditament falls within a description prescribed by the Secretary of State by regulations.

(2) In such a case the ratepayer shall be liable to pay an amount calculated by—

- (a) finding the chargeable amount for each chargeable day, and
- (b) aggregating the amounts found under paragraph (a) above.

(3) A chargeable day is one which falls within the financial year and in respect of which the conditions mentioned in subsection (1) above are fulfilled.

(4) Subject to subsection (5) below, the chargeable amount for a chargeable day shall be calculated in accordance with the formula—

$$\frac{A \times B}{C \times 2}$$

(5) Where subsection (6) below applies the chargeable amount for a chargeable day shall be calculated in accordance with the formula—

$$\frac{A \times B}{C \times 10}$$

(6) This subsection applies where on the day concerned the ratepayer is a charity or trustees for a charity and it appears that when next in use the hereditament will be wholly or mainly used for charitable purposes (whether of that charity or of that and other charities).

(7) The amount the ratepayer is liable to pay under this section shall be paid to the charging authority in whose local non-domestic rating list the hereditament is shown.

(8) The liability to pay any such amount shall be discharged by making a payment or payments in accordance with regulations under Schedule 9 below.

46.—(1) This section applies for the purposes of section 45 above.

Unoccupied hereditaments: supplementary.

(2) A is the rateable value shown for the day under section 42(4) above as regards the hereditament or (as the case may be) such part of it as is neither domestic property nor exempt from local non-domestic rating.

PART III

(3) Subject to subsection (4) below, B is the non-domestic rating multiplier for the financial year.

(4) Where the charging authority is a special authority, B is the authority's non-domestic rating multiplier for the financial year.

(5) C is the number of days in the financial year.

Discretionary
relief.

47.—(1) Where the first and second conditions mentioned in subsections (2) and (3) below are fulfilled for a day which is a chargeable day within the meaning of section 43 or 45 above (as the case may be)—

(a) the chargeable amount for the day shall be such as is determined by, or found in accordance with rules determined by, the charging authority concerned, and

(b) sections 43(4) to (6) and 44 above, sections 45(4) to (6) and 46 above, regulations under section 57 below or regulations under section 58 below (as the case may be) shall not apply as regards the day.

(2) The first condition is that one or more of the following applies on the chargeable day—

(a) the ratepayer is a charity or trustees for a charity, and the hereditament is wholly or mainly used for charitable purposes (whether of that charity or of that and other charities);

(b) the hereditament is not an excepted hereditament, and all or part of it is occupied for the purposes of one or more institutions or other organisations none of which is established or conducted for profit and each of whose main objects are charitable or are otherwise philanthropic or religious or concerned with education, social welfare, science, literature or the fine arts;

(c) the hereditament is not an excepted hereditament, it is wholly or mainly used for purposes of recreation, and all or part of it is occupied for the purposes of a club, society or other organisation not established or conducted for profit.

(3) The second condition is that, during a period which consists of or includes the chargeable day, a decision of the charging authority concerned operates to the effect that this section applies as regards the hereditament concerned.

(4) A determination under subsection (1)(a) above—

(a) must be such that the chargeable amount for the day is less than the amount it would be apart from this section;

(b) may be such that the chargeable amount for the day is 0;

(c) may be varied by a further determination of the authority under subsection (1)(a) above.

(5) In deciding what the chargeable amount for the day would be apart from this section the effect of any regulations under section 57 or 58 below shall be taken into account but anything which has been done or could be done under section 49 below shall be ignored.

(6) A decision under subsection (3) above may be revoked by a further decision of the authority.

(7) A decision under subsection (3) above is invalid as regards a day if made after the end of the financial year in which the day falls.

(8) The Secretary of State may make regulations containing provision—

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- (a) requiring notice to be given of any determination or decision;
- (b) limiting the power to revoke a decision or vary a determination;
- (c) as to other matters incidental to this section.

(9) A hereditament is an excepted hereditament if all or part of it is occupied (otherwise than as trustee) by a charging authority or a precepting authority falling within section 144(2)(a) to (e) or (g) to (j) below.

48.—(1) This section applies for the purposes of section 47 above.

Discretionary
relief:
supplementary.

(2) A hereditament not in use shall be treated as wholly or mainly used for charitable purposes if it appears that when next in use it will be wholly or mainly used for charitable purposes.

(3) A hereditament not in use shall be treated as wholly or mainly used for purposes of recreation if it appears that when next in use it will be wholly or mainly used for purposes of recreation.

(4) A hereditament which is wholly unoccupied shall be treated as an excepted hereditament if it appears that when any of it is next occupied the hereditament will be an excepted hereditament.

(5) If a hereditament is wholly unoccupied but it appears that it or any part of it when next occupied will be occupied for particular purposes, the hereditament or part concerned (as the case may be) shall be treated as occupied for those purposes.

49.—(1) A charging authority may—

Reduction or
remission of
liability.

- (a) reduce any amount a person is liable to pay to it under section 43 or 45 above, or
- (b) remit payment of the whole of any amount a person would otherwise be liable to pay to it under section 43 or 45 above.

(2) But an authority may not act under this section unless it is satisfied that—

- (a) the ratepayer would sustain hardship if the authority did not do so, and
- (b) it is reasonable for the authority to do so, having regard to the interests of persons subject to its community charges.

(3) The amount as regards which a reduction or remittance may be made under subsection (1) above is the amount the person would be liable to pay (apart from this section) taking account of anything done under section 47 above and the effect of any regulations under section 57 or 58 below.

(4) Where an authority acts under this section, section 43 or 45 above shall be construed accordingly as regards the case concerned.

50.—(1) The Secretary of State may make such regulations as he sees fit to deal with any case where (apart from the regulations) there would be more than one owner or occupier of a hereditament or part or of land at a particular time.

Joint owners or
occupiers.

(2) Nothing in the following provisions of this section shall prejudice the generality of subsection (1) above.

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(3) The regulations may provide for the owner or occupier at the time concerned to be taken to be such one of the owners or occupiers as is identified in accordance with prescribed rules.

(4) The regulations may provide that—

(a) as regards any time when there is only one owner or occupier, section 43 or 45 above (as the case may be) shall apply;

(b) as regards any time when there is more than one owner or occupier, the owners or occupiers shall be jointly and severally liable to pay a prescribed amount by way of non-domestic rate.

(5) The regulations may include provision that prescribed provisions shall apply instead of prescribed provisions of this Part, or that prescribed provisions of this Part shall not apply or shall apply subject to prescribed amendments or adaptations.

Exemption.

51. Schedule 5 below shall have effect to determine the extent (if any) to which a hereditament is for the purposes of this Part exempt from local non-domestic rating.

Central rating

Central rating lists.

52.—(1) In accordance with this Part the central valuation officer shall compile, and then maintain, lists (to be called central non-domestic rating lists).

(2) A list must be compiled on 1 April 1990 and on 1 April in every fifth year afterwards.

(3) A list shall come into force on the day on which it is compiled and shall remain in force until the next one is compiled five years later.

(4) Before a list is compiled the central valuation officer must take such steps as are reasonably practicable to ensure that it is accurately compiled on 1 April concerned.

(5) Not later than 31 December preceding a day on which a list is to be compiled the central valuation officer shall send to the Secretary of State a copy of the list he proposes (on the information then before him) to compile.

(6) As soon as is reasonably practicable after receiving the copy the Secretary of State shall deposit it at his principal office.

(7) A list must be maintained for so long as is necessary for the purposes of this Part, so that the expiry of the five year period for which it is in force does not detract from the duty to maintain it.

Contents of central lists.

53.—(1) With a view to securing the central rating en bloc of certain hereditaments, the Secretary of State may by regulations designate a person and prescribe in relation to him a description of relevant non-domestic hereditament.

(2) Where the regulations so require, a central non-domestic rating list must show, for each day in each chargeable financial year for which it is in force, the name of the designated person and, against it, each hereditament (wherever situated) which on the day concerned—

(a) is occupied or (if unoccupied) owned by him, and

(b) falls within the description prescribed in relation to him.

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(3) For each such day the list must also show against the name of the designated person the rateable value (as a whole) of the hereditaments so shown.

(4) Only one description of hereditament may be prescribed under subsection (1) above in relation to each person designated under it, but a description may contain a number of different headings.

(5) A central non-domestic rating list must also contain such information about hereditaments shown in it as may be prescribed by the Secretary of State by regulations.

54.—(1) A person (the ratepayer) shall be subject to a non-domestic rate in respect of a chargeable financial year if for any day in the year his name is shown in a central non-domestic rating list in force for the year.

Central rating:
liability.

(2) In such a case the ratepayer shall be liable to pay an amount calculated by—

- (a) finding the chargeable amount for each chargeable day, and
- (b) aggregating the amounts found under paragraph (a) above.

(3) A chargeable day is one which falls within the financial year and for which the ratepayer's name is shown in the list.

(4) The chargeable amount for a chargeable day shall be calculated in accordance with the formula—

$$\frac{A \times B}{C}$$

(5) A is the rateable value shown for the day in the list against the ratepayer's name.

(6) B is the non-domestic rating multiplier for the financial year.

(7) C is the number of days in the financial year.

(8) The amount the ratepayer is liable to pay under this section shall be paid to the Secretary of State.

(9) The liability to pay any such amount shall be discharged by making a payment or payments in accordance with regulations under Schedule 9 below.

General

55.—(1) The Secretary of State may make regulations providing that where a copy of a list has been sent under section 41(5) or 52(5) above and the valuation officer alters the list before it comes into force—

Alteration of lists.

- (a) the officer must inform the charging authority or Secretary of State (as the case may be), and
- (b) the authority or Secretary of State (as the case may be) must alter the deposited copy accordingly.

(2) The Secretary of State may make regulations about the alteration by valuation officers of lists which have been compiled under this Part, whether or not they are still in force; and subsections (3) to (7) below shall apply for the purposes of this subsection.

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(3) The regulations may include provision that where a valuation officer intends to alter a list with a view to its being accurately maintained, he shall not alter it unless prescribed conditions (as to notice or otherwise) are fulfilled.

(4) The regulations may include provision—

- (a) as to who (other than a valuation officer) may make a proposal for the alteration of a list with a view to its being accurately maintained,
- (b) as to the circumstances in which a proposal may be made,
- (c) as to the period within which a proposal must be made,
- (d) as to the procedure for making a proposal, and
- (e) requiring the valuation officer to inform other prescribed persons of the proposal in a prescribed manner.

(5) The regulations may include provision that, where there is a disagreement about the accuracy of a list between a valuation officer and another person making a proposal for its alteration, an appeal may be made to a valuation and community charge tribunal established under Schedule 11 below.

(6) The regulations may include—

- (a) provision as to the period for which or day from which an alteration of a list is to have effect (including provision that it is to have retrospective effect);
- (b) provision requiring the list to be altered so as to indicate the effect (retrospective or otherwise) of the alteration;
- (c) provision requiring the valuation officer to inform prescribed persons of an alteration within a prescribed period;
- (d) provision requiring the valuation officer to keep for a prescribed period a record of the state of the list before the alteration was made.

(7) The regulations may include provision as to financial adjustments to be made as a result of alterations, including—

- (a) provision requiring payments to be made,
- (b) provision requiring repayments to be made together with payments of interest at a prescribed rate, and
- (c) provision as to the recovery (by deduction or otherwise) of sums due.

Valuation and
multipliers.

56.—(1) Schedule 6 below (which contains provisions about valuation for the purposes of this Part) shall have effect.

(2) Schedule 7 below (which contains provisions about multipliers for the purposes of this Part) shall have effect.

Special provision
for 1990-95.

57.—(1) In relation to any relevant financial year the Secretary of State may make regulations under this section.

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(2) The regulations may contain such provisions as are mentioned in subsection (3) below as regards any case which falls within a prescribed description and where—

- (a) as regards a hereditament or hereditaments the chargeable amount for a chargeable day falls to be determined under section 43, 45 or 54 above, and
- (b) the day falls within the financial year concerned.

(3) The provisions are that—

- (a) the chargeable amount shall be such as is found in accordance with prescribed rules, and
- (b) sections 43(4) to (6) and 44 above, sections 45(4) to (6) and 46 above, or section 54(4) to (7) above (as the case may be) shall not apply.

(4) A chargeable amount found in accordance with rules prescribed under this section may be the same as or different from what it would be apart from the regulations.

(5) Rules prescribed under this section may be framed by reference to such factors as the Secretary of State thinks fit.

(6) Without prejudice to section 143(1) below, regulations under this section may contain different provision in relation to locally listed hereditaments whose rateable value exceeds, and those whose rateable value does not exceed, a prescribed figure; and a locally listed hereditament is a hereditament for the time being shown in a local non-domestic rating list.

(7) Regulations under this section in their application to a particular financial year (including regulations amending or revoking others) shall not be effective unless they come into force before 8 March in the preceding financial year.

(8) In making regulations under this section the Secretary of State shall have regard to the object of securing (so far as practicable) that the aggregate amount payable to him and all charging authorities by way of non-domestic rates as regards the financial year concerned is the same as it would in his opinion be likely to be apart from the regulations.

(9) For the purposes of this section relevant financial years are financial years beginning in 1990, 1991, 1992, 1993 and 1994.

58.—(1) In relation to any relevant period the Secretary of State may make regulations under this section.

Special provision
for 1995 onwards.

(2) The regulations may contain such provisions as are mentioned in subsection (3) below as regards any case which falls within a prescribed description and where—

- (a) as regards a hereditament or hereditaments the chargeable amount for a chargeable day falls to be determined under section 43, 45 or 54 above, and
- (b) the day falls within the relevant period concerned.

(3) The provisions are that—

- (a) the chargeable amount shall be such as is found in accordance with prescribed rules, and

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(b) sections 43(4) to (6) and 44 above, sections 45(4) to (6) and 46 above, or section 54(4) to (7) above (as the case may be) shall not apply.

(4) A chargeable amount found in accordance with rules prescribed under this section may be the same as or different from what it would be apart from the regulations.

(5) Rules prescribed under this section may be framed by reference to such factors as the Secretary of State thinks fit.

(6) Without prejudice to section 143(1) below, regulations under this section relating to a relevant period may contain different provision for different relevant financial years.

(7) Without prejudice to section 143(1) below, regulations under this section may contain different provision in relation to locally listed hereditaments whose rateable value exceeds, and those whose rateable value does not exceed, a prescribed figure; and a locally listed hereditament is a hereditament for the time being shown in a local non-domestic rating list.

(8) Regulations under this section in their application to a particular relevant period shall not be effective unless they come into force before 1 January immediately preceding the period; but this is without prejudice to the power to amend or revoke.

(9) In making regulations under this section the Secretary of State shall have regard to the object of securing (so far as practicable) that the aggregate amount payable to him and all charging authorities by way of non-domestic rates as regards a particular financial year is the same as it would in his opinion be likely to be apart from the regulations.

(10) For the purposes of this section—

(a) a relevant period is a period of five years beginning on any 1 April (other than 1 April 1990) on which lists must be compiled;

(b) a relevant financial year, as regards regulations relating to a relevant period, is a financial year falling within the period.

Contributions in aid.

59.—(1) Where a hereditament would be subject to the provisions of this Part but for the rules as to Crown exemption, and a contribution in aid of non-domestic rating is made in respect of the hereditament, the contribution shall be paid to the charging authority in whose area the hereditament is situated.

(2) But the Secretary of State may make regulations requiring such a contribution to be paid to him if it is made in respect of a hereditament falling within a prescribed description.

Pooling.

60. Schedule 8 below (which provides for the keeping of non-domestic rating accounts, and for sums to be paid to and by the Secretary of State) shall have effect.

Valuation officers.

61.—(1) The Commissioners of Inland Revenue shall appoint—

(a) a valuation officer for each charging authority, and

(b) the central valuation officer.

(2) The remuneration of, and any expenses incurred by, valuation officers in carrying out their functions under this Part (including the remuneration and expenses of persons, whether or not in the service of the Crown, employed to assist them) shall be paid out of money provided by Parliament.

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62. Schedule 9 below (which contains provisions about administration, including collection and recovery) shall have effect.

Administration.

63.—(1) The Secretary of State may make such regulations as he sees fit to deal with any case where a person dies and at any time before his death he was (or is alleged to have been) subject to a non-domestic rate.

Death.

(2) Nothing in the following provisions of this section shall prejudice the generality of subsection (1) above.

(3) The regulations may provide that where before his death a sum has become payable by the deceased but has not been paid his executor or administrator shall be liable to pay the sum and may deduct out of the assets and effects of the deceased any payments made (or to be made).

(4) The regulations may provide that where before his death a sum in excess of his liability has been paid (whether the excess arises because of his death or otherwise) and has not been repaid or credited his executor or administrator shall be entitled to the sum.

(5) The regulations may provide for the recovery of any sum which is payable under the regulations and is not paid.

(6) The regulations may provide that proceedings (whether by way of appeal under regulations under section 55 above or otherwise) may be instituted, continued or withdrawn by the deceased's executor or administrator.

Interpretation

64.—(1) A hereditament is anything which, by virtue of the definition of hereditament in section 115(1) of the 1967 Act, would have been a hereditament for the purposes of that Act had this Act not been passed.

Hereditaments.

(2) In addition, a right is a hereditament if it is a right to use any land for the purpose of exhibiting advertisements and—

- (a) the right is let out or reserved to any person other than the occupier of the land, or
- (b) where the land is not occupied for any other purpose, the right is let out or reserved to any person other than the owner of the land.

(3) The Secretary of State may make regulations providing that in prescribed cases—

- (a) anything which would (apart from the regulations) be one hereditament shall be treated as more than one hereditament;
- (b) anything which would (apart from the regulations) be more than one hereditament shall be treated as one hereditament.

(4) A hereditament is a relevant hereditament if it consists of property of any of the following descriptions—

- (a) lands;

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- (b) coal mines;
- (c) mines of any other description, other than a mine of which the royalty or dues are for the time being wholly reserved in kind;
- (d) any right of sporting (that is, any right of fowling, of shooting, of taking or killing game or rabbits, or of fishing) when severed from the occupation of the land on which the right is exercisable;
- (e) any right which is a hereditament by virtue of subsection (2) above.

(5) Subsection (6) below applies in the case of a hereditament provided and maintained by an authority mentioned in subsection (7) below for purposes connected with the administration of justice, police purposes or other Crown purposes.

(6) Any rules as to Crown exemption which would have applied apart from this subsection shall not—

- (a) detract from any duty to show the hereditament in a local or central non-domestic rating list,
- (b) prevent a person being subject to a non-domestic rate as regards the hereditament under section 43, 45 or 54 above, or
- (c) prevent the person being liable to pay in respect of the rate.

(7) The authorities are —

- (a) a county council,
- (b) a district council,
- (c) a London borough council,
- (d) the Common Council,
- (e) a metropolitan county police authority, and
- (f) the Northumbria Police Authority.

(8) A hereditament is non-domestic if either—

- (a) it consists entirely of property which is not domestic, or
- (b) it is a composite hereditament.

(9) A hereditament is composite if part only of it consists of domestic property.

(10) A hereditament shall be treated as wholly or mainly used for charitable purposes at any time if at the time it is wholly or mainly used for the sale of goods donated to a charity and the proceeds of sale of the goods (after any deduction of expenses) are applied for the purposes of a charity.

(11) In subsection (2) above “land” includes a wall or other part of a building and a sign, hoarding, frame, post or other structure erected or to be erected on land.

Owners and
occupiers.

65.—(1) The owner of a hereditament or land is the person entitled to possession of it.

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(2) Whether a hereditament or land is occupied, and who is the occupier, shall be determined by reference to the rules which would have applied for the purposes of the 1967 Act had this Act not been passed (ignoring any express statutory rules such as those in sections 24 and 46A of that Act).

(3) Subsections (1) and (2) above shall have effect subject to subsections (4) to (9) below.

(4) Regulations under section 64(3) above may include rules for ascertaining—

- (a) whether the different hereditaments or the one hereditament (as the case may be) shall be treated as occupied or unoccupied;
- (b) who shall be treated as the owner or occupier of the different hereditaments or the one hereditament (as the case may be).

(5) A hereditament which is not in use shall be treated as unoccupied if (apart from this subsection) it would be treated as occupied by reason only of there being kept in or on the hereditament plant, machinery or equipment—

- (a) which was used in or on the hereditament when it was last in use, or
- (b) which is intended for use in or on the hereditament.

(6) A hereditament shall be treated as unoccupied if (apart from this subsection) it would be treated as occupied by reason only of—

- (a) the use of it for the holding of public meetings in furtherance of a person's candidature at a parliamentary or local government election, or
- (b) if it is a house, the use of a room in it by a returning officer for the purpose of taking the poll in a parliamentary or local government election.

(7) In subsection (6) above "returning officer" shall be construed in accordance with section 24 or 35 of the Representation of the People Act 1983 (as the case may be). 1983 c. 2.

(8) A right which is a hereditament by virtue of section 64(2) above shall be treated as occupied by the person for the time being entitled to the right.

(9) A right of sporting shall be treated as occupied by the owner of the right, whether or not it is let; and "owner" here means the person who is entitled to receive rent (if the right is let) or to exercise the right to let (if the right is not let).

66.—(1) Property is domestic if—

- (a) it is used wholly for the purposes of living accommodation,
- (b) it is a yard, garden, outhouse or other appurtenance belonging to or enjoyed with property falling within paragraph (a) above,
- (c) it is a private garage used wholly or mainly for the accommodation of a private motor vehicle, or
- (d) it is private storage premises used wholly or mainly for the storage of articles of domestic use.

Domestic
property.

PART III

(2) But property is not domestic property if it is wholly or mainly used in the course of a business for the provision to individuals whose sole or main residence is elsewhere of accommodation for short periods together with domestic or other services or other benefits or facilities.

(3) A pitch for a caravan is domestic property if one or both of the following conditions is fulfilled—

(a) it is part of a site which is a protected site;

(b) it is occupied by a caravan which is the sole or main residence of an individual (construing sole or main residence in accordance with section 2 above).

(4) A mooring is domestic property if it is occupied by a boat which is the sole or main residence of an individual (construing sole or main residence in accordance with section 2 above).

(5) Property not in use is domestic if it appears that when next in use it will be domestic.

(6) In applying subsection (5) above no assumption may be made that a site which is not a protected site will become one.

1960 c. 62. (7) Whether anything is a caravan shall be construed in accordance with Part I of the Caravan Sites and Control of Development Act 1960.

1968 c. 52. (8) Whether a site is a protected site shall be construed in accordance with Part I of the Caravan Sites Act 1968.

(9) The Secretary of State may by order amend, or substitute another definition for, any definition of domestic property for the time being effective for the purposes of this Part.

Interpretation:
other provisions.

67.—(1) Unless the context otherwise requires, references to lists are to local and central non-domestic rating lists.

(2) Unless the context otherwise requires, references to valuation officers are to valuation officers for charging authorities and the central valuation officer.

(3) A right or other property is a hereditament on a particular day if (and only if) it is a hereditament immediately before the day ends.

(4) A hereditament is relevant, non-domestic, composite, unoccupied or wholly or partly occupied on a particular day if (and only if) it is relevant, non-domestic, composite, unoccupied or wholly or partly occupied (as the case may be) immediately before the day ends.

(5) For the purpose of deciding the extent (if any) to which a hereditament consists of domestic property on a particular day, or is exempt from local non-domestic rating on a particular day, the state of affairs existing immediately before the day ends shall be treated as having existed throughout the day.

(6) A person is the owner, or in occupation of all or part, of a hereditament on a particular day if (and only if) he is its owner or in such occupation (as the case may be) immediately before the day ends.

(7) A relevant provision applies on a particular day if (and only if) it applies immediately before the day ends; and for this purpose relevant provisions are sections 43(6), 45(6) and 47(2) above.

(8) For the purpose of deciding what is shown in a list for a particular day the state of the list as it has effect immediately before the day ends shall be treated as having been its state throughout the day; and "effect" here includes any effect which is retrospective by virtue of an alteration of the list.

PART III

(9) A hereditament shall be treated as shown in a central non-domestic rating list for a day if on the day it falls within a class of hereditament shown for the day in the list; and for this purpose a hereditament falls within a class on a particular day if (and only if) it falls within the class immediately before the day ends.

(10) A charity is an institution or other organisation established for charitable purposes only or any persons administering a trust established for charitable purposes only.

(11) The 1967 Act is the General Rate Act 1967.

1967 c. 9.

(12) Nothing in a private or local Act passed before this Act shall have the effect that a hereditament is exempt as regards non-domestic rating, or prevent a person being subject to a non-domestic rate, or prevent a person being designated or a description of hereditament being prescribed under section 53 above.

(13) This section and sections 64 to 66 above apply for the purposes of this Part.

PART IV

PRECEPTS AND LEVIES

Precepts

68.—(1) For each chargeable financial year, a precepting authority shall issue a precept or precepts in accordance with this section.

Precepts to be issued.

(2) A precept must be issued before 11 March in the financial year preceding that for which it is issued, but is not invalid merely because it is issued on or after that date.

(3) The precepting authority must secure (so far as practicable) that the total amount yielded by precepts issued by it for a financial year is sufficient to provide for the items mentioned in subsection (4) below, to the extent that they are not to be provided for by other means.

(4) The items are—

- (a) the expenditure the authority estimates it will incur in the year in performing its functions in the year (including an allowance for contingencies),
- (b) the payments it estimates it will make in the year in defraying outstanding expenditure incurred in any earlier financial year,
- (c) the expenditure it estimates it will incur and will have to meet in the next financial year before amounts to be yielded in respect of precepts for that year become sufficiently available, and
- (d) the amount it estimates it will pay in the year into a fund or funds it has established under paragraph 16 of Schedule 13 to the Local Government Act 1972.

1972 c. 70.

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(5) In estimating under subsection (4)(a) above a precepting authority which is a county council shall take into account the amount of any levy issued to it for the year but (except as provided by regulations under section 74 below) shall not anticipate a levy not issued.

Precepted
authorities.

69.—(1) A precept may only be issued to an appropriate charging authority.

(2) If the whole or part of a charging authority's area falls within a precepting authority's area, it is an appropriate charging authority in relation to the precepting authority to the extent of the area which so falls.

(3) A precepting authority must secure that such of its general expenses as are to be met by precepts are borne by its appropriate charging authorities (if more than one) in proportion.

(4) A precepting authority must secure that such of its special expenses as are to be met by precepts are borne by the appropriate charging authority to whose area or part the expenses concerned relate or by all such charging authorities (if more than one) in proportion.

(5) Proportions under subsection (3) above shall be determined by reference to the relevant population of each charging authority's area or (as the case may be) the part which falls within the precepting authority's area.

(6) Proportions under subsection (4) above shall be determined by reference to the relevant population of each area or part to which the expenses concerned relate.

(7) The relevant population in relation to an area or part shall be calculated by—

(a) taking the number of those members of the population of the area or part who fall within such description as is specified in regulations made by the Secretary of State, and

(b) making such adjustments (if any) by way of addition or subtraction (or both) as are specified in, or calculated in a manner specified in, the regulations.

(8) A precept may be issued to the same authority in respect of both general and special expenses of the precepting authority.

(9) A precept must state—

(a) whether it or any portion of it is issued in respect of general expenses,

(b) whether it or any portion of it is issued in respect of special expenses, and

(c) whether it or any portion of it is applicable to all or part of the area of the authority to which it is issued and, in the case of a part, what part.

General and
special expenses.

70.—(1) This section applies for the purposes of section 69 above.

(2) All the expenses of a county council are its general expenses except that—

(a) if it is the police authority for part only of its area its expenses as police authority are special expenses provided a resolution of the council to that effect is in force,

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- (b) provided a resolution of the council to the following effect is in force, its expenses needed to meet a levy issued to it are its special expenses or (if the resolution relates to some only of those expenses) those to which the resolution relates are its special expenses, and
- (c) if it is a Welsh county council whose library area consists of part of its administrative area, its expenses in exercising its functions as library authority in its library area are its special expenses.
- (3) Expenses which are special by virtue of a resolution under subsection (2)(a) above relate to the part of the council's area for which it is the police authority.
- (4) Expenses which are special by virtue of a resolution under subsection (2)(b) above relate to the part of the council's area in which the levying body carries out functions.
- (5) Expenses which are special by virtue of subsection (2)(c) above relate to the part of the council's administrative area which consists of its library area.
- (6) All the expenses of each of the following are its general expenses—
- (a) a metropolitan county police authority,
 - (b) the Northumbria Police Authority,
 - (c) a metropolitan county fire and civil defence authority, and
 - (d) the London Fire and Civil Defence Authority.
- (7) All the expenses of the Receiver for the Metropolitan Police District are his general expenses, except that his expenses relating to the metropolitan police courts and the probation system in the metropolitan police court area are his special expenses.
- (8) Expenses which are special by virtue of subsection (7) above relate to the metropolitan police court area.
- (9) All the expenses of the sub-treasurer of the Inner Temple are his general expenses, and all the expenses of the under-treasurer of the Middle Temple are his general expenses.
- (10) All the expenses of a parish or community council, the chairman of a parish meeting or charter trustees are general expenses.
- (11) "Library area" shall be construed in accordance with the Public Libraries and Museums Act 1964. 1964 c. 75.

71.—(1) An authority which has issued a precept or precepts for a financial year (originally or by way of substitute) may issue a precept or precepts in substitution. Substituted precepts.

(2) Any precept issued in substitution must be issued in accordance with sections 68 to 70 above, ignoring section 68(2) for this purpose.

(3) No precept may be issued in substitution if its amount would be greater than the amount of that for which it is substituted, except as provided by subsection (4) below.

(4) The amount of any precept issued in substitution may be greater than the amount of that for which it is substituted (the old precept) if the old precept has been quashed because of a failure to fulfil section 68(3) or 69(3) or (4) above.

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(5) Where an authority issues a precept in substitution (a new precept) anything paid to it by reference to the precept for which it is substituted (the old precept) shall be treated as paid by reference to the new precept.

(6) But if the amount of the old precept exceeds that of the new precept, the following shall apply as regards anything paid if it would not have been paid had the amount of the old precept been the same as that of the new precept—

- (a) it shall be repaid if the charging authority by whom it was paid so requires;
- (b) in any other case it shall (as the precepting authority determines) either be repaid or be credited against any subsequent liability of the charging authority in respect of any precept of the precepting authority.

Statement as to
payment of
precept.

72.—(1) A precept (whether original or by way of substitute) must state—

- (a) whether the authority to which it is issued needs to pay anything in respect of the amount of the precept, and
- (b) if it does, what it needs to pay to the issuing authority.

(2) The Secretary of State may make regulations providing that prescribed matters are, and other prescribed matters are not, to be taken into account by an authority in preparing a statement under this section.

(3) The matters which may be prescribed include the effects of sections 37(5) and 71(5) and (6) above and of regulations under section 99 below.

Information.

73.—(1) If the Secretary of State so requires by regulations, a charging authority shall supply prescribed information within a prescribed period to any precepting authority which has power to issue a precept to the charging authority.

(2) Where regulations under Schedule 2 or 9 below impose a duty on a charging authority to supply information to any person, they may also require any appropriate precepting authority to supply the charging authority with prescribed information if the Secretary of State considers it to be information the charging authority needs in order to fulfil its duty.

(3) For the purposes of subsection (2) above an authority is an appropriate precepting authority in relation to a charging authority if it has power to issue a precept to the charging authority.

Levies

Levies.

74.—(1) In this section “levying body” means any body which—

- (a) is established by or under an Act,
- (b) apart from section 117 below would have in respect of the financial year beginning in 1990 power (conferred by or under an Act passed before, or in the same session as, this Act) to issue a precept to, make a levy on or have its expenses paid by a county council or charging authority, and
- (c) is not a precepting authority, combined police authority, combined fire authority, magistrates’ courts committee or probation committee.

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(2) Whereas a levying body has (by virtue of section 117 below) no such power under the Act concerned in respect of a chargeable financial year, the Secretary of State may make regulations conferring on each levying body power to issue to the council concerned and in accordance with the regulations a levy (to be so called) in respect of any chargeable financial year.

(3) The regulations may include provision—

- (a) as to when levies are to be issued;
- (b) imposing a maximum limit on levies;
- (c) as to apportionment where a body issues levies to more than one council;
- (d) conferring a power to issue levies by way of substitute for others;
- (e) as to the payment (in instalments or otherwise) of amounts in respect of which levies are issued;
- (f) conferring a right to interest on anything unpaid.

(4) The regulations may include provision—

- (a) that a county council issuing a precept or precepts under this Act (originally or by way of substitute) may anticipate a levy;
- (b) that a charging authority making calculations under section 95 below (originally or by way of substitute) may anticipate a levy;
- (c) as to the treatment as special expenses of amounts so anticipated;
- (d) as to the treatment of any levy actually issued.

(5) The regulations may include—

- (a) provision equivalent to anything in section 37 above or in sections 68 to 72 above (subject to such modifications as the Secretary of State thinks fit);
- (b) provision amending or adapting any provision of this Act in consequence of any provision included under subsection (4) above.

(6) In this section "Act" includes a private or local Act.

75.—(1) This section applies as regards any body—

Special levies.

- (a) which has no power to levy a rate by virtue of regulations under section 118 below, or
- (b) whose power to levy a rate is modified by regulations under that section.

(2) The Secretary of State may make regulations conferring on any such body power to issue in respect of prescribed chargeable financial years and in accordance with the regulations—

- (a) a special levy (to be so called) to such charging authority as is prescribed as regards the body concerned, or
- (b) special levies (to be so called) to such charging authorities as are prescribed as regards the body concerned.

(3) The regulations may include provision as to the body's expenditure, or the proportion of its expenditure, which may be met from the proceeds of a special levy or special levies.

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(4) The regulations may include provision—

- (a) as to when special levies are to be issued;
- (b) imposing a maximum limit on special levies;
- (c) as to apportionment where a body issues special levies to more than one charging authority;
- (d) conferring a power to issue special levies by way of substitute for others;
- (e) as to the payment (in instalments or otherwise) of amounts in respect of which special levies are issued;
- (f) conferring a right to interest on anything unpaid.

(5) The regulations may include provision requiring a charging authority to treat as special expenses any expenses needed to meet a special levy issued to it.

(6) The regulations may include provision—

- (a) that a charging authority making calculations under section 95 below (originally or by way of substitute) may anticipate a special levy;
- (b) as to the treatment as special expenses of amounts so anticipated;
- (c) as to the treatment of any special levy actually issued.

(7) The regulations may include—

- (a) provision equivalent to anything in section 37 above or in sections 68 to 72 above (subject to such modifications as the Secretary of State thinks fit);
- (b) provision amending or adapting any provision of this Act in consequence of any provision included under subsection (6) above.

PART V

GRANTS

Introduction

Interpretation.

76.—(1) This section applies for the purposes of this Part.

(2) Each of the following is a receiving authority—

- (a) a charging authority, and
- (b) in the application of this Part to Wales, a county council.

(3) Each of the following is a notifiable authority (and is accordingly entitled to receive certain information and copies of certain documents as provided in this Part)—

- (a) a charging authority,
- (b) a county council,
- (c) a metropolitan county police authority,
- (d) the Northumbria Police Authority,
- (e) a metropolitan county fire and civil defence authority,
- (f) the London Fire and Civil Defence Authority, and
- (g) the Receiver for the Metropolitan Police District.

(4) A specified body is any body which provides services for local authorities and is specified in regulations made by the Secretary of State under this subsection; but a body is not a specified body as regards a financial year unless the regulations specifying it are in force before the year begins.

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(5) Before exercising the power to make regulations under subsection (4) above the Secretary of State shall consult such representatives of local government as appear to him to be appropriate.

(6) Any regulations made under section 2(7) of the Local Government Act 1974 or section 56(9) of the Local Government, Planning and Land Act 1980 shall have effect for the purposes of subsection (4) above as if they had been made under it.

1974 c. 7.

1980 c. 65.

77.—(1) The Secretary of State may serve on a charging authority or precepting authority a notice requiring it to supply to him such information as is specified in the notice and required by him for the purpose of deciding whether to exercise his powers, and how to perform his functions, under this Part.

Information.

(2) The authority shall supply the information required if it is in its possession or control, and shall do so in such form and manner, and at such time, as the Secretary of State specifies in the notice.

(3) If an authority fails to comply with subsection (2) above the Secretary of State may assume the information required to be such as he sees fit if he informs the authority concerned of his intention to make the assumption; and in such a case he may decide in accordance with the assumption whether to exercise his powers, and how to perform his functions, under this Part.

(4) In deciding whether to exercise his powers, and how to perform his functions, under this Part the Secretary of State may also take into account any other information available to him, whatever its source and whether or not obtained under a provision contained in or made under this or any other Act.

(5) This section shall have effect before 1 April 1990 as if after “precepting authority” in subsection (1) there were inserted “or the Inner London Education Authority”.

Revenue support grant

78.—(1) For each chargeable financial year the Secretary of State shall pay a grant (to be called revenue support grant) to receiving authorities and specified bodies in accordance with this Part.

Revenue support grant.

(2) For each chargeable financial year the Secretary of State shall make a determination under this section.

(3) A determination shall state—

- (a) the amount of the grant for the year,
- (b) what amount of the grant he proposes to pay to receiving authorities, and
- (c) what amount of the grant he proposes to pay to each specified body.

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(4) Different amounts may be stated under subsection (3)(c) above in relation to different specified bodies.

(5) Before making a determination the Secretary of State shall—

(a) consult such representatives of local government as appear to him to be appropriate, and

(b) obtain the Treasury's consent.

(6) A determination shall be specified in a report (to be called a revenue support grant report) and the report shall be laid before the House of Commons.

(7) As soon as is reasonably practicable after the report is laid before the House of Commons the Secretary of State shall send a copy of it to each notifiable authority.

Effect of report's approval.

79.—(1) This section applies where in accordance with section 78 above a determination as regards revenue support grant has been made for a financial year and specified in a report which has been laid before the House of Commons.

(2) If the report is approved by resolution of the House of Commons the Secretary of State shall pay the amount stated in the determination as the amount of the revenue support grant for the year.

(3) The Secretary of State shall pay to receiving authorities the amount stated in the determination under section 78(3)(b) above, and shall pay to specified bodies the aggregate of the amounts stated in the determination under section 78(3)(c) above.

(4) The amount falling to be paid to receiving authorities shall be distributed among and paid to them in accordance with sections 80 to 83 below or sections 80 to 84 below (as the case may be).

(5) The amount to be paid to a particular specified body shall be the amount stated in relation to it under section 78(3)(c) above.

(6) Where a sum falls to be paid to a specified body by way of revenue support grant it shall be paid at such time, or in instalments of such amounts and at such times, as the Secretary of State determines with the Treasury's consent; and any such time may fall within or after the financial year concerned.

Distribution reports.

80.—(1) The Secretary of State shall make a report containing the basis on which he proposes (subject to any report under section 84 below) to distribute among receiving authorities those amounts of revenue support grant which fall to be paid to such authorities under this Part.

(2) Before making the report the Secretary of State shall notify to such representatives of local government as appear to him to be appropriate the general nature of its intended contents.

(3) The report shall be laid before the House of Commons.

(4) As soon as is reasonably practicable after the report is laid before the House of Commons the Secretary of State shall send a copy of it to each notifiable authority.

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(5) After making the report the Secretary of State may make a further report or reports, and any such report—

- (a) may replace any previous report under this section, or
- (b) may amend any previous report under this section.

(6) A report under subsection (5)(a) above shall contain a revised basis on which the Secretary of State proposes (subject to any report under section 84 below) to distribute the amounts mentioned in subsection (1) above.

(7) A report under subsection (5)(b) above shall contain amendments to the basis of distribution contained in the report which it amends.

(8) Subsections (2) to (4) above shall apply to any report under subsection (5) above as they apply to one under subsection (1) above.

(9) A report under this section shall state the day on which it is to come into force and the first financial year for which it is to operate.

81.—(1) This section applies where in accordance with section 80 above a report has been made and laid before the House of Commons.

Effect of
distribution
reports.

(2) If the report is approved by resolution of the House of Commons it shall come into force on the day stated in the report.

(3) If the report is made under section 80(1) or (5)(a), on and after the day it comes into force the basis it contains shall have effect as regards revenue support grant payable for all chargeable financial years beginning with the first financial year for which it states it is to operate; but this is subject to the effect of any subsequent report under section 80(5).

(4) If the report is made under section 80(5)(b), on and after the day it comes into force the basis it amends read subject to the amendments shall have effect as regards revenue support grant payable for all chargeable financial years beginning with the first financial year for which it states it is to operate; but this is subject to the effect of any subsequent report under section 80(5).

82.—(1) As soon as is reasonably practicable after a revenue support grant report for a financial year has been approved by resolution of the House of Commons, the Secretary of State shall calculate what sum falls to be paid to each receiving authority by way of revenue support grant for the year in accordance with the basis of distribution for the time being effective (as regards grant payable for the year) under section 81 above.

Calculation of
sums payable.

(2) At any time after making a calculation under subsection (1) above the Secretary of State may make one further calculation of what sum falls to be paid to each receiving authority by way of revenue support grant for the year in accordance with the basis of distribution for the time being effective (as regards grant payable for the year) under section 81 above.

(3) If the Secretary of State decides that he will leave out of account information received by him after a particular date in making a calculation under subsection (1) or (2) above the calculation shall be made accordingly.

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(4) Subsection (3) above applies only if the Secretary of State informs each notifiable authority in writing of his decision and of the date concerned; but he may do this at any time before the calculation is made under this section (whether before or after a determination is made for the year under section 78 above).

(5) As soon as is reasonably practicable after making a calculation under subsection (1) or (2) above the Secretary of State shall—

- (a) inform each receiving authority of the sum he calculates falls to be paid to it by way of revenue support grant for the year, and
- (b) inform each authority falling within section 76(3)(b) to (g) above of the sum he calculates falls to be paid by way of revenue support grant for the year to any receiving authority to which it has power to issue a precept.

(6) Subsection (5)(b) above shall not have effect in the application of this Part to Wales.

Payment of sums.

83.—(1) Where a calculation is made under section 82(1) above the Secretary of State shall pay to each receiving authority any sum calculated as falling to be paid to it.

(2) The sum shall be paid in instalments of such amounts, and at such times in the financial year concerned, as the Secretary of State determines with the Treasury's consent.

(3) Where a calculation is made under section 82(2) above and the sum it shows as falling to be paid to a receiving authority exceeds that shown as falling to be paid to it by the calculation for the financial year concerned under section 82(1) above, the Secretary of State shall pay to the authority a sum equal to the difference.

(4) The sum shall be paid at such time, or in instalments of such amounts and at such times, as the Secretary of State determines with the Treasury's consent; but any such time must fall after the end of the financial year concerned.

(5) Where a calculation is made under section 82(2) above and the sum it shows as falling to be paid to a receiving authority is less than that shown as falling to be paid to it by the calculation for the financial year concerned under section 82(1) above, a sum equal to the difference shall be paid by the authority to the Secretary of State on such day after the end of the financial year concerned as he may specify; and if it is not paid on or before that day it shall be recoverable in a court of competent jurisdiction.

**Special provision
for transitional
years.**

84.—(1) The Secretary of State may lay before the House of Commons a report containing provision about—

- (a) the calculation under section 82(1) above for a transitional year, and

(b) any calculation under section 82(2) above for such a year; and the following provisions of this section shall apply to the report (if any).

(2) The report shall provide that the basis of distribution in accordance with which such a calculation is to be made shall be the basis which would have applied (apart from the report) but read subject to adjustments set out in the report.

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(3) The report—

- (a) must be laid before the beginning of the first transitional year;
- (b) must contain provision for each transitional year;
- (c) may make different provision for different transitional years or different authorities.

(4) As soon as is reasonably practicable after the report is laid before the House of Commons the Secretary of State shall send a copy of it to each notifiable authority.

(5) If the report has been laid in accordance with this section, and is approved by resolution of the House of Commons, subsection (6) below shall have effect as regards a transitional year.

(6) The basis of distribution in accordance with which—

- (a) the calculation under section 82(1) above, and
- (b) any calculation under section 82(2) above,

is to be made for the year shall be the basis which would have applied (apart from the report) but read subject to adjustments set out for the year in the report.

(7) Subject to subsection (6) above, the provisions of this Act relating to any such calculation shall apply as they apply to a calculation made, or falling to be made, in accordance with an unadjusted basis.

(8) In deciding whether to lay a report, and in deciding its contents, the Secretary of State may make such assumptions and estimates as he sees fit as to income, expenditure, balances and other matters (financial or otherwise) in relation to receiving authorities and other bodies, whether as regards any transitional year or otherwise.

Additional grant

85.—(1) This section applies where a revenue support grant report for a chargeable financial year has been approved by the House of Commons, and before the year ends the Secretary of State forms the view that fresh circumstances affecting the finances of local authorities have arisen since the approval. Additional grant.

(2) For the year concerned the Secretary of State may pay a grant (to be called additional grant) to receiving authorities in accordance with this Part.

(3) Where the Secretary of State proposes to pay additional grant for a financial year he shall make a determination under this section.

(4) A determination shall state—

- (a) the amount of the grant for the year, and
- (b) the basis on which he proposes to distribute it among receiving authorities.

(5) Before making a determination the Secretary of State shall obtain the Treasury's consent.

(6) A determination shall be specified in a report and the report shall be laid before the House of Commons.

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(7) As soon as is reasonably practicable after the report is laid before the House of Commons the Secretary of State shall send a copy of it to each notifiable authority.

Effect of report's approval.

86.—(1) This section applies where in accordance with section 85 above a determination as regards additional grant has been made for a financial year and specified in a report which has been laid before the House of Commons.

(2) If the report is approved by resolution of the House of Commons—

(a) the Secretary of State shall pay the amount stated in the determination as the amount of the additional grant for the year, and

(b) the amount shall be distributed on the basis stated in the determination.

(3) Where a sum falls to be paid to a receiving authority by way of additional grant it shall be paid at such time, or in instalments of such amounts and at such times, as the Secretary of State determines with the Treasury's consent; and any such time may fall within or after the financial year concerned.

(4) The Secretary of State may direct a receiving authority to which he pays any sum by way of additional grant to pay all or such part of the sum as he may specify to such relevant precepting authority or authorities as he may specify.

(5) For the purposes of subsection (4) above an authority is a relevant precepting authority in relation to a receiving authority if it has power to issue a precept to the receiving authority.

(6) Subsections (4) and (5) above shall not have effect in the application of this Part to Wales.

*Transport grants***Transport grants.**

87.—(1) The Secretary of State shall pay to a defined council a grant for a chargeable financial year if he accepts that at least some of its estimated relevant transport expenditure for the year is appropriate to be taken into account for the purposes of this section.

(2) The amount of the grant shall be a proportion of so much of the council's estimated relevant transport expenditure for the year as he accepts under subsection (1) above.

(3) The proportion shall be such as is determined for the year by the Secretary of State and shall be the same as regards each council to which a grant is paid for the year under this section.

(4) A grant under this section shall be paid at such time, or in instalments of such amounts and at such times, as the Secretary of State thinks fit; and any such time need not fall within the financial year concerned.

(5) In deciding whether to accept any of a council's estimated relevant transport expenditure for a financial year under subsection (1) above, and how much of it to accept, the Secretary of State may have regard to the following matters (in addition to any other matters he thinks fit)—

- (a) whether the council's relevant transport expenditure for any preceding financial year or years is greater or smaller than its estimated relevant transport expenditure for that year or those years;

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- (b) the extent (if any) to which it is greater or smaller.

(6) The total accepted under subsection (1) above as regards all defined councils for a particular financial year shall not exceed such amount as is approved by the Treasury for the year.

88.—(1) This section applies for the purposes of section 87 above.

Transport grants:
supplementary.

(2) Each of the following is a defined council—

- (a) a county council,
- (b) a metropolitan district council,
- (c) a London borough council, and
- (d) the Common Council.

(3) A council's relevant transport expenditure for a financial year is the expenditure it calculates it incurred in the year in connection with—

- (a) highways or the regulation of traffic (where the council is English), or
- (b) highways, the regulation of traffic or public transport (where the council is Welsh).

(4) But in making the calculation expenditure shall be left out of account unless, at the time the calculation is made, it is prescribed expenditure for the purposes of Part VIII of the Local Government, Planning and Land Act 1980. 1980 c. 65.

(5) A council's estimated relevant transport expenditure for a financial year is the expenditure it estimates it will incur in the year in connection with—

- (a) highways or the regulation of traffic (where the council is English), or
- (b) highways, the regulation of traffic or public transport (where the council is Welsh).

(6) But in making the estimate expenditure shall be left out of account unless, at the time the estimate is made, it is prescribed expenditure for the purposes of Part VIII of the Local Government, Planning and Land Act 1980.

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FUNDS

Funds

89.—(1) Every charging authority shall establish, and then maintain, a fund (to be called its collection fund) in accordance with this Part. Collection funds.

(2) An authority's collection fund must be established on 1 April 1990.

(3) Section 101(1)(b) of the Local Government Act 1972 (delegation) shall not apply as regards the functions of an authority in relation to its collection fund. 1972 c. 70.

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(4) Any sum paid into an authority's collection fund shall be used in settlement of payments which are to be met from that fund or of transfers which are to be made from it.

(5) If not immediately required for the purpose of settling those payments or transfers, the sum shall be held, invested or otherwise used in such manner as may be prescribed by regulations made by the Secretary of State.

Payments to and
from collection
funds.

90.—(1) The following shall be paid into the collection fund of an English charging authority—

- (a) sums received by the authority in respect of its community charges (but not sums received by way of penalty),
- (b) sums received by the authority in respect of any non-domestic rate under this Act,
- (c) sums received by the authority under paragraph 5(10) of Schedule 8 below, regulations made under paragraph 6(5) of that Schedule, or paragraph 9 of that Schedule,
- (d) sums received by the authority by way of revenue support grant,
- (e) sums received by the authority by way of additional grant,
- (f) sums received by the authority as interest on sums held or lent in accordance with section 89(5) above, and
- (g) any other sums which the Secretary of State specifies are to be paid into an English charging authority's collection fund.

(2) The following payments shall be met from the collection fund of an English charging authority—

- (a) payments to be made by the authority in respect of the amount of any precept issued under this Act or in respect of interest on such an amount,
- (b) payments to be made by the authority to the Secretary of State under paragraph 5 of Schedule 8 below,
- (c) payments to be made by the authority to the Secretary of State under section 83(5) above,
- (d) payments to be made by the authority to another authority under a direction under section 86(4) above,
- (e) payments to be made by the authority to another person in repaying, under regulations under this Act, excess receipts by way of community charges or of non-domestic rates,
- (f) payments to be made by the authority to another person in respect of interest on repayments of excess receipts by way of non-domestic rates, and
- (g) any other payments which are to be made by the authority to another person and which the Secretary of State specifies are to be met from an English charging authority's collection fund.

(3) The following shall be paid into the collection fund of a Welsh charging authority —

- (a) sums received by the authority in respect of its community charges (but not sums received by way of penalty),
- (b) sums received by the authority as interest on sums held or lent in accordance with section 89(5) above, and

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- (c) any other sums which the Secretary of State specifies are to be paid into a Welsh charging authority's collection fund.
- (4) The following payments shall be met from the collection fund of a Welsh charging authority —
- (a) payments to be made by the authority in respect of the amount of any precept issued under this Act or in respect of interest on such an amount,
 - (b) payments to be made by the authority to another person in repaying, under regulations under this Act, excess receipts by way of community charges, and
 - (c) any other payments which are to be made by the authority to another person and which the Secretary of State specifies are to be met from a Welsh charging authority's collection fund.
- (5) The power to specify under this section—
- (a) includes power to revoke or amend a specification made under the power;
 - (b) may be exercised differently in relation to different authorities.

91.—(1) For the purposes of this section each of the following is a relevant authority— General funds.

- (a) a district council,
- (b) a London borough council, and
- (c) the Council of the Isles of Scilly.

(2) Every relevant authority shall establish, and then maintain, a fund (to be called its general fund) in accordance with this Part.

(3) An authority's general fund must be established on 1 April 1990.

(4) Any sum received by a relevant authority after 31 March 1990 shall be paid into its general fund; but this does not apply to a sum which is to be paid into its collection fund or a trust fund.

(5) Any payment to be made by a relevant authority after 31 March 1990 shall be met from its general fund; but this does not apply to a payment which is to be met from its collection fund or a trust fund.

(6) After 31 March 1990 no district council or London borough council shall be required to keep a general rate fund; and the assets held in the general rate fund of such an authority immediately before 1 April 1990 (other than assets forming part of a trust fund) shall be transferred to its general fund on that date.

(7) After 31 March 1990 the Council of the Isles of Scilly shall not be required to keep any fund known as its general fund and required (apart from this subsection) to be kept under any order made under section 265 of the Local Government Act 1972; and the assets held in that fund immediately before 1 April 1990 (other than assets forming part of a trust fund) shall be transferred on that date to the Council's general fund established under this section.

1972 c. 70.

92.—(1) In this section "relevant authority" has the same meaning as in section 91 above.

General funds:
supplementary.

PART VI**(2) The Secretary of State may make regulations—**

- (a) about the relationship of a relevant authority's general fund to its other funds;
- (b) providing for assets falling within a relevant authority's general fund to be held in separate funds within the general fund.

(3) The regulations may provide that any fund established by a relevant authority on or after 1 April 1990, other than its collection fund or a trust fund, is to be maintained as a separate fund falling within its general fund.

(4) The regulations may provide that such assets as are transferred to a relevant authority's general fund under section 91(6) or (7) above and fall within a prescribed description shall be held in separate funds falling within the general fund; and the number and composition of the separate funds shall be such as are prescribed.

The City fund.

93.—(1) The Common Council shall establish, and then maintain, a fund (to be called the City fund) in accordance with this Part.

(2) The City fund must be established on 1 April 1990.

(3) Any sum received by the Common Council after 31 March 1990 shall be paid into the City fund if it is not a sum which is to be paid into its collection fund or a trust fund and—

- (a) it is received in respect of the general rate, the poor rate or the St. Botolph tithe rate, or
- (b) it would have fallen to be credited in aid of any of those rates had this Act not been passed.

(4) Any payment to be made by the Common Council after 31 March 1990 shall be met from the City fund if it is not a payment which is to be met from its collection fund or a trust fund and if, had this Act not been passed, it would have fallen to be met out of—

- (a) the general rate, the poor rate or the St. Botolph tithe rate, or
- (b) sums which, had this Act not been passed, would have fallen to be credited in aid of any of those rates.

(5) No sum shall be paid into, and no payment shall be met from, the City fund except in accordance with subsections (3) and (4) above.

(6) The assets of the Common Council subsisting immediately before 1 April 1990 shall be transferred to the City fund on that date if they are assets—

- (a) subsisting in respect of the general rate, the poor rate or the St. Botolph tithe rate, or
- (b) representing sums credited in aid of any of those rates.

The City: further provisions.

94.—(1) The Secretary of State may make regulations—

- (a) about the relationship of the City fund to other funds of the Common Council;
- (b) providing for assets falling within the City fund to be held in separate funds within the City fund;
- (c) prohibiting the Common Council from establishing funds.

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(2) The regulations may provide that any fund established by the Common Council on or after 1 April 1990, and falling within a prescribed description, is to be maintained as a separate fund falling within the City fund.

(3) The regulations may provide that such assets as are transferred to the City fund under section 93(6) above and fall within a prescribed description shall be held in separate funds falling within the City fund; and the number and composition of the separate funds shall be such as are prescribed.

(4) The regulations may provide that the Common Council shall not establish or maintain on or after 1 April 1990 a fund into which both the following must or may be paid—

- (a) sums which must be paid into the City fund under section 93(3) above, and
- (b) other sums.

(5) The regulations may provide that the Common Council shall not establish or maintain on or after 1 April 1990 a fund from which both the following must or may be met—

- (a) payments which must be met from the City fund under section 93(4) above, and
- (b) other payments.

Calculations

95.—(1) In relation to each chargeable financial year a charging authority shall make the calculations required by this section.

Calculations to be made by authorities.

(2) The authority must calculate the aggregate of —

- (a) the expenditure it estimates it will incur in the year in performing its functions in the year (including an allowance for contingencies),
- (b) the payments it estimates it will make in the year in defraying outstanding expenditure already incurred,
- (c) the expenditure it estimates it will incur and will have to meet in the next financial year before amounts to be transferred as regards that year from its collection fund to its general fund or to the City fund (as the case may be) become sufficiently available, and
- (d) the amount it estimates it will pay in the year into a fund or funds it has established under paragraph 16 of Schedule 13 to the Local Government Act 1972.

1972 c. 70.

(3) The authority must calculate the aggregate of the sums it estimates will be paid in the year into its general fund or into the City fund (as the case may be).

(4) If the aggregate calculated under subsection (2) above exceeds that calculated under subsection (3) above the authority must calculate the amount equal to the difference.

(5) In making the calculation under subsection (2) above the authority must ignore payments which must be met from its collection fund under section 90(2) or (4) above or from a trust fund.

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(6) In estimating under subsection (2)(a) above the authority shall take into account the amount of any levy or special levy issued to it for the year but (except as provided by regulations under section 74 or 75 above) shall not anticipate a levy or special levy not issued.

(7) In making the calculation under subsection (3) above the authority must ignore sums which have been or are to be transferred from its collection fund to its general fund or to the City fund (as the case may be).

(8) The Secretary of State may by regulations do one or both of the following—

(a) alter the constituents of any calculation to be made under subsection (2) or (3) above (whether by adding, deleting or amending items);

(b) alter the rules governing the making of any calculation under subsection (2) or (3) above (whether by deleting or amending subsections (5) to (7) above, or any of them, or by adding other provisions, or by a combination of those methods).

(9) Calculations to be made in relation to a particular financial year under this section must be made before 11 March in the preceding financial year, but they are not invalid merely because they are made on or after that date.

**Substitute
calculations.**

96.—(1) An authority which has made calculations in accordance with section 95 above in relation to a financial year (originally or by way of substitute) may make calculations in substitution in relation to the year in accordance with that section, ignoring section 95(9) for this purpose.

(2) None of the substitute calculations shall have any effect if the amount calculated under section 95(4) would exceed that so calculated in the previous calculations.

(3) But subsection (2) above shall not apply if the previous calculation under section 95(4) has been quashed because of a failure to comply with section 95 in making the calculation.

Transfers between funds

**Principal transfers
between funds.**

97. An authority which has made calculations in accordance with section 95 above (originally or by way of substitute) shall transfer from its collection fund to its general fund or to the City fund (as the case may be) an amount equal to that calculated (or last calculated) under section 95(4).

**Other transfers
between funds.**

98.—(1) An English charging authority which receives a sum by way of additional grant shall transfer from its collection fund to its general fund or to the City fund (as the case may be) an amount found by deducting B from A; and the Secretary of State may by direction specify the time at which the transfer is to be made.

(2) A is the sum received by the authority by way of additional grant, and B is such of that sum as the authority pays under a direction under section 86(4) above.

(3) Regulations under section 89(5) above may include provision that— PART VI

- (a) any sum to which they relate shall be transferred from an authority's collection fund to its general fund or to the City fund (as the case may be);
- (b) the sum so transferred shall be held, invested or otherwise used in such manner as may be prescribed;
- (c) a sum equal to the sum transferred shall be transferred to the authority's collection fund from its general fund or from the City fund (as the case may be);
- (d) together with the sum so transferred an additional sum representing interest and calculated in a prescribed manner shall be transferred.

(4) If the Secretary of State directs it to do so, a charging authority shall transfer from its collection fund to its general fund or to the City fund (as the case may be) such an amount as is specified in, or calculated in a manner specified in, the direction; and the transfer shall be made at such time as is specified in the direction.

(5) If the Secretary of State directs it to do so, a charging authority shall transfer to its collection fund from its general fund or from the City fund (as the case may be) such an amount as is specified in, or calculated in a manner specified in, the direction; and the transfer shall be made at such time as is specified in the direction.

(6) Different directions may be given to different authorities under subsection (1), (4) or (5) above.

Regulations about funds

99.—(1) The Secretary of State may make regulations about the discharge of the following liabilities of a charging authority— Regulations about funds.

- (a) the liability to pay anything from its collection fund in respect of any precept, and
- (b) the liability to transfer anything from its collection fund under section 97 above.

(2) The regulations may include provision—

- (a) that anything falling to be paid or transferred must be paid or transferred within a prescribed period,
- (b) that anything falling to be paid or transferred must be paid or transferred in instalments of such amounts, and at such times, as are determined by the charging authority in accordance with prescribed rules,
- (c) that the charging authority must inform any precepting authorities when instalments will be paid and how they are to be calculated,
- (d) that if an instalment is not paid to a precepting authority in accordance with the regulations, it is to be entitled to interest on the amount of the instalment at such rate as may be prescribed,
- (e) that the charging authority must calculate at a prescribed time and in accordance with prescribed rules the amount available in its collection fund to meet the liabilities mentioned in subsection (1) above,

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- (f) that any deficiency in or excess of such an amount is to be borne as between, or shared among, the charging authority and precepting authorities in accordance with prescribed rules,
- (g) that the charging authority must inform any precepting authorities of the effects of any calculation and rules mentioned in paragraphs (e) and (f) above,
- (h) as to the circumstances in which the charging authority is to be treated as having discharged the liabilities mentioned in subsection (1) above,
- (i) as to the recovery (by deduction or otherwise) of any excess amount paid by the charging authority to any precepting authority in purported discharge of the liability mentioned in subsection (1)(a) above, and
- (j) as to the transfer back of any excess amount transferred by the charging authority in purported discharge of the liability mentioned in subsection (1)(b) above.

(3) The Secretary of State may make regulations requiring transfers between funds, or adjustments or assumptions, to be made to take account of any substitute calculation under section 95(4) above.

(4) The Secretary of State may make regulations providing that sums standing to the credit of a charging authority's collection fund at any time in a financial year must not exceed a total to be calculated in such manner as may be prescribed.

(5) Regulations under subsection (4) above in their application to a particular financial year (including regulations amending others) shall not be effective unless they come into force before 1 January in the preceding financial year; but this does not affect regulations revoking others.

PART VII**LIMITATION OF CHARGES ETC**

Power to
designate
authorities.

100.—(1) As regards a chargeable financial year the Secretary of State may designate a charging authority if in his opinion—

- (a) the amount calculated by it in relation to the year under section 95(4) above is excessive, or
- (b) there is an excessive increase in the amount so calculated over the amount calculated by it in relation to the preceding financial year under section 95(4).

(2) As regards a chargeable financial year the Secretary of State may designate a relevant precepting authority if in his opinion—

- (a) the aggregate amount of precepts issued by it for the year is excessive, or
- (b) there is an excessive increase in that aggregate over the aggregate amount of precepts issued by it for the preceding financial year.

(3) For the purposes of this Part each of the following is a relevant precepting authority—

- (a) a county council,
- (b) a metropolitan county police authority,

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- (c) the Northumbria Police Authority,
- (d) a metropolitan county fire and civil defence authority, and
- (e) the London Fire and Civil Defence Authority.

(4) A decision whether to designate an authority shall be made in accordance with principles determined by the Secretary of State and, in the case of an authority falling within any of the classes specified in subsection (5) below, those principles shall be the same either for all authorities falling within that class or for all of them which respectively have and have not been designated under this Part as regards the preceding financial year.

(5) The classes are—

- (a) county councils,
- (b) councils of metropolitan districts,
- (c) councils of non-metropolitan districts,
- (d) councils of inner London boroughs,
- (e) councils of outer London boroughs,
- (f) metropolitan county police authorities and the Northumbria Police Authority, and
- (g) metropolitan county fire and civil defence authorities.

(6) In construing subsection (1) above any calculation for which another has been substituted at the time designation is proposed shall be ignored.

(7) In construing subsection (2) above any precept for which another has been substituted at the time designation is proposed shall be ignored.

101.—(1) An English authority shall not be designated under section 100 above as regards a financial year unless the amount calculated by it in relation to the year under section 95(4) above or the aggregate amount of precepts issued by it for the year (as the case may be) is equal to or greater than £15 million or such greater sum not exceeding £35 million as the Secretary of State may specify by order.

Restriction on
power to
designate.

(2) A Welsh authority shall not be designated under section 100 above as regards a financial year unless—

- (a) the Secretary of State has informed it of the sum he calculates under section 82(1) above as falling to be paid to it by way of revenue support grant for the year,
- (b) he has informed it of the amount he calculates in relation to it for the year under paragraph 12 of Schedule 8 below, and
- (c) the aggregate of the amounts mentioned in subsection (3) below is equal to or greater than £15 million or such greater sum not exceeding £35 million as he may specify by order.

(3) The amounts are—

- (a) the amount calculated by the authority in relation to the year under section 95(4) above or the aggregate amount of precepts issued by it for the year (as the case may be),
- (b) an amount equal to the sum the Secretary of State calculates under section 82(1) above as falling to be paid to it by way of revenue support grant for the year, and

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(c) the amount he calculates in relation to it for the year under paragraph 12 of Schedule 8 below.

(4) If the Secretary of State informs an authority of a sum he calculates under section 82(2) above as falling to be paid to it by way of revenue support grant for the year, it shall not affect the operation of subsection (3)(b) above.

(5) In construing subsections (1) and (3)(a) above any calculation for which another has been substituted at the time designation is proposed shall be ignored.

(6) In construing subsections (1) and (3)(a) above any precept for which another has been substituted at the time designation is proposed shall be ignored.

Designation of
authorities.

102.—(1) If the Secretary of State decides under section 100 above to designate an authority he shall notify it in writing of—

- (a) his decision,
- (b) the principles determined under section 100(4) above in relation to it, and
- (c) the amount which he proposes should be the maximum for the amount calculated by it in relation to the year under section 95(4) above or the maximum for the aggregate amount of precepts issued by it for the year (as the case may be).

(2) A designation—

- (a) is invalid unless subsection (1) above is complied with, and
- (b) shall be treated as made at the beginning of the day on which the authority receives a notification under that subsection.

(3) Where a charging authority has been designated under this section, and after the designation is made the authority makes substitute calculations in relation to the year in accordance with section 95 above, the substitute calculations shall be invalid unless they are made under section 107(1) below.

(4) Where a precepting authority has been designated under this section, and after the designation is made the authority issues any substitute precept for the year, the substitute precept shall be invalid unless it is issued under section 107(2) below.

(5) Before the end of the period of 28 days beginning with the day it receives a notification under this section, an authority may inform the Secretary of State by notice in writing that—

- (a) for reasons stated in the notice, it believes the maximum amount stated under subsection (1)(c) above should be such as the authority states in its notice, or
- (b) it accepts the maximum amount stated under subsection (1)(c) above.

(6) References in the following provisions of this Part to a designated authority are to an authority designated under this section.

103.—(1) In relation to the power to designate under section 100 above as regards the financial year beginning in 1990, that section shall have effect as if subsection (1)(b) read—

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Transitional years:
special provisions.

“(b) there is an excessive increase in the amount so calculated over the relevant notional amount, that is, the amount which would in the Secretary of State’s opinion have been calculated by the authority in relation to the preceding financial year under section 95(4) on the assumption that that year was a chargeable financial year and on such additional assumptions as he thinks fit.”

(2) In relation to the power to designate under section 100 above as regards the financial year beginning in 1990, that section shall have effect as if subsection (2)(b) read—

“(b) there is an excessive increase in that aggregate over the relevant notional aggregate, that is, the amount which would in the Secretary of State’s opinion have been the aggregate amount of precepts issued by the authority for the preceding financial year on the assumption that that year was a chargeable financial year and on such additional assumptions as he thinks fit.”

(3) In relation to the power to designate under section 100 above as regards the financial year beginning in 1990, that section shall have effect as if in subsection (4) “this Part” read “Part I of the Rates Act 1984”.

(4) Where the Secretary of State decides under section 100 above to designate an authority as regards the financial year beginning in 1990, subsections (5) and (6) below shall apply.

(5) Where this subsection applies, section 102 above shall have effect as if the following appeared after subsection (1)(a)—

“(aa) where subsection (1A) below applies, the matters there mentioned,”.

(6) Where this subsection applies, section 102 above shall have effect as if the following appeared after subsection (1)—

“(1A) This subsection applies if the decision to designate is made under section 100(1)(b) or (2)(b) above; and the matters referred to in subsection (1)(aa) above are—

(a) the relevant notional amount or the relevant notional aggregate (as the case may be), and

(b) the additional assumptions made in arriving at that amount or aggregate.”

(7) If the Secretary of State decides that paragraph 12 of Schedule 8 below is not to have effect in relation to a transitional year, as regards the year section 101 above shall have effect as if in subsections (2)(b) and (3)(c) “12” read “13”.

104.—(1) This section applies where a designated authority informs the Secretary of State by notice in writing under section 102(5)(a) above.

Challenge of
maximum
amount.

(2) If the authority is a charging authority, after considering any information he thinks is relevant the Secretary of State shall (subject to subsection (8) below) make an order stating the amount which the amount calculated by it in relation to the year under section 95(4) above is not to exceed.

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(3) Subject to subsection (4) below, the amount stated under subsection (2) above may be the same as, or greater or smaller than, that stated in the notice under section 102(1)(c) above.

(4) The amount stated under subsection (2) above may not exceed the amount already calculated by the authority in relation to the year under section 95(4) above unless, in the Secretary of State's opinion, the authority failed to comply with section 95 above in making the calculation.

(5) If the authority is a precepting authority, after considering any information he thinks is relevant the Secretary of State shall (subject to subsection (8) below) make an order stating the amount which the aggregate amount of precepts issued by it for the year is not to exceed.

(6) Subject to subsection (7) below, the amount stated under subsection (5) above may be the same as, or greater or smaller than, that stated in the notice under section 102(1)(c) above.

(7) The amount stated under subsection (5) above may not exceed the aggregate amount of precepts already issued by the authority for the year unless, in the Secretary of State's opinion, the authority failed to fulfil section 68(3) or 69(3) or (4) above in issuing any precept.

(8) The power to make an order under this section shall be exercisable by statutory instrument, and no such order shall be made unless a draft of it has been laid before and approved by resolution of the House of Commons.

(9) An order under this section may relate to two or more authorities.

(10) As soon as is reasonably practicable after an order under this section is made the Secretary of State shall serve on the authority (or each authority) a notice stating the amount stated in the case of the authority in the order.

(11) When he serves a notice under subsection (10) above on a precepting authority the Secretary of State shall also serve a copy of it on each charging authority to which the precepting authority has power to issue a precept.

(12) In construing subsection (4) above any calculation for which another has been substituted at the time of designation shall be ignored.

(13) In construing subsection (7) above any precept for which another has been substituted at the time of designation shall be ignored.

Acceptance of
maximum
amount.

105.—(1) This section applies where a designated authority informs the Secretary of State by notice in writing under section 102(5)(b) above.

(2) If the authority is a charging authority, as soon as is reasonably practicable after he receives the notice the Secretary of State shall serve on the authority a notice stating the amount which the amount calculated by it in relation to the year under section 95(4) above is not to exceed; and the amount stated shall be that stated in the notice under section 102(1)(c) above.

(3) If the authority is a precepting authority, as soon as is reasonably practicable after he receives the notice the Secretary of State shall serve on the authority a notice stating the amount which the aggregate amount of precepts issued by it for the year is not to exceed; and the amount stated shall be that stated in the notice under section 102(1)(c) above.

(4) When he serves a notice under subsection (3) above the Secretary of State shall also serve a copy of it on each charging authority to which the precepting authority has power to issue a precept.

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106.—(1) This section applies where the period mentioned in section 102(5) above ends without a designated authority informing the Secretary of State by notice in writing under section 102(5)(a) or (b) above.

No challenge or acceptance.

(2) If the authority is a charging authority, as soon as is reasonably practicable after the period ends the Secretary of State shall (subject to subsection (4) below) make an order stating the amount which the amount calculated by it in relation to the year under section 95(4) above is not to exceed; and the amount stated shall be that stated in the notice under section 102(1)(c) above.

(3) If the authority is a precepting authority, as soon as is reasonably practicable after the period ends the Secretary of State shall (subject to subsection (4) below) make an order stating the amount which the aggregate amount of precepts issued by it for the year is not to exceed; and the amount stated shall be that stated in the notice under section 102(1)(c) above.

(4) The power to make an order under this section shall be exercisable by statutory instrument, and no such order shall be made unless a draft of it has been laid before and approved by resolution of the House of Commons.

(5) An order under this section may relate to two or more authorities.

(6) As soon as is reasonably practicable after an order under this section is made the Secretary of State shall serve on the authority (or each authority) a notice stating the amount stated in the case of the authority in the order.

(7) When he serves a notice under subsection (6) above on a precepting authority the Secretary of State shall also serve a copy of it on each charging authority to which the precepting authority has power to issue a precept.

107.—(1) A charging authority which has received a notice under section 104(10), 105(2) or 106(6) above shall make substitute calculations in relation to the year in accordance with section 95 above, but—

Substituted calculations and precepts.

(a) section 95(9) shall be ignored for this purpose, and

(b) the calculations shall be made so as to secure that the amount calculated under section 95(4) does not exceed that stated in the notice.

(2) A precepting authority which has received a notice under section 104(10), 105(3) or 106(6) above shall issue, in substitution for any precept or precepts previously issued by it for the year, a precept or precepts in accordance with sections 68 to 70 above, but—

(a) section 68(2) shall be ignored for this purpose, and

(b) the amount of the precept, or the aggregate amount of the precepts, issued by the authority for the year under this section shall not exceed that stated in the notice.

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(3) Where calculations are made under subsection (1) above the following provisions apply accordingly—

- (a) Part II,
- (b) sections 74, 75, 97, 99 and 100(1)(b) and (6) above, and
- (c) sections 110(1), 138(2)(g) and 139(2)(c) below.

(4) Where a precept is issued under subsection (2) above the following provisions apply accordingly—

- (a) sections 32(4) and (5), 33(3) and (11), 35(1) to (3), (5) and (8), 71(5) and (6), 72, 74, 99 and 100(2)(b) and (7) above, and
- (b) sections 110(2), 138(2)(d) and 139(2)(b) below.

**Failure to
substitute.**

108.—(1) Subsection (2) below applies if a charging authority which has received a notice under section 104(10), 105(2) or 106(6) above fails to comply with section 107(1) above before the end of the period of 21 days beginning with the day on which it receives the notice.

(2) During the period of restriction the authority shall have no power to transfer any amount from its collection fund to its general fund or to the City fund (as the case may be) and sections 97 and 98 above shall have effect accordingly.

(3) For the purposes of subsection (2) above the period of restriction is the period which—

- (a) begins at the end of the period mentioned in subsection (1) above, and
- (b) ends at the time (if any) when the authority complies with section 107(1) above.

(4) Subsection (5) below applies if a precepting authority which has received a notice under section 104(10), 105(3) or 106(6) above fails to comply with section 107(2) above before the end of the period of 21 days beginning with the day on which it receives the notice.

(5) During the period of restriction any authority to which the precepting authority has power to issue a precept shall have no power to pay anything in respect of a precept issued by the precepting authority for the year.

(6) For the purposes of subsection (5) above the period of restriction is the period which—

- (a) begins at the end of the period mentioned in subsection (4) above, and
- (b) ends at the time (if any) when the precepting authority complies with section 107(2) above.

**Other financial
requirements.**

109.—(1) This section applies where an order under section 104 above states in the case of an authority an amount greater than that stated in the notice under section 102(1)(c) above.

(2) The Secretary of State may decide to impose on the authority concerned such requirements relating to its expenditure or financial management as he thinks appropriate.

(3) If he does so decide he shall include a statement of his decision and of the requirements in the notice served on the authority under section 104(10) above.

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(4) The authority shall comply with any such requirements, and shall report to the Secretary of State whenever he directs it to do so on the extent to which they have been complied with.

110.—(1) A charging authority shall notify the Secretary of State in writing of any amount calculated by it under section 95(4) above, whether originally or by way of substitute. Information.

(2) A relevant precepting authority shall notify the Secretary of State in writing of the amount of any precept issued by it under this Act, whether originally or by way of substitute.

(3) A notification under subsection (1) or (2) above must be given before the end of the period of seven days beginning with the day on which the calculation is made or the precept is issued (as the case may be).

(4) The Secretary of State may serve on a charging authority or relevant precepting authority a notice requiring it to supply to him such other information as is specified in the notice and required by him for the purpose of deciding whether to exercise his powers, and how to perform his functions, under this Part.

(5) The authority shall supply the information required if it is in its possession or control, and shall do so in such form and manner, and at such time, as the Secretary of State specifies in the notice.

(6) An authority may be required under subsection (4) above to supply information at the same time as it gives a notification under subsection (1) or (2) above or at some other time.

(7) If an authority fails to comply with subsection (1) or (2) above, or with subsection (5) above, the Secretary of State may decide whether to exercise his powers, and how to perform his functions, under this Part on the basis of such assumptions and estimates as he sees fit.

(8) In deciding whether to exercise his powers, and how to perform his functions, under this Part the Secretary of State may also take into account any other information available to him, whatever its source and whether or not obtained under a provision contained in or made under this or any other Act.

PART VIII

FINANCIAL ADMINISTRATION

111.—(1) This section applies for the purposes of this Part.

Interpretation.

(2) Each of the following is a relevant authority

- (a) a county council,
- (b) a district council,
- (c) a London borough council,
- (d) the Inner London Education Authority,
- (e) a metropolitan county police authority,
- (f) the Northumbria Police Authority,

PART VIII

- (g) a metropolitan county fire and civil defence authority,
- (h) the London Fire and Civil Defence Authority,
- (i) a metropolitan county passenger transport authority,
- (j) a waste disposal authority,
- (k) the Council of the Isles of Scilly,
- (l) a combined police authority, and
- (m) a combined fire authority.

1972 c. 70.
1985 c. 51.

(3) The 1972 Act is the Local Government Act 1972 and the 1985 Act is the Local Government Act 1985.

(4) The commencement day is the day on which this Part comes into force.

(5) This Part shall come into force at the end of the period of 2 months beginning with the day on which this Act is passed.

Financial
administration as
to certain
authorities.

112.—(1) On and after the commencement day each authority mentioned in subsection (2) below shall make arrangements for the proper administration of its financial affairs and shall secure that one of its officers has responsibility for the administration of those affairs.

(2) The authorities are—

- (a) any combined police authority, and
- (b) any combined fire authority.

Qualifications of
responsible officer.

113.—(1) On and after the commencement day the person having responsibility for the administration of the financial affairs of a relevant authority under section 151 of the 1972 Act, section 73 of the 1985 Act or section 112 above shall fulfil the requirement in one (or the requirements in each) of the paragraphs of subsection (2) below.

(2) The requirements are that—

- (a) he is a member of one or more of the bodies mentioned in subsection (3) below;
- (b) immediately before the commencement day he had responsibility for the administration of the financial affairs of any of the authorities mentioned in section 111(2)(a) to (k) above under section 151 of the 1972 Act or section 73 of the 1985 Act.

(3) The bodies are—

- (a) the Institute of Chartered Accountants in England and Wales,
- (b) the Institute of Chartered Accountants of Scotland,
- (c) the Chartered Association of Certified Accountants,
- (d) the Chartered Institute of Public Finance and Accountancy,
- (e) the Institute of Chartered Accountants in Ireland,
- (f) the Chartered Institute of Management Accountants, and
- (g) any other body of accountants established in the United Kingdom and for the time being approved by the Secretary of State for the purposes of this section.

(4) The authority mentioned in subsection (2)(b) above need not be the same as that under consideration for the purpose of applying subsection (1) above.

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114.—(1) On and after the commencement day the person having responsibility for the administration of the financial affairs of a relevant authority under section 151 of the 1972 Act, section 73 of the 1985 Act or section 112 above shall have the duties mentioned in this section, without prejudice to any other functions; and in this section he is referred to as the chief finance officer of the authority.

Functions of
responsible officer
as regards reports.

(2) The chief finance officer of a relevant authority shall make a report under this section if it appears to him that the authority, a committee or officer of the authority, or a joint committee on which the authority is represented—

- (a) has made or is about to make a decision which involves or would involve the authority incurring expenditure which is unlawful,
- (b) has taken or is about to take a course of action which, if pursued to its conclusion, would be unlawful and likely to cause a loss or deficiency on the part of the authority, or
- (c) is about to enter an item of account the entry of which is unlawful.

(3) The chief finance officer of a relevant authority shall make a report under this section if it appears to him that the expenditure of the authority incurred (including expenditure it proposes to incur) in a financial year is likely to exceed the resources (including sums borrowed) available to it to meet that expenditure.

(4) Where a chief finance officer of a relevant authority has made a report under this section he shall send a copy of it to—

- (a) the person who at the time the report is made has the duty to audit the authority's accounts, and
- (b) each person who at that time is a member of the authority.

(5) Subject to subsection (6) below, the duties of a chief finance officer of a relevant authority under subsections (2) and (3) above shall be performed by him personally.

(6) If the chief finance officer is unable to act owing to absence or illness his duties under subsections (2) and (3) above shall be performed—

- (a) by such member of his staff as is a member of one or more of the bodies mentioned in section 113(3) above and is for the time being nominated by the chief finance officer for the purposes of this section, or
- (b) if no member of his staff is a member of one or more of those bodies, by such member of his staff as is for the time being nominated by the chief finance officer for the purposes of this section.

(7) A relevant authority shall provide its chief finance officer with such staff, accommodation and other resources as are in his opinion sufficient to allow his duties under this section to be performed.

(8) In this section—

- (a) references to a joint committee are to a committee on which two or more relevant authorities are represented, and

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(b) references to a committee (joint or otherwise) include references to a sub-committee.

Authority's duties
as regards reports.

115.—(1) This section applies where copies of a report under section 114 above have been sent under section 114(4) above.

(2) The authority shall consider the report at a meeting where it shall decide whether it agrees or disagrees with the views contained in the report and what action (if any) it proposes to take in consequence of it.

(3) The meeting must be held not later than the end of the period of 21 days beginning with the day on which copies of the report are sent.

(4) Section 101 of the 1972 Act (delegation) shall not apply to the duty under subsection (2) above where the authority is one to which that section would apply apart from this subsection.

(5) If the report was made under section 114(2) above, during the prohibition period the course of conduct which led to the report being made shall not be pursued.

(6) If the report was made under section 114(3) above, during the prohibition period the authority shall not enter into any new agreement which may involve the incurring of expenditure (at any time) by the authority.

(7) If subsection (5) above is not complied with, and the authority makes any payment in the prohibition period as a result of the course of conduct being pursued, it shall be taken not to have had power to make the payment (notwithstanding any obligation to make it under contract or otherwise).

(8) If subsection (6) above is not complied with, the authority shall be taken not to have had power to enter into the agreement (notwithstanding any option to do so under contract or otherwise).

(9) In this section "the prohibition period" means the period—

(a) beginning with the day on which copies of the report are sent, and

(b) ending with the first business day to fall after the day (if any) on which the authority's consideration of the report under subsection (2) above is concluded.

(10) If subsection (3) above is not complied with, it is immaterial for the purposes of subsection (9)(b) above.

(11) The nature of the decisions made at the meeting is immaterial for the purposes of subsection (9)(b) above.

(12) In subsection (9)(b) above "business day" means any day other than a Saturday, a Sunday, Christmas Day, Good Friday or a day which is a bank holiday in England and Wales.

Information about
meetings.

116.—(1) Where it is proposed to hold a meeting under section 115 above the authority's proper officer shall as soon as is reasonably practicable notify its auditor of the date, time and place of the proposed meeting.

(2) As soon as is reasonably practicable after a meeting is held under section 115 above the authority's proper officer shall notify its auditor of any decision made at the meeting.

(3) For the purposes of this section an authority's proper officer is the person to whom the authority has for the time being assigned responsibility to notify its auditor under this section.

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(4) For the purposes of this section an authority's auditor is the person who for the time being has the duty to audit its accounts.

PART IX

EXISTING RATES, PRECEPTS AND GRANTS

117.—(1) The General Rate Act 1967 shall not have effect as regards any time after 31 March 1990.

Rates and
precepts:
abolition.

(2) As regards any time after 31 March 1990 the Common Council shall have no power to make or levy a rate under section 15 or 18 of the City of London (Union of Parishes) Act 1907, the City of London (Tithes and Rates) Act 1910 or section 68(1) of the London Government Act 1963 (general rate, poor rate and St. Botolph tithe rate).

1967 c. 9.

1907 c. cx1.
1910 c. xxx.
1963 c. 33.

(3) Neither the sub-treasurer of the Inner Temple nor the under-treasurer of the Middle Temple shall have power to make or levy a rate as regards any time after 31 March 1990.

(4) No precepting authority shall have power to issue a precept in respect of a chargeable financial year, except as provided by this Act.

(5) In subsection (6) below "levying body" means any body which—

- (a) is established by or under an Act,
- (b) apart from subsection (6) below would have in respect of the financial year beginning in 1990 power (conferred by or under an Act passed before, or in the same session as, this Act) to issue a precept to, make a levy on or have its expenses paid by a county council or charging authority, and
- (c) is not a precepting authority, combined police authority, combined fire authority, magistrates' courts committee or probation committee.

(6) In respect of any chargeable financial year no levying body shall have power under the Act concerned to issue a precept to, make a levy on or have its expenses paid by the council concerned.

(7) In subsections (5) and (6) above "Act" includes a private or local Act.

(8) The Secretary of State may make regulations providing that the preceding provisions of this section shall have effect subject to prescribed savings.

118.—(1) This section applies as regards any body—

Rates: power to
abolish or modify.

- (a) which is established by or under an Act,
- (b) which as regards the financial year beginning in 1989 has power (conferred by or under an Act) to levy a rate by reference to the value or yearly value of property, and
- (c) which is not a charging authority.

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(2) The Secretary of State may by regulations provide as mentioned in one of the following paragraphs as regards any such body—

- (a) that the body shall have no power to levy the rate as regards any time specified in the regulations and falling after 31 March 1990;
- (b) that the body's power to levy the rate as regards any time specified in the regulations and falling after 31 March 1990 shall be modified in a manner specified in the regulations.

(3) Regulations providing as mentioned in subsection (2)(b) above as regards a body may include provision—

- (a) as to the property (or description of property) in respect of which the rate may be levied and the property (or description of property) in respect of which the rate may not be levied;
- (b) as to the body's expenditure, or the proportion of its expenditure, which may be met from the proceeds of the rate.

(4) Regulations may provide as mentioned in this section in such way as the Secretary of State thinks fit (whether by amending provisions or otherwise).

(5) In this section "Act" includes a private or local Act.

Statutory
references to
rating.

119.—(1) This section applies in the case of a provision which is made by or under an Act and refers to a rate or a rateable value or any other factor connected with rating.

(2) The Secretary of State may make regulations providing that the reference shall instead be to some factor other than the one connected with rating.

(3) The regulations may provide as mentioned in subsection (2) above as regards such provision, or provisions of such description, as may be prescribed.

(4) The regulations may provide as mentioned in subsection (2) above in such way as the Secretary of State thinks fit (whether by amending provisions or otherwise).

(5) In this section "Act" includes a private or local Act.

Refund of
overpayments.

120. Section 9(2) of the 1967 Act (restrictions on refund of overpayments) shall have effect, and be deemed always to have had effect, as if after paragraph (b) there were inserted—

“; or

- (c) if the amount paid was charged in accordance with the understanding generally prevailing at the time when the payment was demanded about the application of the relevant statutory provisions.”

Valuation
according to
tone of list.

121.—(1) Where for the purposes of section 20 of the 1967 Act a hereditament is valued on the basis of the assumptions specified in subsection (1) of that section (basis of valuation for the purposes of a proposal to alter a valuation list to be consistent with the tone of the list), no account shall be taken of a change to which this subsection applies unless it is one which—

- (a) affects the physical state or physical enjoyment of the hereditament, or
- (b) affects the physical state of the locality in which the hereditament is situated or, though it does not affect the physical state of the locality, is nonetheless physically manifest there.

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(2) Subsection (1) above applies to any change in the state of the hereditament or the state of the locality in which the hereditament is situated which has occurred since the time by reference to which the value of the hereditament is to be ascertained, other than one relating to a factor which is a relevant factor within the meaning of that section.

(3) This section shall have effect in relation to any proposal made on or after 10 March 1988 which is outstanding on the passing of this Act but shall not have effect in relation to any proposal made before 10 March 1988.

122.—(1) The following section shall be substituted for section 31 of the 1967 Act—

Rating of
statutory water
undertakings.

“Statutory water
undertakings.

31.—(1) The rateable values of the hereditaments in any rating district which are occupied, otherwise than as dwellings, for the water purposes of a statutory water undertaking (hereafter in this section and in Schedule 4 to this Act referred to as “water hereditaments” of the undertaking) shall be ascertained in accordance with the provisions of the said Schedule 4.

(2) For the purposes of subsection (1) of this section, a hereditament is occupied for the water purposes of a statutory water undertaking if it is occupied for the purposes of any of the undertakers’ functions with respect to the supply of water.

(3) In this section and the said Schedule 4, references to statutory water undertakers shall be construed in accordance with section 11(6) of the Water Act 1973 (and references to statutory water undertakings shall be construed accordingly).”

1973 c. 37.

(2) This section shall have effect in relation to any proposal made on or after 10 March 1988 which is outstanding on the passing of this Act but shall not have effect in relation to any proposal made before 10 March 1988.

123.—(1) This subsection applies to a proposal for an alteration of a valuation list which, if made, would have the effect of rating as a non-water hereditament of a statutory water undertaking a hereditament which—

Rating
amendments:
miscellaneous.

- (a) was previously so rated but ceased to be so rated by virtue of an alteration made on or after 4 December 1987,
- (b) was occupied for the purposes of the undertaking at the time of the proposal in pursuance of which the earlier alteration was made, and
- (c) was not at that time occupied for the purposes of the undertakers’ functions with respect to the supply of water.

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(2) This subsection applies to a proposal for an alteration of a valuation list which—

- (a) would, if made, have the effect of reversing an alteration of the list made on or after 11 February 1988, and
- (b) would not fall to be made but for section 121 above.

(3) Where in the case of a proposal to which subsection (1) or (2) above applies there has been, since the making of the proposal in pursuance of which the earlier alteration was made, such a change of circumstances in relation to the hereditament to which the proposal relates as is mentioned in any of paragraphs (a) to (h) of section 68(4) of the 1967 Act, the change of circumstances shall be disregarded for the purposes of dealing with the proposal.

(4) This subsection applies to an alteration of a valuation list which—

- (a) is made in pursuance of a proposal to which subsection (1) above applies, or
- (b) has the effect of reversing an alteration of the list made on or after 11 February 1988 and would not have fallen to be made but for section 121 above.

(5) An alteration to which subsection (4) above applies shall be deemed to have had effect—

- (a) if the earlier alteration was made in pursuance of a proposal made before 10 March 1988, from that date, and
- (b) if the earlier alteration was made in pursuance of a proposal made on or after 10 March 1988, from the date that the earlier alteration had effect,

notwithstanding in either case that the date from which the alteration is deemed to have had effect differs from the date provided by section 79(1) of the 1967 Act.

(6) For the purposes of subsection (1) above, a hereditament is rated as a non-water hereditament of a statutory water undertaking if its value is ascertained otherwise than in accordance with the provisions of Schedule 4 to the 1967 Act.

(7) In this section, the reference in subsection (1)(c) to statutory water undertakers is a reference to a water authority or statutory water company within the meaning of the Water Act 1973 and “statutory water undertaking” shall be construed accordingly.

1973 c. 37.

(8) In this section and sections 120 to 122 above—

1967 c. 9.

- (a) “the 1967 Act” means the General Rate Act 1967,
- (b) “valuation list” has the meaning assigned by section 115(1) of that Act, and
- (c) references to the date on which a proposal is made are references to the date on which the proposal is served on the valuation officer or, where the proposal is made by the valuation officer, is served on the occupier of the hereditament to which the proposal relates.

Rate support
grant: abolition.

124.—(1) No payments by way of rate support grant shall be made for a financial year beginning in or after 1990.

PART IX

(2) The Secretary of State may by order repeal any enactment relating to rate support grant.

(3) If a sum paid to an authority under any provision repealed under subsection (2) above is less than the amount which should have been paid to it under the provision, the Secretary of State shall calculate the amount equal to the difference and pay a sum equal to that amount to the authority.

(4) If a sum in excess of an amount payable to an authority has been paid under any provision repealed under subsection (2) above, the Secretary of State shall calculate the amount equal to the excess and a sum equal to that amount shall be due from the authority to the Secretary of State.

(5) If the Secretary of State decides that a sum due under subsection (4) above is to be recoverable by deduction he may deduct a sum equalling (or sums together equalling) that sum from anything the authority is entitled to receive from him (whether by way of revenue support grant or otherwise).

(6) If the Secretary of State decides that a sum due under subsection (4) above is to be recoverable by payment it shall be payable on such day as he may specify; and if it is not paid on or before that day it shall be recoverable in a court of competent jurisdiction.

(7) The Secretary of State may decide that a sum due under subsection (4) above is to be recoverable partly by deduction and partly by payment, and in such a case subsections (5) and (6) above shall have effect with appropriate modifications.

(8) The Secretary of State may decide differently under subsections (5) to (7) above as regards sums due from different authorities or as regards sums due from the same authority in respect of different financial years.

125. Section 6(1) to (7) of the Local Government Act 1974 (supplementary grants for transport purposes) shall not have effect for a financial year beginning in or after 1990.

Transport grants:
abolition.
1974 c. 7.

126.—(1) In section 61 of the Local Government, Planning and Land Act 1980 (in this section referred to as “the 1980 Act”) subsection (4A) (which was inserted by paragraph 10 of Schedule 1 to the Rate Support Grants Act 1986 and restricts the scope for the variation of multipliers in supplementary reports) shall cease to have effect.

Variation of
multipliers in
supplementary
reports.
1980 c. 65.
1986 c. 54.

(2) If it appears to the Secretary of State that, in a supplementary report under section 61 of the 1980 Act for any year (whether beginning before or after the passing of this Act), he should specify a fresh determination of a multiplier, in place of the determination thereof (in this section referred to as “the earlier determination”) specified in the Rate Support Grant Report or any supplementary report for the year in question, he may make the fresh determination (and any calculation required by section 2(4) of the Rate Support Grants Act 1986) on the basis of such information, assumptions and determinations as he thinks appropriate.

(3) Without prejudice to the generality of subsection (2) above, in the exercise of his discretion under that subsection the Secretary of State may disregard any information received or determination made after such time or times as appear to him to be appropriate.

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(4) Expressions used in subsections (2) and (3) above have the same meaning as in Part VI of the 1980 Act and any reference in this section to a multiplier is a reference to a multiplier determined or purported to be determined in exercise of the power conferred by section 59 of the 1980 Act.

1982 c. 32.

(5) In subsection (4) above the reference to section 59 of the 1980 Act includes a reference to paragraph 5(1) of Schedule 2 to the Local Government Finance Act 1982 (which makes corresponding provision for the Receiver for the Metropolitan Police District).

(6) Nothing in this section shall be taken to prejudice the generality of the powers of the Secretary of State under subsections (4) and (5) of section 65 of the 1980 Act (powers in relation to matters as to which there is no or no sufficient information and in relation to information which is not submitted in accordance with the requirements of subsection (1) of that section).

London Regional
Transport grants:
amendment.
1984 c. 32.

127.—(1) No levy under section 13 of the London Regional Transport Act 1984 (contribution to expenditure on grants) shall be made in respect of any time after 31 March 1990.

(2) The Secretary of State may make regulations providing that subsection (1) above shall have effect subject to prescribed savings.

PART X**SCOTLAND**

Levying of rates.

128.—(1) Every rate levied by a rating authority in respect of lands and heritages for any financial year beginning on or after 1st April 1990 shall be levied according to such rateable value—

(a) as is prescribed by the Secretary of State by regulations made under this section; or

(b) as is determined in such manner and by reference to such considerations as may be prescribed by such regulations,

and such regulations may make different provision as regards different classes of lands and heritages and for different financial years.

1987 c. 47.

(2) Regulations made under this section may modify the definition of “R” for the purposes of section 3(4) of the Abolition of Domestic Rates Etc. (Scotland) Act 1987.

1975 c. 30.

(3) Expressions used in this section and in section 7(1) of the Local Government (Scotland) Act 1975 shall have the same meaning as in the said section 7(1).

Exemption from
personal charge.

129.—(1) In the Abolition of Domestic Rates Etc. (Scotland) Act 1987, section 8 (liability for personal community charge) shall be amended as follows.

(2) For subsections (8) and (9) there shall be substituted the following subsection—

“(8) A person is exempt from liability to pay the personal community charge in respect of any time in a financial year if he is, at that time, a person such as is described in Schedule 1A to this Act.”

PART XI

MISCELLANEOUS AND GENERAL

Capital expenditure

130. After section 79 of the Local Government, Planning and Land Act 1980 there shall be inserted the following section—

"Acquisition of leasehold etc. treated as acquisition of freehold.

79A.—(1) In any case where—

- (a) an interest in or right over land is acquired on or after 10 March 1988, and
- (b) the interest or right confers a right to possession or occupation of the land, and
- (c) the interest or right is neither the fee simple absolute in possession nor an interest or right not exceeding one year in duration, and
- (d) the acquisition is neither by gift nor by deed with no consideration other than the presumed consideration imported by the deed,

then, for the purposes of this Part of this Act, the authority making the acquisition shall be treated as having acquired, for a consideration which is not in money alone, the fee simple absolute in possession in that land, subject only to the interests and rights referred to in subsection (2) below.

(2) The interests and rights referred to in subsection (1) above are those (if any) to which the interest or right which is actually acquired is subject at the time of the acquisition, excluding any which arise by virtue of a mortgage or charge to secure the payment of money.

(3) In subsection (1)(b) above—

- (a) "possession" has the same meaning as in the Law of Property Act 1925, that is to say, it includes receipt of rents and profits or the right to receive the same, if any; and
- (b) "occupation" means occupation without possession but, subject to that, includes future occupation.

(4) Subsection (12) of section 80 below applies for the purposes of this section but where, by virtue of that subsection, an authority is taken to acquire an interest exceeding one year in duration, that interest shall not be regarded for the purposes of subsection (1)(c) above as the fee simple absolute in possession."

131.—(1) In the Local Government, Planning and Land Act 1980 (in this section referred to as "the 1980 Act"), in section 71 (expenditure to which Part VIII of the 1980 Act applies) for subsection (2) there shall be substituted the following subsection—

"(2) Where any of the activities specified in paragraph 1 of Schedule 12 to this Act is undertaken by or for an authority, then, subject to paragraphs 2 to 5 of that Schedule, the amount of expenditure which,—

Acquisition of interests less than freehold.
1980 c. 65.

Prescribed expenditure.

PART XI

(a) by virtue of sections 79A to 80B below, the authority is to be taken to incur on that activity, or

(b) in a case not falling within those sections, the authority actually incurs on that activity,

is prescribed expenditure for the purposes of this Part of this Act."

(2) In section 80 of the 1980 Act (which determines the amount of expenditure which is to be taken to be incurred where an interest in or right over property is acquired) for subsection (4) there shall be substituted the following subsection—

"(4) Where the acquisition is, or is treated by virtue of section 79A above as being, the acquisition of the fee simple absolute in possession and subsection (3) above does not apply, the amount is the consideration in money which would be obtained for that fee simple if it were sold on the open market by a willing seller at the time of the acquisition; and in determining, for the purpose of calculating that amount, to what interests and rights the fee simple is at that time subject—

(a) where section 79A applies there shall be taken into account only those mentioned in subsection (2) of that section; and

(b) there shall be left out of account those arising by virtue of a mortgage or charge to secure the payment of money."

(3) In subsection (5) of the said section 80 for paragraph (a) there shall be substituted the following paragraph—

"(a) the acquisition, though treated by virtue of section 79A above as the acquisition of a fee simple, is in fact the acquisition of a leasehold interest in land; and".

(4) In subsection (8) of the said section 80 for the words "right to occupy" there shall be substituted "right to possession or occupation of".

(5) Subsection (14) of the said section 80 shall be omitted.

(6) In section 80A of the 1980 Act (payment for works carried out for an authority), in subsection (5) (value of works at any time) at the end of paragraph (b) there shall be added "and

(c) the value of any consideration which is not in money and which has been or is to be given by the authority for the carrying out of the works".

(7) In subsection (9) of the said section 80A (works treated as carried out for an authority in cases specified in or determined under regulations) after the words "subsection (1)" there shall be inserted "and section 71(2)".

(8) This section shall be deemed to have come into force on 10 March 1988 but, subject to subsection (9) below, the reference in section 80A(5)(c) of the 1980 Act (as amended by subsection (6) above) to consideration which is not in money does not include consideration given in pursuance of a contract entered into before that date.

(9) In any case where the consideration which is not in money and which is given pursuant to a contract entered into before 10 March 1988 is affected by—

(a) a variation of the contract on or after that date,

or

- (b) the exercise on or after that date of an option or other right conferred by the contract, PART XI

so much (if any) of that consideration as exceeds what it would have been if the contract had not been so varied or, as the case may be, if the option or other right had not been so exercised shall be regarded for the purposes of subsection (8) above as given in pursuance of a contract entered into after 10 March 1988.

132.—(1) In the Local Government, Planning and Land Act 1980 (in this section referred to as “the 1980 Act”), in Schedule 12 (prescribed expenditure under Part VIII), in paragraph 1, in sub-paragraph (f) the final “and” shall be omitted and at the end of sub-paragraph (g) there shall be added— Share and loan capital and guarantee payments.
1980 c. 65.

“(h) the acquisition of share capital or loan capital (within the meaning of section 78 of the Finance Act 1986) of any body corporate which is not an authority to which this Part of this Act applies, and

(i) the making of payments pursuant to an obligation arising under a guarantee or indemnity given with respect to money borrowed by any person”.

(2) At the end of paragraph 3 of the said Schedule 12 there shall be inserted the following paragraph—

“3A. The reference in paragraph 3 above to a county council includes a reference to any district council or other body in whom, by virtue of an order under any provision of Part VII of the Local Government Act 1985, there is for the time being vested a superannuation fund which, before the abolition date, within the meaning of that Act, was maintained by the Greater London Council or a metropolitan county council as mentioned in section 60 of that Act.”

(3) With respect to expenditure on the matters specified in paragraphs (h) and (i) of paragraph 1 of the said Schedule 12 (as amended by subsection (1) above), the powers conferred by paragraph 4 of that Schedule (to provide by regulations that certain expenditure which would otherwise be prescribed expenditure shall not be such expenditure) may be exercised so as to have effect with respect to expenditure incurred (or treated by virtue of any provision of Part VIII of the 1980 Act as incurred) on or after 10 March 1988.

(4) In section 75 of the 1980 Act (capital receipts) the power conferred by subsection (5)(d) (to provide that certain assets are brought within the scope of the section) may be exercised with respect to disposals on or after 10 March 1988 of assets acquired on or after that date in cases where, by virtue of the amendments made by subsection (1) above, expenditure on the acquisition of the assets is prescribed expenditure; and, with respect to capital receipts resulting from such disposals, the powers conferred by sections 72(3)(d) and 75(5)(a) of that Act (which relate to the prescribed proportion of an authority's capital receipts) may be similarly exercised.

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(5) In section 80 of the 1980 Act (valuation)—

- (a) in subsections (9) and (10) (which relate to the acquisition of property in goods or an interest or right in goods) after the word “goods”, in each place where it occurs, there shall be inserted “share capital or loan capital”; and
- (b) at the end of subsection (15) (definition of “property” for subsections (9) and (10)) there shall be added the words “and loan capital has the same meaning as in section 78 of the Finance Act 1986.”

(6) Subsections (1), (2) and (5) above shall be deemed to have come into force on 10 March 1988.

Other miscellaneous provisions

Community
charges: cross-
border
information.

133.—(1) The Secretary of State may make regulations providing that any person mentioned in subsection (2) below shall supply to a community charges registration officer for an English or Welsh charging authority such information as fulfils the following conditions—

- (a) it is in the possession or control of the person concerned,
- (b) the registration officer requests the person concerned to supply it,
- (c) it is requested by the registration officer for the purpose of carrying out his functions under Part I, and
- (d) it does not fall within any prescribed description of information which need not be supplied.

(2) The persons are—

- (a) the community charges registration officer for a Scottish region or islands area,
- (b) a Scottish regional council or islands council, and
- (c) the assessor or electoral registration officer for any area in Scotland.

(3) The Secretary of State may make regulations providing that any person mentioned in subsection (4) below shall supply to a community charges registration officer for a Scottish region or islands area such information as fulfils the following conditions—

- (a) it is in the possession or control of the person concerned,
- (b) the registration officer requests the person concerned to supply it,
- (c) it is requested by the registration officer for the purpose of carrying out his functions under the Abolition of Domestic Rates Etc. (Scotland) Act 1987, and
- (d) it does not fall within any prescribed description of information which need not be supplied.

(4) The persons are—

- (a) the community charges registration officer for an English or Welsh charging authority,
- (b) an English or Welsh charging authority, and
- (c) the electoral registration officer for any area in England and Wales.

1987 c. 47.

(5) Regulations under this section may include provision that the information is to be supplied in a prescribed form and within a prescribed period of the request being made.

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134.—(1) A relevant authority shall consult under this section persons or bodies appearing to it to be representative of persons subject to non-domestic rates under sections 43 and 45 above as regards hereditaments situated in the authority's area.

Duty to consult ratepayers.

(2) Consultations must be made as to each chargeable financial year, and must be about the authority's proposals for expenditure (including capital expenditure) in that financial year; and the Secretary of State may by regulations prescribe matters which are to be treated as expenditure for this purpose.

(3) Each of the following is a relevant authority—

(a) a charging authority;

(b) a precepting authority which falls within section 144(2)(a) to (e) below.

(4) The duty to consult as to a financial year shall be performed—

(a) where the authority is a charging authority, before it makes calculations (otherwise than by way of substitute) in relation to the financial year under section 95 above;

(b) where the authority is a precepting authority, before it issues the first precept to be issued by it for the financial year.

(5) In performing the duty to consult, an authority shall have regard to any guidance issued by the Secretary of State concerning—

(a) persons or bodies to be regarded for the purposes of this section as representative of persons subject to non-domestic rates under sections 43 and 45 above as regards hereditaments situated in the authority's area, and

(b) the timing and manner of consultations under this section.

(6) An authority shall make available to persons or bodies it proposes to consult under this section such information as may be prescribed by regulations made by the Secretary of State and is in its possession or control; and it shall do so in such form and manner, and at such time, as the regulations may prescribe.

135. Schedule 10 below (which amends the Social Security Act 1986 so as to make provision for benefits in respect of community charges in England and Wales and Scotland) shall have effect.

Social security.
1986 c. 50.

136. Schedule 11 below (which contains provisions about the establishment of, and other matters relating to, valuation and community charge tribunals) shall have effect.

Tribunals.

137. Schedule 12 below (which contains amendments) shall have effect.

Amendments.

General

138.—(1) The matters mentioned in subsection (2) below shall not be questioned except by an application for judicial review.

Judicial review.

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(2) The matters are—

- (a) the setting by a charging authority of an amount or amounts for its personal community charges for a chargeable financial year, whether originally or by way of substitute,
- (b) the determination by a charging authority of any standard community charge multiplier for properties in its area,
- (c) a specification by the Secretary of State under section 40 above,
- (d) a precept issued under this Act, whether originally or by way of substitute,
- (e) a levy issued under regulations under section 74 above,
- (f) a special levy issued under regulations under section 75 above,
- (g) a calculation under section 95(4) above, whether original or by way of substitute,
- (h) the specification of a non-domestic rating multiplier under paragraph 2 of Schedule 7 below,
- (i) the specification of a non-domestic rating multiplier under paragraph 7 of Schedule 7 below, and
- (j) the setting by a special authority of a non-domestic rating multiplier under Schedule 7 below, whether originally or by way of substitute.

(3) If on an application for judicial review the court decides to grant relief in respect of any of the matters mentioned in subsection (2)(a) or (d) to (j) above, it shall quash the setting, precept, levy, special levy, calculation or specification (as the case may be).

Functions to be discharged only by authority.

139.—(1) Each of the functions of an authority mentioned in subsection (2) below shall be discharged only by the authority.

(2) The functions are—

- (a) setting an amount or amounts for the authority's personal community charges for a chargeable financial year, whether originally or by way of substitute,
- (b) issuing a precept under this Act, whether originally or by way of substitute,
- (c) making a calculation under section 95(4) above, whether originally or by way of substitute, and
- (d) setting a non-domestic rating multiplier under Schedule 7 below, whether originally or by way of substitute, in a case where the authority is a special authority.

Separate administration in England and Wales.

140.—(1) Parts III, V and VII shall be read as applying separately, and be administered separately, in England and Wales.

(2) In particular, for England and Wales respectively—

- (a) separate central non-domestic rating lists shall be compiled and maintained,
- (b) separate estimates shall be made under paragraph 5(6) and (7) of Schedule 7 below for the purpose of determining non-domestic rating multipliers,
- (c) separate non-domestic rating accounts shall be kept,

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- (d) separate revenue support grant reports shall be made,
- (e) separate distribution reports under section 80 above shall be made, and
- (f) separate principles shall be determined under section 100(4) above.

(3) Parts III, V and VII shall be construed accordingly so that (for instance) references to authorities shall be read as references to those in England or Wales, as the case may be.

(4) Any power conferred by this Act on the Secretary of State or the Treasury may be exercised differently for England and Wales, whether or not it is exercised separately; and this shall not prejudice the generality of section 143(1) below.

141.—(1) The Secretary of State may make regulations in relation to any case where— Payments to and from authorities.

- (a) he is liable to pay to a receiving authority at any time an amount or amounts under one or more of the first relevant provisions, and

- (b) the authority is liable to pay to him at the same time an amount or amounts under one or more of the second relevant provisions.

(2) The regulations may provide that if the total of the amount or amounts mentioned in subsection (1)(a) above exceeds the total of the amount or amounts mentioned in subsection (1)(b) above, he may set off the latter in paying the former.

(3) The regulations may provide that if the total of the amount or amounts mentioned in subsection (1)(b) above exceeds the total of the amount or amounts mentioned in subsection (1)(a) above, the authority shall set off the latter in paying the former.

(4) The regulations may provide that if the total of the amount or amounts mentioned in subsection (1)(a) above is the same as the total of the amount or amounts mentioned in subsection (1)(b) above no payment need be made in respect of the former or the latter.

(5) Without prejudice to section 143(2) below, the regulations may include provision—

- (a) treating any liability mentioned in subsection (1) above as discharged accordingly;
 - (b) requiring prescribed provisions of this Act (such as sections 79(2) and 86(2)) to be read subject to the regulations;
 - (c) requiring prescribed provisions of this Act (such as paragraph 2 of Schedule 8) to be read as if references to sums received or payments made were to sums or payments which would have been received or made apart from the regulations.
- (6) Each of the following is a receiving authority—
- (a) a charging authority, and
 - (b) in the application of this section to Wales, a county council.

(7) The first relevant provisions are sections 83 and 86 above, paragraph 5(10) of Schedule 8 below, regulations made under paragraph 6(5) of that Schedule, and paragraphs 9, 12 and 13 of that Schedule.

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(8) The second relevant provisions are section 83 above and paragraph 5 of Schedule 8 below.

Saving for remedies.

142. No provision of this Act which provides an express remedy shall prejudice any remedy available to a person (apart from that provision) in respect of a failure to observe a provision of this Act; and references here to this Act include references to instruments made under it.

Orders and regulations.

143.—(1) The power to make an order or regulations under this Act may be exercised differently in relation to different areas or in relation to other different cases or descriptions of case.

(2) An order or regulations under this Act may include such supplementary, incidental, consequential or transitional provisions as appear to the Secretary of State or the Treasury (as the case may be) to be necessary or expedient.

(3) Subject to subsections (4) to (9) below, the power to make an order or regulations under this Act shall be exercisable by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

(4) The power to make regulations under section 57 or 58 above shall be exercisable by statutory instrument, and no such regulations shall be made unless a draft of them has been laid before and approved by resolution of each House of Parliament.

(5) As regards the power to make regulations under section 75 or 118 above, subsection (3) above shall have effect without the words from "subject" to the end.

(6) As regards the power to make an order under section 101(1) or (2) above or section 150 below, subsection (3) above shall have effect without the words from "subject" to the end.

(7) The power to make an order under section 104 or 106 above shall be exercisable as there mentioned.

(8) The power to make an order under paragraph 3 of Schedule 6 below shall be exercisable by statutory instrument, and no such order shall be made unless a draft of it has been laid before and approved by resolution of each House of Parliament.

(9) The power to make an order under paragraph 5 of Schedule 7 below shall be exercisable as there mentioned.

(10) Before he makes regulations under section 75 or 118 above, the Secretary of State shall, by means of a notice in a newspaper or newspapers, take such steps as he thinks reasonably practicable to bring the contents of the proposed regulations to the notice of persons likely to be affected.

(11) An order under paragraph 3 of Schedule 6 below shall, if apart from the provisions of this subsection it would be treated for the purposes of the standing orders of either House of Parliament as a hybrid instrument, proceed in that House as if it were not such an instrument.

144.—(1) Each of the following is a charging authority—

- (a) a district council,
- (b) a London borough council,
- (c) the Common Council, and
- (d) the Council of the Isles of Scilly.

(2) Each of the following is a precepting authority—

- (a) a county council,
- (b) a metropolitan county police authority,
- (c) the Northumbria Police Authority,
- (d) a metropolitan county fire and civil defence authority,
- (e) the London Fire and Civil Defence Authority,
- (f) the Receiver for the Metropolitan Police District,
- (g) the sub-treasurer of the Inner Temple,
- (h) the under-treasurer of the Middle Temple,
- (i) a parish or community council,
- (j) the chairman of a parish meeting, and
- (k) charter trustees.

(3) A waste disposal authority is an authority established at any time by an order under section 10(1) of the Local Government Act 1985.

1985 c. 51.

(4) A combined police authority is a combined police authority established at any time by an amalgamation scheme under the Police Act 1964.

1964 c. 48.

(5) A combined fire authority is a fire authority constituted at any time by a combination scheme under the Fire Services Act 1947.

1947 c. 41.

(6) A charging authority is a special authority if its population on 1 April 1986 was less than 10,000, and its gross rateable value on that date divided by its population on that date was more than £10,000.

(7) An authority's population on 1 April 1986 is the Registrar General's estimate of its population on that date as certified by him to the Secretary of State for the purposes of the enactments relating to rate support grant; and an authority's gross rateable value on that date is the aggregate of the rateable values on that date of the hereditaments in its area.

145.—(1) Chargeable financial years are financial years beginning in 1990 and subsequent years.

Interpretation:
financial years etc.

(2) Transitional years are financial years beginning in 1990, 1991, 1992 and 1993; and the first transitional year is that beginning in 1990.

(3) A financial year is a period of 12 months beginning with 1 April.

146.—(1) Unless the context otherwise requires, a precept is a precept under this Act.

Interpretation:
other provisions.

(2) Unless the context otherwise requires, a levy is a levy under regulations made under section 74 above, and a levying body is a body with power to issue a levy under those regulations.

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(3) A special levy is a special levy under regulations made under section 75 above.

(4) The Common Council is the Common Council of the City of London.

(5) The Inner Temple and the Middle Temple shall be taken to fall within the area of the Common Council.

(6) "Prescribed", in the context of an order or regulations, means prescribed by the order or regulations.

(7) This section and sections 144 and 145 above apply for the purposes of this Act.

Power to make
supplementary
provision.

147.—(1) The Secretary of State may at any time by order make such supplementary, incidental, consequential or transitional provision as appears to him to be necessary or expedient for the general purposes or any particular purposes of this Act or in consequence of any of its provisions or for giving full effect to it.

(2) An order under this section may in particular make provision for amending, repealing or revoking (with or without savings) any provision of an Act passed before or in the same session as this Act, or of an instrument made under an Act before the passing of this Act, and for making savings or additional savings from the effect of any amendment or repeal made by this Act.

(3) Any provision that may be made under this section shall be in addition and without prejudice to any other provision of this Act.

(4) No other provision of this Act shall be construed as prejudicing the generality of the powers conferred by this section.

(5) In this section "Act" includes a private or local Act.

Finance.

148.—(1) There shall be paid out of money provided by Parliament—

(a) any expenses of the Secretary of State incurred in consequence of this Act, and

(b) any increase attributable to this Act in the sums payable out of money so provided under any other enactment.

(2) Any sums received by the Secretary of State in consequence of this Act shall be paid into the Consolidated Fund.

Repeals.

149. The enactments mentioned in Schedule 13 below are repealed to the extent specified in column 3, but subject to any provision at the end of any Part of that Schedule.

Commencement:
Scotland.

150. The provisions of this Act which extend only to Scotland shall come into force on such day as the Secretary of State may by order appoint; and different days may be so appointed for different provisions or for different purposes.

Extent.

151.—(1) Part X of this Act, section 150 above, Part II of Schedule 12 below, and Part IV of Schedule 13 below, extend to Scotland only.

(2) Sections 133, 135, 137, 143, 144(1), 145, 146(6) and (7), 147, 148 and 149 above, this section, section 152 below, Schedule 10 below, and Part III of Schedule 12 below, extend to England and Wales and Scotland.

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(3) Subject to subsections (1) and (2) above, this Act extends to England and Wales only.

152. This Act may be cited as the Local Government Finance Act 1988. Citation.

SCHEDULES

Section 2.

SCHEDULE 1

PERSONAL COMMUNITY CHARGE: EXEMPTION

Persons in detention

1.—(1) A person is an exempt individual on a particular day if at any time on the day—

- (a) he is detained in a prison, a hospital or any other place by virtue of an order of a court to which sub-paragraph (2) below applies,
- 1971 c. 77. (b) he is detained under paragraph 2 of Schedule 3 to the Immigration Act 1971 (deportation),
- 1983 c. 20. (c) he is detained under section 136 of the Mental Health Act 1983 (detention in place of safety), or
- 1984 c. 47. (d) he is detained under a warrant issued under the Repatriation of Prisoners Act 1984.

(2) This sub-paragraph applies to the following courts—

- (a) a court in the United Kingdom, and
- 1976 c. 52. (b) a Standing Civilian Court established under the Armed Forces Act 1976.

1952 c. 52. (3) If a person is temporarily discharged under section 28 of the Prison Act 1952, or temporarily released under rules under section 47(5) of that Act, for the purposes of sub-paragraph (1) above he shall be treated as detained.

(4) Sub-paragraph (1) above does not apply where the person is detained under regulations made under paragraph 8 of Schedule 4 below.

1980 c. 43. (5) Sub-paragraph (1) above does not apply where the person is detained under
1982 c. 48. section 76 of the Magistrates' Courts Act 1980, or section 9 of the Criminal Justice Act 1982, for default in payment of a fine.

(6) In sub-paragraph (1) above "order" includes a sentence, direction, warrant or other means of giving effect to the decision of the court concerned.

(7) The Secretary of State may by order provide that a person is an exempt individual on a particular day if—

- (a) at any time on the day he is imprisoned, detained or in custody under the Army Act 1955, the Air Force Act 1955 or the Naval Discipline Act 1957, and
- 1955 c. 18.
1955 c. 19.
1957 c. 53. (b) such conditions as may be prescribed are fulfilled.

Visiting forces

2.—(1) A person is an exempt individual on a particular day if at any time on the day he has a relevant association with a visiting force.

(2) A visiting force, in relation to any particular time, is any body, contingent or detachment of the forces of a country to which any provision in Part I of the Visiting Forces Act 1952 applies at that time.

(3) A person has, at any particular time, a relevant association with a visiting force if he has at that time such an association within the meaning of that Part.

International headquarters and defence organisations

3.—(1) A person is an exempt individual on a particular day if at any time on the day he is a member of a headquarters or a dependant of such a member.

(2) A headquarters, in relation to any particular time, is a headquarters or organisation designated at that time by an Order in Council under section 1 of the International Headquarters and Defence Organisations Act 1964. SCH. 1
1964 c. 5.

(3) A person is, at any particular time, a member of a headquarters if he is at that time such a member within the meaning of the Schedule to that Act.

(4) A person is, at any particular time, a dependant of such a member if he is at that time such a dependant within the meaning of that Schedule.

The severely mentally impaired

4.—(1) A person is an exempt individual on a particular day if—

- (a) as regards the day he fulfils one or more of the conditions mentioned in sub-paragraph (2) below,
- (b) at any time on the day he is severely mentally impaired, and
- (c) he is stated to be severely mentally impaired at that time in a certificate of a registered medical practitioner.

(2) The conditions are that—

- (a) he is entitled for the day to an invalidity pension under section 15 of the Social Security Act 1975; 1975 c. 14.
- (b) he is entitled for the day to a severe disablement allowance under section 36 of that Act;
- (c) he is on the day of pensionable age within the meaning given by section 27 of that Act.

(3) A person is severely mentally impaired if he is suffering from—

- (a) a state of arrested or incomplete development of mind which involves severe impairment of intelligence and social functioning, or
- (b) an injury to the brain causing severe impairment of intelligence and social functioning which appears to be permanent.

(4) The Secretary of State may by order amend sub-paragraph (2) above as it has effect for the time being (whether by adding, deleting or amending conditions, or by any combination of those methods).

(5) The Secretary of State may by order substitute another definition for the definition of severe mental impairment for the time being effective for the purposes of this paragraph.

Children

5. A person is an exempt individual on a particular day if the day falls within a week for which a person is entitled to child benefit in respect of the individual.

Students

6. A person is an exempt individual on a particular day if it falls within a period in which he is undertaking a full-time course of education and he is resident in Scotland or Northern Ireland for the purpose of undertaking the course.

Members of religious communities

7.—(1) A person is an exempt individual on a particular day if at any time on the day—

- (a) he is a member of a relevant religious community, and
- (b) he has no income or capital of his own and is dependent on the community concerned for his material needs.

- SCH. 1 (2) A relevant religious community is a religious community whose principal occupation—
- (a) is prayer, contemplation, the relief of suffering, education, or any prescribed occupation, or
 - (b) consists of two or more of the occupations mentioned in paragraph (a) above.
- (3) A prescribed occupation is such occupation as may for the time being be prescribed for the purposes of this paragraph by regulations made by the Secretary of State.
- (4) In construing sub-paragraph (1)(b) above income by way of pension in respect of a former employment is to be ignored.

Hospital patients

- 8.—(1) A person is an exempt individual on a particular day if at any time on the day one or more of the following paragraphs applies to him—
- (a) he is a patient who has his sole or main residence in a hospital;
 - (b) he is detained under Part II of the Mental Health Act 1983 in a hospital;
 - (c) he is detained under section 46, 47 or 48 of that Act in a hospital.
- 1983 c. 20.
- (2) "Hospital" means a health service hospital within the meaning of the National Health Service Act 1977.
- 1977 c. 49.
- (3) The Secretary of State may by order substitute another definition for the definition of hospital for the time being effective for the purposes of this paragraph.

Patients in homes

- 9.—(1) A person is an exempt individual on a particular day if at any time on the day one or each of the following paragraphs applies to him—
- (a) he has his sole or main residence in a residential care home, nursing home, mental nursing home or hostel, and he is receiving care or treatment (or both) in the home or hostel;
 - (b) he is detained under Part II of the Mental Health Act 1983 in a mental nursing home.
- (2) A residential care home is—
- (a) an establishment in respect of which registration is required under Part I of the Registered Homes Act 1984 or would be so required but for section 1(4) or (5)(j) of that Act, or
 - (b) a building or part of a building in which residential accommodation is provided under section 21 of the National Assistance Act 1948 or paragraph 2(1)(a) of Schedule 8 to the National Health Service Act 1977.
- 1984 c. 23.
- 1948 c. 29.
- (3) A nursing home is anything which is a nursing home within the meaning of the Registered Homes Act 1984 or would be but for section 21(3)(a) of that Act.
- (4) A hostel is anything which falls within any definition of hostel for the time being prescribed by order made by the Secretary of State under this sub-paragraph.
- (5) A mental nursing home is anything which is a mental nursing home within the meaning of the Registered Homes Act 1984.
- (6) The Secretary of State may by order substitute another definition for any definition of a residential care home, nursing home or mental nursing home for the time being effective for the purposes of this paragraph.

Care workers

SCH. 1

10.—(1) A person is an exempt individual on a particular day if—

- (a) at any time on the day he is employed to provide care or support (or both) to another person or other persons, and
- (b) such conditions as may be prescribed by regulations made by the Secretary of State are fulfilled.

(2) Without prejudice to the generality of sub-paragraph (1)(b) above the conditions may—

- (a) require the person's employer to be a charity or fulfil some other description;
- (b) relate to the period for which he is employed or other factors concerning his employment;
- (c) require his income for a prescribed period (which contains the day concerned) not to exceed a prescribed amount;
- (d) require his capital not to exceed a prescribed amount;
- (e) require him to be resident in prescribed premises;
- (f) require him not to exceed a prescribed age;
- (g) require the other person or persons to fulfil a prescribed description (whether relating to age, disablement or otherwise).

Residents of certain Crown buildings

11.—(1) A person is an exempt individual on a particular day if at any time on the day he has his sole or main residence in a building which on the day concerned is designated under this paragraph.

(2) The Secretary of State may designate a building under this paragraph if at the time of designation the first and second conditions are fulfilled.

(3) The first condition is that—

- (a) the Crown has a freehold interest in the whole building and it is not subject (as a whole) to a single leasehold interest, or
- (b) the Crown has an interest in the whole building under a lease or underlease and it is not subject (as a whole) to a single inferior leasehold interest.

(4) The second condition is that in the Secretary of State's opinion the building is used wholly or mainly as the sole or main residence of individuals, and in his opinion most or all of them—

- (a) reside there for short periods, or
- (b) should in the interests of national security not be registered as subject to a personal community charge.

(5) The Secretary of State shall revoke a designation under this paragraph if the first or second condition ceases to be fulfilled.

(6) A designation under this paragraph shall take effect at the beginning of the day following that on which it is made, and shall cease to have effect at the end of the day (if any) on which it is revoked.

(7) The Crown has an interest in a building if the interest belongs to Her Majesty in right of the Crown or of the Duchy of Lancaster, or belongs to the Duchy of Cornwall or a government department, or is held for the purposes of a government department.

SCH. 1

Residents of certain other dwellings

12. A person is an exempt individual on a particular day if—

- (a) at any time on the day he has his sole or main residence in a designated dwelling in respect of which a person is shown in the register as subject on the day to a collective community charge of a charging authority, and
- (b) the day does not fall within a period in which he is undertaking a full-time course of education.

13. A person is an exempt individual on a particular day if at any time on the day he has his sole or main residence in a building falling within a description prescribed under section 5(3)(d) above.

Persons without fixed abodes

14.—(1) A person is an exempt individual on a particular day if—

- (a) throughout the day he has no fixed abode in England and Wales or elsewhere, and
- (b) at the end of the day the place of his sole or main residence does not consist of a building, caravan or residential boat.

(2) A residential boat is a boat which is designed or adapted for human habitation.

Section 22.

SCHEDULE 2

COMMUNITY CHARGES: ADMINISTRATION

Introduction

1. The Secretary of State may make regulations containing such provision as he sees fit in relation to—

- (a) the collection of amounts persons are liable to pay in respect of community charges;
- (b) the collection of amounts individuals are liable to pay by way of contribution to amounts other persons are liable to pay in respect of collective community charges;
- (c) other aspects of administration as regards community charges and contributions.

Charges

2.—(1) In sub-paragraph (2) below—

- (a) references to the chargeable person are to a person who is entered in an authority's register as subject in a chargeable financial year to a community charge of the authority and who has sole liability to pay an amount to the authority in respect of the charge as it has effect for the year,
- (b) references to the chargeable amount are to the amount he is liable to pay, and
- (c) references to the authority and the financial year are to the authority and the financial year concerned.

(2) Regulations under this Schedule may include provision—

- (a) that the chargeable person is to make payments on account of the chargeable amount, which may include payments during the course of the financial year,

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- (b) that payments on account must be made in accordance with an agreement between the chargeable person and the authority or in accordance with a prescribed scheme for payment by instalments,
 - (c) that in prescribed circumstances payments on account must be calculated by reference to an estimate of the chargeable amount,
 - (d) that an estimate must be made on prescribed assumptions (whether as to the chargeable person's residence or his interest in property or amounts payable by way of contribution or otherwise),
 - (e) that if the authority requests the chargeable person to supply it with information for the purpose of enabling it to make an estimate, he must supply it to the authority within a prescribed period if it is in his possession or control,
 - (f) that the authority must serve a notice or notices on the chargeable person stating the chargeable amount or its estimated amount and what payment or payments he is required to make (by way of instalment or otherwise),
 - (g) that, in the case of a collective community charge, the chargeable person must compile, and retain for a prescribed period, records about individuals resident in the designated dwelling (whether or not they are liable to make a payment under section 9 above) and about periods of residence and contributions payable,
 - (h) that, in the case of a collective community charge, the chargeable person must within a prescribed period of being requested by the authority or its registration officer allow it or him (as the case may be) to inspect the records,
 - (i) that, in the case of a collective community charge, the chargeable person must within a prescribed period of being requested by the authority or its registration officer send a copy of the records to it or him (as the case may be),
 - (j) that, in the case of a collective community charge, the chargeable person must submit returns to the authority containing information about amounts payable by way of contribution,
 - (k) that no payment on account of the chargeable amount need be made or return submitted unless a notice requires it,
 - (l) that a notice and any requirement in it is to be treated as invalid if it contains prescribed matters or fails to contain other prescribed matters or is not in a prescribed form,
 - (m) that the authority must supply prescribed information to the chargeable person when it serves a notice and that the notice is to be treated as invalid if the authority does not do so,
 - (n) that if the chargeable person fails to pay an instalment or submit a return in accordance with the regulations the unpaid balance of the chargeable amount or its estimated amount is to be payable on the day after the end of a prescribed period which begins with the day of the failure, and
 - (o) that any amount paid by the chargeable person in excess of his liability (whether the excess arises because an estimate turns out to be wrong or otherwise) must be repaid or credited against any subsequent liability.
- (3) The regulations may include provision that where—
- (a) a person is entered in the registers of two or more authorities as subject on the same day or days in a chargeable financial year to personal community charges of the authorities,
 - (b) he has sole liability to pay an amount to each authority in respect of its charge as it has effect for the year, and

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(c) one or more of the entries is subject to an appeal or arbitration, while any such appeal or arbitration is outstanding no amount shall be payable by virtue of any of the entries other than the entry which was made first.

(4) The regulations may include rules for ascertaining whether an entry is subject to an appeal or arbitration, whether an appeal or arbitration is outstanding, and which of a number of entries was made first; and the regulations may treat an appeal or arbitration as outstanding unless it is finally disposed of or abandoned or fails for non-prosecution.

3.—(1) Regulations under this Schedule may include provision as to the collection of amounts persons are jointly and severally liable to pay in respect of community charges.

(2) The regulations may include provision equivalent to that included under paragraph 2 above subject to any modifications the Secretary of State sees fit.

(3) The regulations may include rules for determining whether any payment made by a person jointly and severally liable as to a fraction of an amount is (or is not) made towards satisfaction of his liability as to that fraction.

Contributions

4.—(1) In this paragraph—

- (a) references to the contributor are to an individual liable to pay in respect of a contribution period an amount to another person by way of contribution to the amount he is liable to pay to an authority in respect of a collective community charge of the authority as it has effect for a financial year,
- (b) references to the chargeable person are to the other person,
- (c) references to the contribution are to the amount the individual is liable to pay, and
- (d) the reference to the contribution period is to the contribution period concerned.

(2) Regulations under this Schedule may include provision—

- (a) that the contributor is to make a payment or payments on account of the contribution, which may include a payment or payments before the contribution period ends,
- (b) that payments must be made at prescribed times (which may be times determined by the chargeable person or times when rent or some other consideration for accommodation is due or otherwise),
- (c) that in prescribed circumstances payments on account must be calculated by reference to an estimate of the contribution,
- (d) that an estimate must be made on prescribed assumptions (whether as to a period of residence or otherwise),
- (e) that the chargeable person must inform the contributor that the dwelling is a designated dwelling and supply him with prescribed information about the contribution and a receipt for any payment by way of the contribution, and
- (f) that any amount paid by the contributor in excess of his liability (whether the excess arises because an estimate turns out to be wrong or otherwise) must be repaid.

Discounts

5.—(1) Regulations under this Schedule may include provision that where—

- (a) a person has sole liability to pay an amount (a chargeable amount) in respect of an authority's community charge as it has effect for a chargeable financial year,

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- (b) his liability would (apart from any provision under this paragraph) fall to be discharged by making payments on account in accordance with an agreement or in accordance with a scheme for payment by instalments,
- (c) an estimate is made of the chargeable amount,
- (d) he makes on account of the chargeable amount a single lump sum payment which is less than the estimated amount and is calculated in accordance with prescribed rules, and
- (e) other prescribed conditions (if any) are fulfilled,

the person's liability in respect of the chargeable amount shall be discharged by making the single lump sum payment.

(2) The regulations may include provision that—

- (a) if the chargeable amount proves to be greater than the estimated amount an additional sum, calculated in accordance with prescribed rules, shall be due from the person to the authority;
- (b) if the chargeable amount proves to be less than the estimated amount a sum, calculated in accordance with prescribed rules, shall be due from the authority to the person or credited against any subsequent liability.

(3) Rules included under sub-paragraph (2)(a) above shall be so framed that the aggregate of the lump sum paid and the additional sum is less than the chargeable amount.

(4) Rules included under sub-paragraph (2)(b) above shall be so framed that the lump sum paid, minus the sum due or credited, is less than the chargeable amount.

(5) The regulations may include, as regards a case where persons are jointly and severally liable to pay an amount in respect of an authority's community charge as it has effect for a chargeable financial year, provision equivalent to that included under sub-paragraphs (1) to (4) above subject to any modifications the Secretary of State sees fit.

(6) The regulations may include provision that (in a case where any provision included under sub-paragraphs (1) to (5) above applies) any provision which is included under paragraph 2 or 3 above and is prescribed under this sub-paragraph shall not apply.

Information

6.—(1) Regulations under this Schedule may include provision that any person mentioned in sub-paragraph (2) below shall supply to a registration officer for a charging authority such information as fulfils the following conditions—

- (a) it is in the possession or control of the person concerned,
- (b) the registration officer requests the person concerned to supply it,
- (c) it is requested by the registration officer for the purpose of carrying out his functions under this Part, and
- (d) it does not fall within any prescribed description of information which need not be supplied.

(2) The persons are—

- (a) the registration officer for any other charging authority,
- (b) the charging authority for which the officer making the request is the registration officer,
- (c) any other charging authority,
- (d) any precepting authority, and
- (e) the electoral registration officer for any area in England and Wales.

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(3) The regulations may include provision that the information is to be supplied in a prescribed form and within a prescribed period of the request being made.

7.—(1) Regulations under this Schedule may include provision that any person falling within sub-paragraph (2) below shall supply to a registration officer for a charging authority such information as fulfils the following conditions—

- (a) it is in the possession or control of the person concerned,
- (b) the registration officer requests the person concerned to supply it, and
- (c) it is requested by the registration officer for the purpose of carrying out his functions under this Part.

(2) A person falls within this sub-paragraph if he is a person the officer making the request reasonably believes is, has been, or is about to become, subject to a community charge of the authority for which the officer is the registration officer.

(3) The regulations may include provision that the information is to be supplied in a prescribed form and within a prescribed period of the request being made.

8.—(1) Regulations under this Schedule may include provision that as regards any relevant property one or more individuals (to be called responsible individuals) may be designated by a registration officer for a charging authority, or otherwise identified, in accordance with prescribed rules.

(2) The regulations may include provision that a responsible individual shall supply to a registration officer for a charging authority such information as fulfils the following conditions—

- (a) it is in the possession or control of the responsible individual,
- (b) the registration officer requests the responsible individual to supply it, and
- (c) it is requested by the registration officer with the object of enabling him to form a view whether the responsible individual or any other person is, has been, or is about to become, subject to a community charge of the authority by virtue of the relevant property.

(3) The regulations may include provision that the information is to be supplied in a prescribed form and within a prescribed period of the request being made.

(4) The regulations may include provision allowing or requiring a registration officer for a charging authority to revoke a designation of an individual as a responsible individual.

(5) References to relevant property are to a building, a part of a building, a caravan or a houseboat.

9.—(1) Regulations under this Schedule may include provision that a certification officer shall supply to a registration officer for a charging authority such information as is mentioned in sub-paragraph (2) below and fulfils the following conditions—

- (a) it is in the possession or control of the certification officer,
- (b) the registration officer requests the certification officer to supply it, and
- (c) it is requested by the registration officer for the purpose of carrying out his functions under this Part.

(2) The information is—

- (a) the name of each person who (on the day the request is made) is undertaking a full-time course of education at the educational establishment of the certification officer and has his sole or main residence in the area of the charging authority, and
- (b) the address of the sole or main residence of each such person.

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(3) The regulations may include provision that the information is to be supplied in a prescribed form and within a prescribed period of the request being made.

(4) A certification officer is an individual who is a certification officer by virtue of regulations under section 30 above.

(5) The educational establishment of a certification officer is the educational establishment as regards which he is the certification officer.

10.—(1) Regulations under this Schedule may include provision that a person who has reason to believe he is or has been subject at any time on or after 1 December 1989 to a community charge of a charging authority shall inform the registration officer accordingly.

(2) The regulations may include provision that where a person is shown in a charging authority's register as subject to a community charge of the authority, and he has reason to believe that the item concerned contains an error or is not complete or up-to-date, he shall inform the registration officer accordingly.

(3) The regulations may include provision that the information is to be supplied in a prescribed form and within a prescribed period of the person having reason to believe as mentioned in sub-paragraph (1) or (2) above.

11.—(1) Regulations under this Schedule may include provision that—

- (a) where a person becomes or ceases to be subject to a charging authority's community charge, and the registration officer makes an entry in the register accordingly, as soon as is reasonably practicable after doing so he shall send the prescribed person a copy of the item contained in the register in relation to the charge,
- (b) where the registration officer amends an item contained in the register in order to correct an error or render the item more complete or up-to-date, as soon as is reasonably practicable after doing so he shall send the person shown in the register as subject to the charge concerned a copy of the amended item, and
- (c) any copy sent in accordance with the regulations must be accompanied by prescribed information.

(2) Regulations under sub-paragraph (1)(a) above may prescribe the person who has become or ceased to be subject to the charge concerned or any other person.

12.—(1) Regulations under this Schedule may include provision that a registration officer for a charging authority shall supply to the Secretary of State such information as fulfils the following conditions—

- (a) it is in the possession or control of the officer and was obtained by him for the purpose of carrying out his functions under this Part,
- (b) the Secretary of State requests him to supply it, and
- (c) it is requested by the Secretary of State for the purpose of carrying out his functions under this Part.

(2) The regulations may include provision that the information is to be supplied in a prescribed form and within a prescribed period of the request being made.

13.—(1) Regulations under this Schedule may include provision that (so far as he does not have power to do so apart from the regulations) a registration officer for a charging authority may supply relevant information to a registration officer for another charging authority, even if he is not requested to supply the information.

(2) Information is relevant information if—

- (a) it was obtained by the first-mentioned officer in exercising his functions under this Part,

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- (b) he believes it would be useful to the other officer in exercising his functions under this Part, and
- (c) it does not fall within any prescribed description of information which is not to be supplied.

14.—(1) Regulations under this Schedule may include provision that no duty of confidentiality shall prevent the Secretary of State from disclosing relevant information to a registration officer for a charging authority.

(2) Information is relevant information if—

1986 c. 50.

- (a) it was obtained by the Secretary of State in exercising his functions under the Social Security Act 1986,
- (b) the Secretary of State believes it would be useful to the registration officer in exercising his functions under this Part, and
- (c) it falls within a prescribed description.

15. Regulations under this Schedule may include provision that, in carrying out its functions under this Part, a charging authority may use information which—

- (a) is obtained under any other enactment, and
- (b) does not fall within any prescribed description of information which cannot be used.

Inspection etc.

16.—(1) Regulations under this Schedule may include provision that a person shown in a charging authority's register as subject at any time to a community charge of the authority may, at a reasonable place and reasonable time stated by the registration officer, inspect the item contained in the register in relation to the charge.

(2) The regulations may include provision that if such a person requests the registration officer to supply a copy of such an item the officer shall supply a copy to the person.

(3) The regulations may include provision that if the authority requires a reasonable charge in respect of the supply of such a copy the duty to supply it shall not arise unless the person pays the charge.

(4) To cater for any case where a register is not kept in a documentary form, the regulations may include provision equivalent to that included under sub-paragraphs (1) to (3) above subject to any modifications the Secretary of State sees fit.

17.—(1) Regulations under this Schedule may include provision that a registration officer is to compile and then maintain—

- (a) an extract of prescribed information taken from the information for the time being contained in the charging authority's register, and
- (b) a list of the addresses of buildings and parts of buildings for the time being designated by the registration officer for the purposes of the charging authority's collective community charges.

(2) The regulations may include provision that any person may, at a reasonable place and reasonable time stated by the registration officer, inspect the extract and list maintained as mentioned in sub-paragraph (1) above.

(3) The regulations may include provision that the registration officer may not supply a copy of the extract and list to any person.

(4) To cater for any case where the extract and list are not maintained in a documentary form, the regulations may include provision equivalent to that included under sub-paragraph (2) above subject to any modifications the Secretary of State sees fit.

18. Regulations under this Schedule may include provision that an authority which, or officer who, has received a copy of records under any provision included under paragraph 2(2)(i) above must allow the copy to be inspected by an individual liable to pay an amount to the chargeable person concerned by way of contribution to the amount he is liable to pay in respect of the charge concerned.

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Miscellaneous

19. A payment on account of a contribution an individual is liable to pay under section 9 above shall not be treated as rent or other consideration for accommodation, notwithstanding anything included in regulations under paragraph 4 above.

20. Any reference in this Schedule to a payment on account of an amount is to any payment (whether interim, final or sole) in respect of the amount.

SCHEDULE 3

Section 22.

COMMUNITY CHARGES: PENALTIES

Imposition by authority

1.—(1) Where a person (other than an authority) is requested to supply information under any provision included in regulations under paragraph 2 or 3 of Schedule 2 above, the authority making the request may impose a penalty of £50 on him if—

- (a) he fails without reasonable excuse to supply the information in accordance with the provision, or
- (b) in purported compliance with the provision he knowingly supplies information which is inaccurate in a material particular.

(2) Where a penalty has been imposed on a person under sub-paragraph (1) above and he is requested by the authority a second time to supply the same information under the same provision, the authority may impose a further penalty of £200 on him if—

- (a) he fails without reasonable excuse to supply the information in accordance with the provision, or
- (b) in purported compliance with the provision he knowingly supplies information which is inaccurate in a material particular.

(3) Where a person is requested by an authority to allow it to inspect records under any provision included in regulations under paragraph 2 or 3 of Schedule 2 above, the authority may impose a penalty of £50 on him if he fails without reasonable excuse to allow the records to be inspected in accordance with the provision.

(4) Where a penalty has been imposed on a person under sub-paragraph (3) above and he is requested by the authority a second time to allow it to inspect the same records under the same provision, the authority may impose a further penalty of £200 on him if he fails without reasonable excuse to allow the records to be inspected in accordance with the provision.

(5) Where a person is requested by an authority to send a copy of records under any provision included in regulations under paragraph 2 or 3 of Schedule 2 above, the authority may impose a penalty of £50 on him if he fails without reasonable excuse to send a copy in accordance with the provision.

(6) Where a penalty has been imposed on a person under sub-paragraph (5) above and he is requested by the authority a second time to send a copy of the same records under the same provision, the authority may impose a further penalty of £200 on him if he fails without reasonable excuse to send a copy in accordance with the provision.

SCH. 3 (7) Where a person, in purported compliance with any provision included in regulations under paragraph 2 or 3 of Schedule 2 above, knowingly submits a return which is inaccurate in a material particular, the authority concerned may impose on him a penalty of £50.

(8) An authority may quash a penalty imposed by it.

Imposition by registration officer

2.—(1) Where a person—

- (a) fails without reasonable excuse to compile or retain records in accordance with any provision included in regulations under paragraph 2 or 3 of Schedule 2 above, or
- (b) in purported compliance with such provision knowingly compiles a record which is inaccurate in a material particular,

the registration officer for the authority concerned may impose a penalty of £50 on him.

(2) Where a penalty has been imposed on a person under sub-paragraph (1) above and as regards the same community charge—

- (a) he fails without reasonable excuse to compile or retain records in accordance with any provision included in regulations under paragraph 2 or 3 of Schedule 2 above, or
- (b) in purported compliance with such provision he knowingly compiles a record which is inaccurate in a material particular,

the registration officer for the authority concerned may impose a further penalty of £200 on him.

(3) Where a person is requested by a registration officer to allow him to inspect records under any provision included in regulations under paragraph 2 or 3 of Schedule 2 above, the officer may impose a penalty of £50 on him if he fails without reasonable excuse to allow the records to be inspected in accordance with the provision.

(4) Where a penalty has been imposed on a person under sub-paragraph (3) above and he is requested by the officer a second time to allow him to inspect the same records under the same provision, the officer may impose a further penalty of £200 on him if he fails without reasonable excuse to allow the records to be inspected in accordance with the provision.

(5) Where a person is requested by a registration officer to send a copy of records under any provision included in regulations under paragraph 2 or 3 of Schedule 2 above, the officer may impose a penalty of £50 on him if he fails without reasonable excuse to send a copy in accordance with the provision.

(6) Where a penalty has been imposed on a person under sub-paragraph (5) above and he is requested by the officer a second time to send a copy of the same records under the same provision, the officer may impose a further penalty of £200 on him if he fails without reasonable excuse to send a copy in accordance with the provision.

(7) Where a person fails without reasonable excuse—

- (a) to inform a contributor in accordance with any provision included in regulations under paragraph 4(2)(e) of Schedule 2 above,
- (b) to supply information in accordance with such a provision, or
- (c) to supply a receipt in accordance with such a provision,

the registration officer for the authority concerned may impose a penalty of £50 on him in respect of any (or each) such failure.

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(8) Where a person is requested to supply information under any provision included in regulations under paragraph 7, 8 or 9 of Schedule 2 above, the officer making the request may impose a penalty of £50 on him if—

- (a) he fails without reasonable excuse to supply the information in accordance with the provision, or
- (b) in purported compliance with the provision he knowingly supplies information which is inaccurate in a material particular.

(9) Where a penalty has been imposed on a person under sub-paragraph (8) above and he is requested by the officer a second time to supply the same information under the same provision, the officer may impose a further penalty of £200 on him if—

- (a) he fails without reasonable excuse to supply the information in accordance with the provision, or
- (b) in purported compliance with the provision he knowingly supplies information which is inaccurate in a material particular.

(10) Where a person is requested to supply information under any provision included in regulations under paragraph 7 or 8 of Schedule 2 above, and another person in responding to the request knowingly supplies information which is inaccurate in a material particular, the officer making the request may impose a penalty of £50 on the person supplying the information.

(11) Where a person fails without reasonable excuse to inform a registration officer in accordance with any provision included in regulations under paragraph 10 of Schedule 2 above the officer may impose a penalty of £50 on him.

(12) An officer may quash a penalty imposed by him.

General

3. Where a person is convicted of an offence, the conduct by reason of which he is convicted shall not also allow a penalty to be imposed under paragraph 1 or 2 above.

4.—(1) If it appears to the Treasury that there has been a change in the value of money since the passing of this Act or (as the case may be) the last occasion when the power conferred by this paragraph was exercised, they may by order substitute for any sum for the time being specified in paragraphs 1 and 2 above such other sum as appears to them to be justified by the change.

(2) An order under this paragraph shall not apply in relation to anything done, or any failure which began, before the date on which the order comes into force.

5.—(1) A penalty under paragraph 1 above shall be paid to the authority imposing it.

(2) A penalty under paragraph 2 above shall be paid to the authority for which the registration officer imposing it is the registration officer.

6.—(1) The Secretary of State may make regulations containing provision as to the collection of amounts payable as penalties under paragraph 1 or 2 above.

(2) The regulations may include provision for the collection of such amounts (including provision about instalments and notices) which is equivalent to that made in regulations under Schedule 2 above for the collection of amounts persons are liable to pay in respect of community charges subject to any modifications the Secretary of State sees fit.

(3) The regulations may include provision that, where the imposition of a penalty is subject to an appeal or arbitration, no amount shall be payable in respect of the penalty while the appeal or arbitration is outstanding.

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(4) The regulations may include rules for ascertaining whether an imposition is subject to an appeal or arbitration, and whether an appeal or arbitration is outstanding; and the regulations may treat an appeal or arbitration as outstanding unless it is finally disposed of or abandoned or fails for non-prosecution.

(5) The regulations may include provision dealing with any case where a penalty is quashed, and may in particular provide for the repayment of an amount or the allowance of an amount by way of deduction against a sum due.

(6) Provision as to penalties incurred under paragraph 2 (8) to (11) above before 1 April 1990 may be included in regulations under this paragraph notwithstanding that no liability to pay amounts in respect of community charges arises before that date.

Section 22.

SCHEDULE 4

COMMUNITY CHARGES: ENFORCEMENT

PART I

INTRODUCTION

1.—(1) The Secretary of State may make regulations in relation to the recovery of—

- (a) any sum which has become payable to an authority under any provision included in regulations under paragraph 2 of Schedule 2 above and has not been paid;
- (b) any sum which has become payable to an authority under any provision included in regulations under paragraph 3 of that Schedule and has not been paid;
- (c) any sum which has become payable to a chargeable person under any provision included in regulations under paragraph 4 of that Schedule and has not been paid;
- (d) any sum which has become payable to an authority under any provision included in regulations under paragraph 5(2)(a) or (5) of that Schedule and has not been paid;
- (e) any sum which has become payable (by way of repayment) to a person other than an authority under any provision included in regulations under paragraph 2, 3 or 5(2)(b) or (5) of that Schedule and has not been paid;
- (f) any sum which has become payable (by way of repayment) to a contributor under any provision included in regulations under paragraph 4 of that Schedule and has not been paid;
- (g) any sum which has become payable to an authority under any provision included in regulations under paragraph 6 of Schedule 3 above and has not been paid.

(2) References in sub-paragraph (1) above to a sum which has become payable and has not been paid include references to a sum forming part of a larger sum which has become payable and the other part of which has been paid.

PART II

CHARGES: SOLE LIABILITY

Preliminary

2. This Part of this Schedule applies as regards the recovery of any sum falling within paragraph 1(1)(a) above.

Liability orders

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- 3.—(1) Regulations under this Schedule may provide that—
- (a) the authority concerned may apply to a magistrates' court for an order (a liability order) against the person by whom the sum is payable;
 - (b) the magistrates' court shall make the order if it is satisfied that the sum has become payable by the person concerned and has not been paid.
- (2) The regulations may include provision that the order shall be made in respect of an amount equal to the aggregate of—
- (a) the sum payable, and
 - (b) a sum (of an amount determined in accordance with prescribed rules) in respect of the costs incurred in obtaining the order.
- (3) The regulations may include—
- (a) provision prescribing steps to be taken before an application may be made;
 - (b) provision that no application may be made after a prescribed period has expired;
 - (c) provision prescribing the procedure to be followed for the initiation of an application (which may include provision as to form);
 - (d) provision prescribing the procedure to be followed in dealing with an application;
 - (e) provision prescribing the form and contents of an order.

Information

4.—(1) Regulations under this Schedule may provide that where a magistrates' court has made a liability order against a person (the debtor) he shall, during such time as the amount in respect of which the order was made remains wholly or partly unpaid, be under a duty to supply relevant information to the charging authority concerned.

(2) Relevant information is such information as fulfils the following conditions—

- (a) it is in the debtor's possession or control,
- (b) the charging authority requests him to supply it, and
- (c) it falls within a prescribed description of information and relates to the debtor's employment (if any) or income (whether or not from employment).

(3) The regulations may include provision that the information is to be supplied in a prescribed form and within a prescribed period of the request being made.

Attachment of earnings

5.—(1) Regulations under this Schedule may provide that where a magistrates' court has made a liability order against a person (the debtor) and the debtor is an individual—

- (a) the authority concerned may make an order (an attachment of earnings order) to secure the payment of any outstanding sum which is or forms part of the amount in respect of which the liability order was made,
- (b) such an order shall be expressed to be directed to a person who has the debtor in his employment, and shall operate as an instruction to such a person to make deductions from the debtor's earnings and to pay the amounts deducted to the authority,

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- (c) the authority may serve a copy of the order on a person who appears to the authority to have the debtor in his employment, and
- (d) a person who has the debtor in his employment shall comply with the order if a copy of it is served on him.

(2) The regulations may include—

- (a) provision allowing an attachment of earnings order to be varied;
- (b) provision requiring a person who has the debtor in his employment to comply with the order as varied if a copy of the order as varied is served on him;
- (c) provision requiring an order to be in a prescribed form;
- (d) provision requiring an order to specify the sum to which the order relates, the rate at which the debtor's earnings are to be applied to meet the sum, and such other particulars as may be prescribed;
- (e) rules about the rate which may be so specified;
- (f) provision allowing the person who deducts and pays amounts under the order to deduct from the debtor's earnings prescribed sums towards his administrative costs;
- (g) provision requiring the person who deducts and pays amounts under the order to notify the debtor, in a prescribed manner and at any prescribed time, of the total amount of sums (including sums towards administrative costs) deducted up to the time of the notification;
- (h) provision requiring any person on whom a copy of the order is served to notify the authority in a prescribed manner and within a prescribed period if he does not have the debtor in his employment or the debtor subsequently ceases to be in his employment;
- (i) provision that, where the whole amount to which the order relates has been paid, the authority shall give notice of that fact to any person who appears to it to have the debtor in his employment and who has been served with a copy of the order;
- (j) provision allowing or requiring an order to be discharged.

(3) The regulations may include provision that while an attachment of earnings order is in force—

- (a) the debtor shall from time to time notify the authority concerned, in a prescribed manner and within a prescribed period, of each occasion when he leaves any employment or becomes employed or re-employed, and shall include in such a notification a statement of his earnings and expected earnings from the employment concerned and of such other matters as may be prescribed;
- (b) any person who becomes the debtor's employer and knows that the order is in force and by what authority it was made shall notify the authority concerned, in a prescribed manner and within a prescribed period, that he is the debtor's employer, and shall include in such a notification a statement of the debtor's earnings and expected earnings from the employment concerned and of such other matters as may be prescribed.

(4) The regulations may include provision with respect to the priority to be accorded as between—

- (a) two or more orders made under the regulations;
- (b) orders made under the regulations and orders made under the Attachment of Earnings Act 1971.

1971 c. 32.

- (5) The regulations may include provision that a person may appeal to a magistrates' court if he is aggrieved by the making or the terms of an attachment of earnings order, or there is a dispute whether payments constitute earnings or as to any other prescribed matter relating to the order.

(6) The regulations may include—

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- (a) provision prescribing the procedure to be followed for initiating an appeal;
- (b) provision prescribing the procedure to be followed in dealing with an appeal;
- (c) provision as to the powers of the court (which may include provision as to the quashing of an attachment of earnings order or the variation of the terms of such an order).

Deductions from income support

6.—(1) Regulations under this Schedule may provide that where a magistrates' court has made a liability order against a person (the debtor) and the debtor is entitled to income support within the meaning of the Social Security Act 1986— 1986 c. 50.

- (a) the authority concerned may apply to the Secretary of State asking him to deduct sums from any amounts payable to the debtor by way of income support, in order to secure the payment of any outstanding sum which is or forms part of the amount in respect of which the liability order was made, and
 - (b) the Secretary of State may deduct such sums and pay them to the authority towards satisfaction of any such outstanding sum.
- (2) The regulations may include—
- (a) provision allowing or requiring adjudication as regards an application, and provision as to appeals and reviews;
 - (b) a scheme containing provision as to the circumstances and manner in which and times at which sums are to be deducted and paid, provision about the calculation of such sums (which may include provision to secure that amounts payable to the debtor by way of income support do not fall below prescribed figures), and provision as to the circumstances in which the Secretary of State is to cease making deductions;
 - (c) provision requiring the Secretary of State to notify the debtor, in a prescribed manner and at any prescribed time, of the total amount of sums deducted up to the time of the notification;
 - (d) provision that, where the whole amount to which the application relates has been paid, the authority shall give notice of that fact to the Secretary of State.

Distress

7.—(1) Regulations under this Schedule may provide that where a magistrates' court has made a liability order against a person (the debtor) the authority concerned may levy the appropriate amount by distress and sale of the debtor's goods.

- (2) The appropriate amount is the aggregate of—
- (a) an amount equal to any outstanding sum which is or forms part of the amount in respect of which the liability order was made, and
 - (b) a sum (of an amount determined in accordance with prescribed rules) in respect of the charges connected with the distress.
- (3) The regulations may include provision that—
- (a) a distress may be made anywhere in England and Wales;
 - (b) a distress shall not be deemed unlawful on account of any defect or want of form in the liability order and no person making a distress shall be deemed a trespasser on that account;

SCH. 4

- (c) no person making a distress shall be deemed a trespasser from the beginning on account of any subsequent irregularity in making the distress, but a person sustaining special damage by reason of the irregularity may recover full satisfaction for the special damage (and no more) by proceedings in trespass or otherwise.

(4) The regulations may include provision that a person may appeal to a magistrates' court if he is aggrieved by the levy of, or an attempt to levy, a distress.

(5) The regulations may include—

- (a) provision prescribing the procedure to be followed for initiating an appeal;
- (b) provision prescribing the procedure to be followed in dealing with an appeal;
- (c) provision as to the powers of the court (which may include provision as to the discharge of goods distrained or the payment of compensation in respect of goods distrained and sold).

Commitment to prison

8.—(1) Regulations under this Schedule may provide that—

- (a) where an authority has sought to levy an amount by distress under any provision included under paragraph 7 above, the debtor is an individual, and it appears to the authority that no (or insufficient) goods of the debtor can be found on which to levy the amount, the authority may apply to a magistrates' court for the issue of a warrant committing the debtor to prison;
- (b) on such application being made the court shall (in the debtor's presence) inquire as to his means and inquire whether the failure to pay which led to the liability order being made was due to his wilful refusal or culpable neglect;
- (c) if (and only if) the court is of opinion that his failure was due to his wilful refusal or culpable neglect it may if it thinks fit issue a warrant of commitment against the debtor, or fix a term of imprisonment and postpone the issue of the warrant until such time and on such conditions (if any) as the court thinks just;
- (d) the warrant shall be made in respect of the relevant amount (within the meaning given by sub-paragraph (2) below);
- (e) the warrant shall state that amount;
- (f) the order in the warrant shall be that the debtor be imprisoned for a time specified in the warrant (which shall not exceed 3 months), unless the amount stated in the warrant is sooner paid;
- (g) the period of imprisonment shall be reduced by a prescribed amount in respect of part payment in prescribed circumstances;
- (h) a warrant may be directed to the authority concerned and to such other persons (if any) as the court issuing it thinks fit;
- (i) a warrant may be executed anywhere in England and Wales by any person to whom it is directed.

(2) The relevant amount is the aggregate of—

- (a) an amount equal to the appropriate amount within the meaning of paragraph 7 above or (as the case may be) to so much of it as remains outstanding, and
- (b) a sum (of an amount determined in accordance with prescribed rules) in respect of the costs of commitment.

(3) The regulations may include—

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- (a) provision that a single warrant shall not be issued, under any provision included under this paragraph, against more than one person;
- (b) provision as to the form of a warrant;
- (c) provision allowing remission of payment where no warrant is issued or term of imprisonment fixed;
- (d) provision allowing an application to be renewed where no warrant is issued or term of imprisonment fixed;
- (e) provision that a statement in writing to the effect that wages of any amount have been paid to the debtor during any period, purporting to be signed by or on behalf of his employer, shall be evidence of the facts there stated;
- (f) provision that, for the purpose of enabling inquiry to be made as to the debtor's conduct and means, a justice of the peace may issue a summons to him to appear before a magistrates' court and (if he does not obey the summons) may issue a warrant for his arrest;
- (g) provision that, for the purpose of enabling such inquiry, a justice of the peace may issue a warrant for the debtor's arrest without issuing a summons;
- (h) provision as to the execution of a warrant for arrest (which may include provision allowing it to be executed anywhere in England and Wales).

Bankruptcy

9.—(1) Regulations under this Schedule may provide that where a magistrates' court has made a liability order against a person (the debtor) and the debtor is an individual, the amount due shall be deemed to be a debt for the purposes of section 267 of the Insolvency Act 1986 (grounds of creditor's petition). 1986 c. 45.

(2) The amount due is an amount equal to any outstanding sum which is or forms part of the amount in respect of which the liability order was made.

Winding up

10.—(1) Regulations under this Schedule may provide that where a magistrates' court has made a liability order against a person (the debtor) and the debtor is a company, the amount due shall be deemed to be a debt for the purposes of section 122(1)(f) of the Insolvency Act 1986 (winding up of companies by the court).

(2) The amount due is an amount equal to any outstanding sum which is or forms part of the amount in respect of which the liability order was made.

Charging orders

11.—(1) Regulations under this Schedule may provide that where a magistrates' court has made a liability order against a person (the debtor), the charge concerned is a collective community charge, and prescribed conditions are fulfilled—

- (a) the authority concerned may apply to a court for an order (a charging order) imposing, on any interest held by the debtor beneficially in the designated dwelling concerned, a charge for securing the due amount, and
- (b) a charge imposed by a charging order shall have the like effect and shall be enforceable in the same courts and in the same manner as an equitable charge created by the debtor by writing under his hand.

SCH. 4**(2) The due amount is the aggregate of—**

- (a) an amount equal to any outstanding sum which is or forms part of the amount in respect of which the liability order was made, and
- (b) a sum (of an amount determined in accordance with prescribed rules) in respect of costs connected with the charging order.

(3) The regulations may include provision—

- (a) as to the court to which an application may be made (which may be the High Court or a county court);
- (b) as to the factors to be considered by the court in deciding whether to make a charging order;
- (c) requiring an order to specify the dwelling and interest concerned, and such other matters as may be prescribed;
- (d) requiring an order to be in a prescribed form;
- (e) allowing an order to be made absolutely or subject to conditions;
- (f) as to the discharge or variation of an order.

Relationship between remedies

12. As regards a case where a magistrates' court has made a liability order, regulations under this Schedule may include provision that—

- (a) attachment of earnings may be resorted to more than once;
- (b) deductions from income support may be resorted to more than once;
- (c) distress may be resorted to more than once;
- (d) attachment of earnings, deductions from income support and distress (or any two of them) may be resorted to in any order or alternately (or both);
- (e) steps by way of attachment, deduction, distress, commitment, bankruptcy, winding up or charging may not be taken while steps by way of another of those methods are being taken;
- (f) where a warrant of commitment is issued against (or a term of imprisonment is fixed in the case of) the person concerned no steps, or no further steps, by way of attachment, deduction, distress, bankruptcy or charging may be taken.

*Magistrates and justices***13. Regulations under this Schedule may include—**

- (a) provision for determining what justices and magistrates' courts are to have jurisdiction in cases provided for by the regulations;
- (b) provision as to the composition of magistrates' courts in cases provided for by the regulations.

PART III**CHARGES: JOINT AND SEVERAL LIABILITY**

14. This Part of this Schedule applies as regards the recovery of any sum falling within paragraph 1(1)(b) above.

15.—(1) Regulations under this Schedule may make, as regards the recovery of such a sum, provision equivalent to that included under Part II of this Schedule subject to any modifications the Secretary of State thinks fit.

(2) In particular, the regulations may provide that where a sum is payable by a chargeable person and a spouse or manager (as the case may be)— SCH. 4

- (a) a liability order may be made against the chargeable person alone, or against that person and the spouse or manager;
- (b) a liability order may not be made against the spouse or manager alone;
- (c) where a liability order has been made against both the chargeable person and the spouse or manager, an attachment of earnings order may be made against one of them or different attachment of earnings orders may be made against each;
- (d) where a liability order has been made against both, deductions from income support may be made in respect of one of them or of each;
- (e) where a liability order has been made against both, distress may be made against one of them or against each;
- (f) where distress has been made against each, a warrant of commitment may be applied for against one of them or different warrants may be applied for against each;
- (g) where distress has been made against the chargeable person only, a warrant of commitment may be applied for against that person;
- (h) where a liability order has been made against both, a charging order may be made against one of them or different charging orders may be made against each.

(3) As regards a case where a magistrates' court has made a liability order against a chargeable person and a spouse, the regulations may include provision that a warrant of commitment may not be applied for against the spouse unless distress has been made against the chargeable person and it appears to the authority concerned that no (or insufficient) goods of that person can be found.

(4) As regards a case where a magistrates' court has made a liability order against a chargeable person and a spouse or manager, the regulations may include provision that—

- (a) steps by way of attachment, deduction, distress or charging may not be taken against one while steps by way of the same method or another of those methods are being taken against the other;
- (b) where a warrant of commitment is issued against (or a term of imprisonment is fixed in the case of) one of them no steps, or no further steps, by way of attachment, deduction, distress or charging may be taken against that one.

(5) In this paragraph "chargeable person", "spouse" and "manager" shall be construed in accordance with sections 16 and 17 above.

PART IV

CONTRIBUTIONS

16. This Part of this Schedule applies as regards the recovery of any sum falling within paragraph 1(1)(c) above.

17. Regulations under this Schedule may provide that any such sum shall be recoverable in a court of competent jurisdiction.

PART V

DISCOUNT ADJUSTMENTS

18. This Part of this Schedule applies as regards the recovery of any sum falling within paragraph 1(1)(d) above.

- SCH. 4 19. Regulations under this Schedule may make, as regards the recovery of such a sum, provision equivalent to that included under Part II of this Schedule subject to any modifications the Secretary of State thinks fit.

PART VI

REPAYMENTS

20. This Part of this Schedule applies as regards the recovery of any sum falling within paragraph 1(1)(e) or (f) above.

21. Regulations under this Schedule may provide that any such sum shall be recoverable in a court of competent jurisdiction.

PART VII

PENALTIES

22. This Part of this Schedule applies as regards the recovery of any sum falling within paragraph 1(1)(g) above.

23.—(1) Regulations under this Schedule may make, as regards the recovery of such a sum, provision equivalent to that included under Part II of this Schedule subject to any modifications the Secretary of State thinks fit.

(2) Provision as to penalties incurred under paragraph 2(8) to (11) of Schedule 3 above before 1 April 1990 may be included in regulations under this Schedule notwithstanding that no liability to pay amounts in respect of community charges arises before that date.

PART VIII

GENERAL

Exclusion of certain matters

24. Regulations under this Schedule may provide that any matter which could be the subject of an appeal under section 23 above may not be raised in proceedings under the regulations.

Costs

25. Regulations under this Schedule may provide that where a charging authority has received in proceedings under the regulations an amount by way of costs it shall pay an amount (determined in accordance with prescribed rules) to a prescribed person for the benefit of such court as is identified in accordance with prescribed rules.

Termination of proceedings

26.—(1) Regulations under this Schedule may provide that in a case where—

- (a) proceedings under the regulations have been taken as regards the recovery of any sum mentioned in paragraph 1(1) above, and
- (b) the outstanding amount is paid or tendered to the person to whom it is payable,

that person shall accept the amount, no further steps shall be taken as regards its recovery, and any person committed to prison in pursuance of the proceedings shall be released.

(2) The outstanding amount is an amount equal to the sum concerned or to so much of it as remains outstanding (as the case may be).

(3) In a case where costs and charges are relevant the outstanding amount shall be treated as augmented by a sum (of an amount determined in accordance with prescribed rules) in respect of costs and charges incurred in the proceedings up to the time of payment or tender.

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Offences

27.—(1) Regulations under this Schedule may provide that a person shall be guilty of an offence if he is required by any provision included under paragraph 4 above to supply information and—

- (a) he fails without reasonable excuse to supply the information in accordance with the provision, or
- (b) in supplying information in purported compliance with the provision he makes a statement which he knows to be false in a material particular or recklessly makes a statement which is false in a material particular.

(2) Regulations under this Schedule may provide that—

- (a) a person shall be guilty of an offence if he is required by any provision included under paragraph 5(1)(d) or (2)(b) above to comply with an attachment of earnings order and fails to do so;
- (b) it shall be a defence for a person charged with such an offence to prove that he took all reasonable steps to comply with the order.

(3) Regulations under this Schedule may provide that a person shall be guilty of an offence if he is required by any provision included under paragraph 5(2)(g) or (h) or (3)(a) or (b) above to notify another person and—

- (a) he fails without reasonable excuse to notify the other person in accordance with the provision, or
- (b) in notifying the other person in purported compliance with the provision he makes a statement which he knows to be false in a material particular or recklessly makes a statement which is false in a material particular.

(4) Regulations under this Schedule may provide that a person guilty of an offence under any provision included under sub-paragraphs (1) to (3) above shall be liable on summary conviction to a fine not exceeding—

- (a) level 2 on the standard scale (where the provision is included under sub-paragraph (1)(a) or (3)(a) above), or
- (b) level 3 on the standard scale (where the provision is included under sub-paragraph (1)(b), (2) or (3)(b) above).

(5) References in this paragraph to any provision included under paragraph 4 or 5 above include references to any equivalent provision included under paragraph 15, 19 or 23 above.

Other enactments

28.—(1) Regulations under this Schedule may apply any provision contained in or made under a relevant enactment, or may apply any such provision subject to prescribed modifications, or may contain provision equivalent to any such provision (whether or not subject to prescribed modifications).

(2) Relevant enactments are Part VI of the General Rate Act 1967, the Attachment of Earnings Act 1971, Part III of the Social Security Act 1975, the Charging Orders Act 1979, and any enactment applied by any of those enactments.

1967 c. 9.
1971 c. 32.
1975 c. 14.
1979 c. 53.

Section 51.

SCHEDULE 5

NON-DOMESTIC RATING: EXEMPTION

Agricultural premises

1. A hereditament is exempt to the extent that it consists of any of the following—

- (a) agricultural land;
- (b) agricultural buildings.

2.—(1) Agricultural land is—

- (a) land used as arable, meadow or pasture ground only,
- (b) land used for a plantation or a wood or for the growth of saleable underwood,
- (c) land exceeding 0.10 hectare and used for the purposes of poultry farming,
- (d) anything which consists of a market garden, nursery ground, orchard or allotment (which here includes an allotment garden within the meaning of the Allotments Act 1922), or
- (e) land occupied with, and used solely in connection with the use of, a building which (or buildings each of which) is an agricultural building by virtue of paragraph 4, 5, 6 or 7 below.

1922 c. 51.

(2) But agricultural land does not include—

- (a) land occupied together with a house as a park,
- (b) gardens (other than market gardens),
- (c) pleasure grounds,
- (d) land used mainly or exclusively for purposes of sport or recreation, or
- (e) land used as a racecourse.

3. A building is an agricultural building if it is not a dwelling and—

- (a) it is occupied together with agricultural land and is used solely in connection with agricultural operations on the land, or
- (b) it is or forms part of a market garden and is used solely in connection with agricultural operations at the market garden.

4.—(1) A building is an agricultural building if it is used solely in connection with agricultural operations carried on on agricultural land and sub-paragraph (2) or (3) below applies.

(2) This sub-paragraph applies if the building is occupied by the occupiers of all the land concerned.

(3) This sub-paragraph applies if the building is occupied by individuals each of whom is appointed by the occupiers of the land concerned to manage the use of the building and is—

- (a) an occupier of some of the land concerned, or
- (b) a member of the board of directors or other governing body of a person who is both a body corporate and an occupier of the land concerned.

(4) This paragraph does not apply unless the number of occupiers of the land concerned is less than 25.

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5.—(1) A building is an agricultural building if—

- (a) it is used for the keeping or breeding of livestock, or
- (b) it is not a dwelling, it is occupied together with a building or buildings falling within paragraph (a) above, and it is used in connection with the operations carried on in that building or those buildings.

(2) Sub-paragraph (1)(a) above does not apply unless—

- (a) the building is solely used as there mentioned, or
- (b) the building is occupied together with agricultural land and used also in connection with agricultural operations on that land, and that other use together with the use mentioned in sub-paragraph (1)(a) is its sole use.

(3) Sub-paragraph (1)(b) above does not apply unless—

- (a) the building is solely used as there mentioned, or
- (b) the building is occupied also together with agricultural land and used also in connection with agricultural operations on that land, and that other use together with the use mentioned in sub-paragraph (1)(b) is its sole use.

(4) A building (the building in question) is not an agricultural building by virtue of this paragraph unless it is surrounded by or contiguous to an area of agricultural land which amounts to not less than 2 hectares.

(5) In deciding for the purposes of sub-paragraph (4) above whether an area is agricultural land and what is its size, the following shall be disregarded—

- (a) any road, watercourse or railway (which here includes the former site of a railway from which railway lines have been removed);
- (b) any agricultural building other than the building in question;
- (c) any building occupied together with the building in question.

6.—(1) A building is an agricultural building if it is not a dwelling, is occupied by a person keeping bees, and is used solely in connection with the keeping of those bees.

(2) Sub-paragraphs (4) and (5) of paragraph 5 above apply for the purposes of this paragraph as for those of that.

7.—(1) A building is an agricultural building if it is not a dwelling and—

- (a) it is used in connection with agricultural operations carried on on agricultural land, and
- (b) it is occupied by a body corporate any of whose members are (together with the body) the occupiers of the land.

(2) A building is also an agricultural building if it is not a dwelling and—

- (a) it is used in connection with the operations carried on in a building which, or buildings each of which, is used for the keeping or breeding of livestock and is an agricultural building by virtue of paragraph 5 above, and
- (b) sub-paragraph (3), (4) or (5) below applies as regards the building first mentioned in this sub-paragraph (the building in question).

(3) This sub-paragraph applies if the building in question is occupied by a body corporate any of whose members are (together with the body) the occupiers of the building or buildings mentioned in sub-paragraph (2)(a) above.

(4) This sub-paragraph applies if the building in question, and the building or buildings mentioned in sub-paragraph (2)(a) above, are occupied by the same persons.

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(5) This sub-paragraph applies if the building in question is occupied by individuals each of whom is appointed by the occupiers of the building or buildings mentioned in sub-paragraph (2)(a) above to manage the use of the building in question and is—

- (a) an occupier of part of the building, or of part of one of the buildings, mentioned in sub-paragraph (2)(a) above, or
- (b) a member of the board of directors or other governing body of a person who is both a body corporate and an occupier of the building or buildings mentioned in sub-paragraph (2)(a) above.

(6) Sub-paragraph (1) above does not apply unless the use there mentioned, or that use together with the use mentioned in sub-paragraph (2) above, is its sole use.

(7) Sub-paragraph (2) above does not apply unless the use there mentioned, or that use together with the use mentioned in sub-paragraph (1) above, is its sole use.

(8) Sub-paragraph (4) or (5) above does not apply unless the number of occupiers of the building or buildings mentioned in sub-paragraph (2)(a) above is less than 25.

8.—(1) In paragraphs 1 and 3 to 7 above “agricultural land” shall be construed in accordance with paragraph 2 above.

(2) In paragraphs 1 and 5(5)(b) above “agricultural building” shall be construed in accordance with paragraphs 3 to 7 above.

(3) In determining for the purposes of paragraphs 3 to 7 above whether a building used in any way is solely so used, no account shall be taken of any time during which it is used in any other way, if that time does not amount to a substantial part of the time during which the building is used.

(4) In paragraphs 2 to 7 above and sub-paragraph (2) above “building” includes a separate part of a building.

(5) In paragraphs 5 and 7 above “livestock” includes any mammal or bird kept for the production of food or wool or for the purpose of its use in the farming of land.

Fish farms

9.—(1) A hereditament is exempt to the extent that it consists of any of the following—

- (a) land used solely for or in connection with fish farming;
- (b) buildings (other than dwellings) so used.

(2) In determining whether land or a building used for or in connection with fish farming is solely so used, no account shall be taken of any time during which it is used in any other way, if that time does not amount to a substantial part of the time during which the land or building is used.

(3) “Building” includes a separate part of a building.

(4) “Fish farming” means the breeding or rearing of fish, or the cultivation of shellfish, for the purpose of (or for purposes which include) transferring them to other waters or producing food for human consumption.

(5) “Shellfish” includes crustaceans and molluscs of any description.

Fishing

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10.—(1) A hereditament is exempt to the extent that it consists of a right of fishing exercisable in a fishery regulated by an order which—

(a) is made under section 28(3) of the Salmon and Freshwater Fisheries Act 1975, and

(b) contains such provision as is mentioned in paragraph 1(a) of Schedule 3 to that Act (contributions imposed by water authorities).

(2) A hereditament is exempt to the extent that it consists of a right of fishing exercisable in a fishery—

(a) which is regulated by the council constituted under section 6 of the Tweed Fisheries Act 1969, and

1969 c. xxiv.

(b) as regards which a rate or assessment is levied under section 79 of the Tweed Fisheries Act 1857 or section 5 of the Tweed Fisheries Amendment Act 1859.

1857 c. cxlviii.
1859 c. lxx.*Places of religious worship etc.*

11.—(1) A hereditament is exempt to the extent that it consists of any of the following—

(a) a place of public religious worship which belongs to the Church of England or the Church in Wales (within the meaning of the Welsh Church Act 1914) or is for the time being certified as required by law as a place of religious worship;

1914 c. 91.

(b) a church hall, chapel hall or similar building used in connection with a place falling within paragraph (a) above for the purposes of the organisation responsible for the conduct of public religious worship in that place.

(2) A hereditament is exempt to the extent that it—

(a) is occupied by an organisation responsible for the conduct of public religious worship in a place falling within sub-paragraph (1)(a) above, and

(b) is used for carrying out administrative or other activities relating to the organisation of the conduct of public religious worship in such a place.

Certain property of Trinity House

12.—(1) A hereditament is exempt to the extent that it belongs to or is occupied by the Trinity House and consists of any of the following—

(a) a lighthouse;

(b) a buoy;

(c) a beacon;

(d) property within the same curtilage as, and occupied for the purposes of, a lighthouse.

(2) No other hereditament (or part of a hereditament) belonging to or occupied by the Trinity House is exempt, notwithstanding anything in section 731 of the Merchant Shipping Act 1894.

1894 c. 60.

Sewers

13.—(1) A hereditament is exempt to the extent that it consists of any of the following—

(a) a sewer;

(b) an accessory belonging to a sewer.

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1936 c. 49.

(2) "Sewer" has the meaning given by section 343 of the Public Health Act 1936.

(3) "Accessory" means a manhole, ventilating shaft, pumping station, pump or other accessory.

(4) The Secretary of State may by order repeal sub-paragraphs (1) to (3) above.

Property of drainage authorities

14.—(1) A hereditament is exempt to the extent that it consists of any of the following—

(a) land which is occupied by a drainage authority and which forms part of a main river or of a watercourse maintained by the authority;

(b) a structure maintained by a drainage authority for the purpose of controlling or regulating the flow of water in, into or out of a watercourse which forms part of a main river or is maintained by the authority;

(c) an appliance so maintained for that purpose.

1976 c. 70.

(2) "Drainage authority", "main river" and "watercourse" have the same meanings as in the Land Drainage Act 1976.

(3) Nothing in this paragraph renders exempt a hereditament (or part of a hereditament) which consists of a right of fishing or shooting.

Parks

15.—(1) A hereditament is exempt to the extent that it consists of a park which—

(a) has been provided by, or is under the management of, a relevant authority or two or more relevant authorities acting in combination, and

(b) is available for free and unrestricted use by members of the public.

1906 c. 25.
1937 c. 46.

(2) The reference to a park includes a reference to a recreation or pleasure ground, a public walk, an open space within the meaning of the Open Spaces Act 1906, and a playing field provided under the Physical Training and Recreation Act 1937.

(3) Each of the following is a relevant authority—

(a) a county council,

(b) a district council,

(c) a London borough council,

(d) the Common Council,

(e) the Council of the Isles of Scilly,

(f) a parish or community council, and

(g) the chairman of a parish meeting.

(4) In construing sub-paragraph (1)(b) above any temporary closure (at night or otherwise) shall be ignored.

Property used for the disabled

16.—(1) A hereditament is exempt to the extent that it consists of property used wholly for any of the following purposes—

(a) the provision of facilities for training, or keeping suitably occupied, persons who are disabled or who are or have been suffering from illness;

(b) the provision of welfare services for disabled persons;

- (c) the provision of facilities under section 15 of the Disabled Persons (Employment) Act 1944; SCH. 5
1944 c. 10.
- (d) the provision of a workshop or of other facilities under section 3(1) of the Disabled Persons (Employment) Act 1958. 1958 c. 33.

(2) A person is disabled if he is blind, deaf or dumb or suffers from mental disorder of any description or is substantially and permanently handicapped by illness, injury, congenital deformity or any other disability for the time being prescribed for the purposes of section 29(1) of the National Assistance Act 1948. 1948 c. 29.

(3) "Illness" has the meaning given by section 128(1) of the National Health Service Act 1977. 1977 c. 49.

(4) "Welfare services for disabled persons" means services or facilities (by whomsoever provided) of a kind which a local authority has power to provide under section 29 of the National Assistance Act 1948.

Air-raid protection works

17. A hereditament is exempt to the extent that it consists of property which—
- (a) is intended to be occupied or used solely for the purpose of affording protection in the event of hostile attack from the air, and
 - (b) is not occupied or used for any other purpose.

Swinging moorings

18. A hereditament is exempt to the extent that it consists of a mooring which is used or intended to be used by a boat or ship and which is equipped only with a buoy attached to an anchor, weight or other device—

- (a) which rests on or in the bed of the sea or any river or other waters when in use, and
- (b) which is designed to be raised from that bed from time to time.

Property in enterprise zones

19.—(1) A hereditament is exempt to the extent that it is situated in an enterprise zone.

(2) An enterprise zone is an area for the time being designated as an enterprise zone under Schedule 32 to the Local Government, Planning and Land Act 1980. 1980 c. 65.

Power to confer exemption

20.—(1) The Secretary of State may make regulations providing that prescribed hereditaments or hereditaments falling within any prescribed description are exempt to such extent (whether as to the whole or some lesser extent) as may be prescribed.

(2) But the power under sub-paragraph (1) above may not be exercised so as to confer exemption which in his opinion goes beyond such exemption or privilege (if any) as fulfils the first and second conditions.

(3) The first condition is that the exemption or privilege operated or was enjoyed in practice, immediately before the passing of this Act, in respect of a general rate in its application to the hereditaments prescribed or falling within the prescribed description.

- SCH. 5 (4) The second condition is that the exemption or privilege—
- (a) was conferred by a local Act or order passed or made on or after 22 December 1925, or
 - (b) was conferred by a local Act or order passed or made before 22 December 1925 and was saved by section 117(5)(b) of the 1967 Act.
- (5) Regulations under sub-paragraph (1) above in their application to a particular financial year (including regulations amending or revoking others) shall not be effective unless they come into force before 1 January in the preceding financial year.

Interpretation

- 21.—(1) This paragraph applies for the purposes of this Schedule.
- (2) "Exempt" means exempt from local non-domestic rating.
- (3) Any land, building or property not in use shall be treated as used in a particular way if it appears that when next in use it will be used in that way.
- (4) Any land or building which is not occupied shall be treated as occupied in a particular way if it appears that when next occupied it will be occupied in that way.
- (5) A person shall be treated as an occupier of any land or building which is not occupied if it appears that when it is next occupied he will be an occupier of it.

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SCHEDULE 6

NON-DOMESTIC RATING: VALUATION

1. This Schedule has effect to determine the rateable value of non-domestic hereditaments, and parts of them, for the purposes of this Part.
- 2.—(1) The rateable value of a non-domestic hereditament shall be taken to be an amount equal to the rent at which it is estimated the hereditament might reasonably be expected to let from year to year if the tenant undertook to pay all usual tenant's rates and taxes and to bear the cost of the repairs and insurance and the other expenses (if any) necessary to maintain the hereditament in a state to command that rent.
- (2) Where (apart from this sub-paragraph) the rateable value would include a fraction of a pound—
- (a) the fraction shall be made up to one pound if it would exceed 50p, and
 - (b) the fraction shall be ignored if it would be 50p or less.
- (3) Where the rateable value is determined for the purposes of compiling a list the day by reference to which the determination is to be made is—
- (a) the day on which the list must be compiled, or
 - (b) such day preceding that day as may be specified by the Secretary of State by order in relation to the list.
- (4) Where the rateable value is determined with a view to making an alteration to a list which has been compiled (whether or not it is still in force) the day by reference to which the determination is to be made is—
- (a) the day on which the list came into force, or
 - (b) if a day was specified under sub-paragraph (3)(b) above in relation to the list, the day so specified.

SCH. 6

(5) Where the rateable value is determined for the purposes of compiling a list by reference to a day specified under sub-paragraph (3)(b) above, the matters mentioned in sub-paragraph (7) below shall be taken to be as they are assumed to be on the day on which the list must be compiled.

(6) Where the rateable value is determined with a view to making an alteration to a list which has been compiled (whether or not it is still in force) the matters mentioned in sub-paragraph (7) below shall be taken to be as they are assumed to be on the day the alteration is entered in the list or (if the alteration is made in pursuance of a proposal) the day the proposal is made.

(7) The matters are—

- (a) matters affecting the physical state or physical enjoyment of the hereditament,
- (b) the mode or category of occupation of the hereditament,
- (c) the quantity of minerals or other substances in or extracted from the hereditament,
- (d) matters affecting the physical state of the locality in which the hereditament is situated or which, though not affecting the physical state of the locality, are nonetheless physically manifest there, and
- (e) the use or occupation of other premises situated in the locality of the hereditament.

(8) The Secretary of State may make regulations providing that, in applying the preceding provisions of this paragraph in relation to a hereditament of a prescribed description, prescribed assumptions (as to the hereditament or otherwise) are to be made.

(9) The Secretary of State may make regulations providing that in arriving at an amount under sub-paragraph (1) above prescribed principles are to be applied; and the regulations may include provision for the preservation of such principles, privileges, and provisions for the making of valuations on exceptional principles, as apply or applied for the purposes of the 1967 Act.

(10) If a day is specified under sub-paragraph (3)(b) above the same specification must be made in relation to all lists to be compiled on the same day.

3.—(1) The Secretary of State may by order provide that in the case of a non-domestic hereditament of such description as may be prescribed—

- (a) paragraph 2 above shall not apply, and
- (b) its rateable value shall be such as is determined in accordance with prescribed rules.

(2) The Secretary of State may by order provide that in the case of non-domestic hereditaments to be shown in a central non-domestic rating list by virtue of regulations under section 53(2) above—

- (a) paragraph 2 above shall not apply, and
- (b) their rateable value shall be such as is specified in the order or determined in accordance with prescribed rules.

4.—(1) The rateable value of such part of a non-domestic hereditament as is neither domestic property nor exempt from local non-domestic rating shall be such part of the rateable value of the hereditament as is found in accordance with rules prescribed by regulations made by the Secretary of State.

(2) Where (apart from this sub-paragraph) the rateable value of a part would include a fraction of a pound—

- (a) the fraction shall be made up to one pound if it would exceed 50p, and
- (b) the fraction shall be ignored if it would be 50p or less.

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SCHEDULE 7

NON-DOMESTIC RATING: MULTIPLIERS

PART I

NON-DOMESTIC RATING MULTIPLIERS

Introduction

1. This Part of this Schedule has effect to determine the non-domestic rating multiplier for each chargeable financial year.

General provisions

2.—(1) In the revenue support grant report for the financial year beginning in 1990 the Secretary of State shall specify a non-domestic rating multiplier for the year.

(2) The multiplier must be expressed as a figure in which a part of a whole (if any) is expressed to three decimal places only.

(3) If the report is approved by resolution of the House of Commons the multiplier so specified shall be the non-domestic rating multiplier for the year.

3. The non-domestic rating multiplier for a chargeable financial year beginning in or after 1991 shall be calculated in accordance with the following formula if the year is not one at the beginning of which new lists must be compiled—

$$\frac{A \times B}{C}$$

4. The non-domestic rating multiplier for a chargeable financial year beginning in or after 1991 shall be calculated in accordance with the following formula if the year is one at the beginning of which new lists must be compiled—

$$\frac{A \times B \times D}{C \times E}$$

5.—(1) This paragraph applies for the purposes of paragraphs 3 and 4 above.

(2) A is the non-domestic rating multiplier for the financial year preceding the year concerned.

(3) B is the retail prices index for September of the financial year preceding the year concerned; but if the Treasury so provide by order in relation to the year concerned, B is a figure which is less than that index and which is specified in (or calculated in a manner specified in) the order.

(4) C is the retail prices index for September of the financial year which precedes that preceding the year concerned.

(5) But where the base month for the retail prices index for September of the financial year which precedes that preceding the year concerned (the first year) differs from that for the index for September of the year which precedes the year concerned (the second year), C is the figure which the Secretary of State calculates would have been the retail prices index for September of the first year if the base month for that index had been the same as the base month for the index for September of the second year.

(6) D is the number of whole pounds in the Secretary of State's estimate of the total of the appropriate rateable values of all appropriate hereditaments, where—

- (a) appropriate rateable values are those shown (or to be shown) in lists for the last day of the financial year preceding the year concerned, and
- (b) appropriate hereditaments are those so shown (or to be shown).

SCH. 7

(7) E is the number of whole pounds in the Secretary of State's estimate of the total of the appropriate rateable values of all appropriate hereditaments, where—

- (a) appropriate rateable values are those shown (or to be shown) in lists for the first day of the financial year concerned, and
- (b) appropriate hereditaments are those so shown (or to be shown).

(8) References in sub-paragraphs (3) to (5) above to the retail prices index are references to the general index of retail prices (for all items) published by the Department of Employment; and if that index is not published for a month for which it is relevant for the purposes of any of those sub-paragraphs, the sub-paragraph shall be taken to refer to any substituted index or index figures published by that Department.

(9) For the purposes of sub-paragraph (5) above the base month for the retail prices index for September of a particular year is the month for which the retail prices index is taken to be 100 and by reference to which the index for the September in question is calculated.

(10) Estimates under sub-paragraphs (6) and (7) above shall be made on the basis of information available to the Secretary of State on such date as he determines.

(11) In calculating a multiplier a part of a whole (if any) shall be calculated to three decimal places only—

- (a) adding one thousandth where (apart from this sub-paragraph) there would be more than five ten-thousandths, and
- (b) ignoring the ten-thousandths where (apart from this sub-paragraph) there would be five, or less than five, ten-thousandths.

(12) The power to make an order under sub-paragraph (3) above shall be exercisable by statutory instrument.

(13) An order under sub-paragraph (3) above in its application to a particular financial year (including an order amending or revoking another) shall not be effective unless it is approved by resolution of the House of Commons before the approval by that House of the revenue support grant report for the year or before 1 March in the preceding financial year (whichever is earlier).

6.—(1) The Secretary of State shall calculate the non-domestic rating multiplier for a chargeable financial year beginning in or after 1991 and, as soon as is reasonably practicable after doing so, shall serve on each charging authority a notice stating the multiplier as so calculated.

(2) Where the financial year is one for which the Secretary of State has calculated a figure for C under paragraph 5(5) above, the notice must contain the figure he has calculated.

(3) Where the financial year is one at the beginning of which new lists must be compiled, the notice must contain—

- (a) his estimates made under paragraph 5(6) and (7) above, and
- (b) the date determined by him under paragraph 5(10) above for the purpose of making the estimates.

(4) A calculation under sub-paragraph (1) above is invalid unless one or both of the following conditions is fulfilled—

- (a) it is made after the revenue support grant report for the year has been approved by resolution of the House of Commons;
- (b) it is made on or after 1 March in the preceding financial year.

(5) A calculation under sub-paragraph (1) above is invalid if made at a time when an order under paragraph 5(3) above which is effective in relation to the year has not come into force.

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Special provision for 1990-95

7.—(1) Regulations under section 57 above in relation to a relevant financial year may include provision that the non-domestic rating multiplier for the year shall be one which exceeds what it would have been if the regulations had not been made and which is specified in the regulations; and in such a case paragraphs 2 to 6 above shall have effect subject to the regulations.

(2) A multiplier specified under this paragraph must be expressed as a figure in which a part of a whole (if any) is expressed to three decimal places only.

(3) For the purposes of this paragraph relevant financial years are financial years beginning in 1990, 1991, 1992, 1993 and 1994.

8.—(1) A multiplier must be specified under paragraph 2 above for the financial year beginning in 1990 even if a different one is or may be specified for the year under paragraph 7 above.

(2) A multiplier must be calculated, and notices of it must be served, under paragraphs 3 to 6 above for each subsequent relevant financial year even if a different one is or may be specified for the year under paragraph 7 above.

(3) In calculating under paragraphs 3 to 6 above the multiplier for a financial year beginning in or after 1991 (whether or not a relevant financial year) A shall be taken to be what it would have been if no regulations had been made under section 57 above for any year.

(4) An order may be made under paragraph 5(3) above in relation to a financial year beginning in or after 1991 even if a multiplier is or may be specified for the year under paragraph 7 above.

(5) For the purposes of this paragraph relevant financial years are financial years beginning in 1990, 1991, 1992, 1993 and 1994.

PART II

SPECIAL AUTHORITY'S MULTIPLIERS

9.—(1) A special authority's non-domestic rating multiplier for a chargeable financial year shall be such as is set for the year by the authority in accordance with this Part of this Schedule.

(2) The multiplier must be expressed as a figure in which a part of a whole (if any) is expressed to three decimal places only.

(3) The multiplier must be not less than the required minimum for the year and not greater than the required maximum for the year, where—

(a) the required minimum for the year is a figure equal to such proportion of the non-domestic rating multiplier for the year as is specified in an order made by the Secretary of State, and

(b) the required maximum for the year is a figure calculated in accordance with a formula specified in the order.

(4) An order under sub-paragraph (3) above in its application to a particular financial year (including an order amending or revoking another) shall not be effective unless it comes into force before 1 January in the preceding financial year.

10.—(1) Where a special authority has set a multiplier for a financial year (originally or by way of substitute) it may set a multiplier in substitution if, and only if, it has been quashed because of a failure to fulfil paragraph 9(2) or (3) above.

(2) Any multiplier set in substitution must be set in accordance with paragraph 9 above.

(3) Where a special authority sets a multiplier in substitution under this paragraph (a new multiplier) anything paid to it by reference to the multiplier for which it is substituted (the old multiplier) shall be treated as paid by reference to the new multiplier.

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(4) But if the old multiplier exceeds the new multiplier, the following shall apply as regards anything paid if it would not have been paid had the old multiplier been the same as the new multiplier—

- (a) it shall be repaid if the person by whom it was paid so requires;
- (b) in any other case it shall (as the authority determines) either be repaid or be credited against any subsequent liability of the person to pay anything to it by way of a non-domestic rate.

11.—(1) Where a special authority has set a multiplier in accordance with paragraph 9 above (whether originally or by way of substitute) it shall, before the end of the period of 21 days beginning with the day of doing so, publish a notice of the multiplier in at least one newspaper circulating in its area.

(2) Failure to comply with sub-paragraph (1) above does not make a multiplier invalid.

SCHEDULE 8

Section 60.

NON-DOMESTIC RATING: POOLING

PART I

NON-DOMESTIC RATING ACCOUNTS

The accounts

1.—(1) In accordance with this Schedule the Secretary of State shall keep for each chargeable financial year an account (to be called a non-domestic rating account).

(2) The Secretary of State—

- (a) shall keep each account in such form as the Treasury may direct, and
- (b) shall at such time as the Treasury may direct send copies of each account to the Comptroller and Auditor General.

(3) The Comptroller and Auditor General shall examine, certify and report on any account of which copies are sent to him under sub-paragraph (2) above and shall lay copies of the account and of his report before each House of Parliament.

Credits and debits

2.—(1) For each chargeable financial year the following shall be credited (as items of account) to the account kept for the year—

- (a) sums received by the Secretary of State in the year under section 54 above,
- (b) sums received by him in the year under regulations made under section 59(2) above, and
- (c) sums received by him in the year under paragraph 5 below.

(2) For each chargeable financial year the following shall be debited (as items of account) to the account kept for the year—

- (a) payments made by the Secretary of State in the year under paragraph 5(10) below or under regulations made under paragraph 6(5) below, and
- (b) payments made by him in the year under paragraph 9, 12, or 13 below (as the case may be).

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3.—(1) As soon as is reasonably practicable after the end of each chargeable financial year the Secretary of State shall calculate the following—

- (a) the aggregate of the items of account credited to the account kept for the year, and
- (b) the aggregate of the items of account debited to the account kept for the year.

(2) If the aggregate mentioned in sub-paragraph (1)(a) above exceeds that mentioned in sub-paragraph (1)(b) above, a sum equal to the excess shall be—

- (a) debited (as an item of account) to the account kept for the year, and
- (b) credited (as an item of account) to the account kept for the next financial year.

(3) If the aggregate mentioned in sub-paragraph (1)(b) above exceeds that mentioned in sub-paragraph (1)(a) above, a sum equal to the excess shall be—

- (a) credited (as an item of account) to the account kept for the year, and
- (b) debited (as an item of account) to the account kept for the next financial year.

PART II

CONTRIBUTION

Non-domestic rating contributions

4.—(1) The Secretary of State may make regulations containing rules for the calculation of an amount for a chargeable financial year in relation to each charging authority (to be called its non-domestic rating contribution for the year).

(2) The rules shall be so framed that the amount calculated under them in relation to an authority is broadly the same as the total which, if the authority acted diligently, would be payable to it in respect of the year under sections 43 and 45 above.

(3) Sub-paragraph (2) above shall not apply in the case of a special authority, but the rules shall be so framed that the amount calculated under them in relation to the authority is broadly the same as the total which would be payable to it in respect of the year under sections 43 and 45 above if—

- (a) the authority's non-domestic rating multiplier for the year was equal to the required minimum for the year, and
- (b) the authority acted diligently.

(4) For the purposes of sub-paragraph (3) above the required minimum for the year is the required minimum for the year as found for the purposes of paragraph 9(3) of Schedule 7 above.

(5) The Secretary of State may incorporate in the rules provision for deductions (of such extent as he thinks fit) as regards—

- (a) the operation of sections 47 and 49 above;
- (b) costs of collection and recovery;
- (c) such other matters (if any) as he thinks fit;

and sub-paragraphs (2) and (3) above shall have effect subject to this.

(6) Regulations under this paragraph in their application to a particular financial year (including regulations amending or revoking others) shall not be effective unless they come into force before 1 January in the preceding financial year.

5.—(1) This paragraph applies where regulations under paragraph 4 above are in force for a chargeable financial year.

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(2) By such time before the year begins as the Secretary of State may direct, a charging authority shall calculate the amount of its non-domestic rating contribution for the year and shall notify the amount to the Secretary of State.

(3) If the authority fails to comply with sub-paragraph (2) above or if the Secretary of State believes the amount notified is not likely to have been calculated in accordance with the regulations he may make his own calculation of the amount; and where he makes such a calculation he shall inform the authority why he has done so and shall inform it of the amount calculated.

(4) The authority shall be liable to pay to the Secretary of State an amount (the provisional amount) equal to—

- (a) that calculated and notified under sub-paragraph (2) above, or
- (b) if sub-paragraph (3) above applies, that calculated by the Secretary of State under it.

(5) The authority shall pay the provisional amount during the course of the year, in such instalments and at such times as the Secretary of State may direct.

(6) After the year ends the authority shall—

- (a) calculate the amount of its non-domestic rating contribution for the year,
- (b) arrange for the calculation and the amount to be certified under arrangements made by the Audit Commission for Local Authorities in England and Wales, and
- (c) notify the amount to the Secretary of State, and send to him a copy of the certification of the calculation and the amount.

(7) If the authority fails to comply with sub-paragraph (6) above by such time as the Secretary of State directs, he may suspend payments which would otherwise fall to be made to the authority under the relevant provisions (within the meaning given by paragraph 6(7) below); but if the authority then complies with the sub-paragraph he shall resume payments falling to be made to the authority under the relevant provisions and make payments to it equal to those suspended.

(8) If, at any time after the year ends, the Secretary of State receives notification from an authority under sub-paragraph (6)(c) above he shall—

- (a) calculate the amount of the difference (if any) between the amount notified and the provisional amount, and
- (b) if there is a difference, inform the authority of the amount of the difference.

(9) If the amount notified under sub-paragraph (6)(c) above exceeds the provisional amount the authority shall pay an amount equal to the difference to the Secretary of State at such time as he may direct.

(10) If the amount notified under sub-paragraph (6)(c) above is less than the provisional amount the Secretary of State shall pay an amount equal to the difference to the authority; and the amount shall be paid at such time as he decides with the Treasury's approval.

6.—(1) Any calculation under paragraph 5 above of the amount of an authority's non-domestic rating contribution for a year shall be made in accordance with the regulations under paragraph 4 above.

(2) Such a calculation shall be made on the basis of the information before the person making the calculation at the time he makes it; but regulations under paragraph 4 above may include provision requiring a calculation under paragraph 5(2) or (3) above to be made on the basis of that information read subject to prescribed assumptions.

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(3) The power to give a direction under paragraph 5 above—

- (a) includes power to revoke or amend a direction given under the power;
- (b) may be exercised differently for different authorities.

(4) A direction under paragraph 5(5) above is ineffective unless given with the Treasury's consent.

(5) The Secretary of State may make regulations providing that, once the provisional amount has been arrived at under paragraph 5 above as regards an authority for a financial year and if prescribed conditions are fulfilled, the provisional amount is to be treated for the purposes of that paragraph as being an amount smaller than it would otherwise be.

(6) Regulations under sub-paragraph (5) above may include—

- (a) provision as to the re-calculation of the provisional amount, including provision for the procedure to be adopted for re-calculation if the prescribed conditions are fulfilled;
- (b) provision as to financial adjustments to be made as a result of any re-calculation, including provision for the making of reduced payments under paragraph 5 above or of repayments.

(7) For the purposes of paragraph 5(7) above the relevant provisions are—

- (a) paragraph 5(10) above,
- (b) regulations made under sub-paragraph (5) above, and
- (c) paragraphs 9, 12 and 13 below.

Recovery

7. Where an amount has become payable under any provision of or made under this Part of this Schedule, and it has not been paid, it shall be recoverable in a court of competent jurisdiction.

PART III

DISTRIBUTION

Distributable amount

8.—(1) Before a chargeable financial year begins the Secretary of State shall estimate—

- (a) the aggregate of the items of account which will be credited to the account kept for the year, and
- (b) the aggregate of the items of account which will be debited to the account kept for the year under paragraphs 2(2)(a) and 3(3)(b) above.

(2) In making any estimate under sub-paragraph (1) above the Secretary of State may make such assumptions as he sees fit.

(3) If the aggregate estimated under sub-paragraph (1)(a) above exceeds the aggregate estimated under sub-paragraph (1)(b) above the Secretary of State shall calculate the amount equal to the difference.

(4) In the revenue support grant report for the year the Secretary of State shall specify the amount arrived at under this paragraph (the distributable amount for the year).

Distribution: England

9.—(1) This paragraph has effect in the application of this Schedule to England.

(2) If the revenue support grant report for a chargeable financial year is approved by resolution of the House of Commons, as soon as is reasonably practicable after the report is approved the Secretary of State shall calculate an amount in relation to each charging authority by reference to the formula—

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$$\frac{A \times B}{C}$$

- (3) A is an amount equal to the distributable amount for the year.
- (4) B is the relevant population of the authority.
- (5) C is the aggregate of the relevant populations of all charging authorities.
- (6) The relevant population in relation to an authority shall be calculated by—
- (a) taking the number of those members of the population of the authority's area who fall within such description as is specified in regulations made by the Secretary of State, and
 - (b) making such adjustments (if any) by way of addition or subtraction (or both) as are specified in, or calculated in a manner specified in, the regulations.
- (7) As regards each authority the calculation shall be made to the nearest £100 in accordance with the following rules—
- (a) where (apart from this sub-paragraph and after taking into account each complete £100) there would be an excess of more than £50, the excess shall be made up to £100, and
 - (b) where (apart from this sub-paragraph and after taking into account each complete £100) there would be an excess of £50 or less, the excess shall be ignored.
- (8) As soon as is reasonably practicable after making the calculation the Secretary of State shall inform each charging authority of the amount which he calculates in relation to it.
- (9) The Secretary of State shall pay to each authority the amount calculated in relation to it.
- (10) The amount shall be paid to the authority during the course of the year concerned, in such instalments and at such times as he decides with the Treasury's approval.

Distribution: Wales

10. Paragraphs 11 to 15 below have effect in the application of this Schedule to Wales.

11.—(1) As soon as is reasonably practicable after the distributable amount for a chargeable financial year has been arrived at, the Secretary of State shall calculate how much of it he proposes to pay to county councils (the county share for the year) and how much of it he proposes to pay to district councils (the district share for the year).

(2) The calculation shall be made in accordance with the basis of division for the time being effective (as regards the year) under paragraph 15 below.

(3) In the revenue support grant report for the year the Secretary of State shall specify the county and district shares.

12.—(1) If the revenue support grant report for a chargeable financial year is approved by resolution of the House of Commons, as soon as is reasonably practicable after the report is approved the Secretary of State shall calculate an

SCH. 8 amount in relation to each county council and each district council by reference to the formula—

$$\frac{A \times B}{C}$$

(2) In the case of a county council A is an amount equal to the county share for the year and C is the aggregate of the relevant populations of all county councils.

(3) In the case of a district council A is an amount equal to the district share for the year and C is the aggregate of the relevant populations of all district councils.

(4) B is the relevant population of the council.

(5) The relevant population in relation to a council shall be calculated by—

(a) taking the number of those members of the population of the council's area who fall within such description as is specified in regulations made by the Secretary of State, and

(b) making such adjustments (if any) by way of addition or subtraction (or both) as are specified in, or calculated in a manner specified in, the regulations.

(6) As regards each council the calculation shall be made to the nearest £100 in accordance with the following rules—

(a) where (apart from this sub-paragraph and after taking into account each complete £100) there would be an excess of more than £50, the excess shall be made up to £100, and

(b) where (apart from this sub-paragraph and after taking into account each complete £100) there would be an excess of £50 or less, the excess shall be ignored.

(7) As soon as is reasonably practicable after making the calculation the Secretary of State shall inform each county council and each district council of the amount which he calculates in relation to it.

(8) The Secretary of State shall pay to each council the amount calculated in relation to it.

(9) The amount shall be paid to the council during the course of the year concerned, in such instalments and at such times as he decides with the Treasury's approval.

13.—(1) This paragraph has effect in relation to a transitional year.

(2) If the revenue support grant report for the year is approved by resolution of the House of Commons, as soon as is reasonably practicable after the report is approved the Secretary of State shall decide whether paragraph 12 above is to have effect in relation to the year.

(3) If he decides that it is not to have effect he shall as soon as is reasonably practicable calculate—

(a) what amount of the county share for the year he proposes to pay to each county council, and

(b) what amount of the district share for the year he proposes to pay to each district council.

(4) The calculations may be made by reference to such factors as the Secretary of State thinks fit.

(5) As soon as is reasonably practicable after making the calculations the Secretary of State shall inform each county council and each district council of the amount which he calculates in relation to it.

(6) The Secretary of State shall pay to each council the amount calculated in relation to it.

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(7) The amount shall be paid to the council at such time, or in instalments of such amounts and at such times, as the Secretary of State decides with the Treasury's approval; but any such time must fall within the year concerned.

14.—(1) The Secretary of State shall make a report containing the basis on which he proposes to divide the distributable amount for a chargeable financial year between county councils (on the one hand) and district councils (on the other).

(2) Before making the report the Secretary of State shall notify to such representatives of local government as appear to him to be appropriate the general nature of its intended contents.

(3) The report shall be laid before the House of Commons.

(4) As soon as is reasonably practicable after the report is laid before the House of Commons the Secretary of State shall send a copy of it to each county council and each district council.

(5) After making the report the Secretary of State may make a further report or reports, and any such report—

- (a) may replace any previous report under this paragraph, or
- (b) may amend any previous report under this paragraph.

(6) A report under sub-paragraph (5)(a) above shall contain a revised basis on which the Secretary of State proposes to divide the distributable amount.

(7) A report under sub-paragraph (5)(b) above shall contain amendments to the basis contained in the report which it amends.

(8) Sub-paragraphs (2) to (4) above shall apply to any report under sub-paragraph (5) above as they apply to one under sub-paragraph (1) above.

(9) A report under this paragraph shall state the day on which it is to come into force and the first financial year for which it is to operate.

15.—(1) This paragraph applies where in accordance with paragraph 14 above a report has been made and laid before the House of Commons.

(2) If the report is approved by resolution of the House of Commons it shall come into force on the day stated in the report.

(3) If the report is made under paragraph 14(1) or (5)(a), on and after the day it comes into force the basis it contains shall have effect as regards all chargeable financial years beginning with the first financial year for which it states it is to operate; but this is subject to the effect of any subsequent report under paragraph 14(5).

(4) If the report is made under paragraph 14(5)(b), on and after the day it comes into force the basis it amends read subject to the amendments shall have effect as regards all chargeable financial years beginning with the first financial year for which it states it is to operate; but this is subject to the effect of any subsequent report under paragraph 14(5).

Recovery

16. Where an amount has become payable under any provision of this Part of this Schedule, and it has not been paid, it shall be recoverable in a court of competent jurisdiction.

Section 62.

SCHEDULE 9

NON-DOMESTIC RATING: ADMINISTRATION

Collection and recovery

1. The Secretary of State may make regulations containing such provision as he sees fit in relation to the collection and recovery of amounts persons are liable to pay under sections 43, 45 and 54 above.

2.—(1) In this paragraph—

- (a) references to the ratepayer are to a person liable to pay an amount under section 43, 45 or 54 above,
- (b) references to the amount payable are to the amount he is liable to pay,
- (c) references to the payee are to the charging authority to which he is liable to pay or (where section 54 applies) the Secretary of State, and
- (d) references to the financial year are to the financial year concerned.

(2) Regulations under this Schedule may include provision—

- (a) that the ratepayer is to make payments on account of the amount payable, which may include payments during the course of the financial year,
- (b) that payments on account must be made in accordance with an agreement between the ratepayer and the payee or in accordance with a prescribed scheme for payment by instalments,
- (c) that in prescribed circumstances payments on account must be calculated by reference to an estimate of the amount payable,
- (d) that an estimate must be made on prescribed assumptions (whether as to the ratepayer's interest in property or otherwise),
- (e) that the payee must serve a notice or notices on the ratepayer stating the amount payable or its estimated amount and what payment or payments he is required to make (by way of instalment or otherwise),
- (f) that no payment on account of the amount payable need be made unless a notice requires it,
- (g) that a notice and any requirement in it is to be treated as invalid if it contains prescribed matters or fails to contain other prescribed matters or is not in a prescribed form,
- (h) that the payee must supply prescribed information to the ratepayer when the payee serves a notice and that the notice is to be treated as invalid if the payee does not do so,
- (i) that if the ratepayer fails to pay an instalment in accordance with the regulations the unpaid balance of the amount payable or its estimated amount is to be payable on the day after the end of a prescribed period which begins with the day of the failure, and
- (j) that any amount paid by the ratepayer in excess of his liability (whether the excess arises because an estimate turns out to be wrong or otherwise) must be repaid or credited against any subsequent liability.

(3) Any reference in this paragraph to a payment on account of an amount is to any payment (whether interim, final or sole) in respect of the amount.

3.—(1) This paragraph applies to any sum which has become payable to a charging authority under any provision included under paragraph 2 above and has not been paid.

(2) Regulations under this Schedule may include, as regards the recovery of such a sum, provision—

- (a) allowing a liability order to be made;
- (b) allowing distress and sale of goods;

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- (c) allowing commitment to prison;
- (d) allowing a bankruptcy petition to be presented;
- (e) allowing winding-up.

(3) The regulations may include provision equivalent to any included under Parts II and VIII of Schedule 4 above subject to any modifications the Secretary of State thinks fit.

(4) The regulations may include provision that—

- (a) a sum to which this paragraph applies shall be recoverable in a court of competent jurisdiction, and
- (b) such method of recovery shall be available as an alternative to any method included under sub-paragraph (2) above.

4.—(1) This paragraph applies to—

- (a) any sum which has become payable to the Secretary of State under any provision included under paragraph 2 above and has not been paid;
- (b) any sum which has become payable (by way of repayment) to a person other than a charging authority or the Secretary of State under any provision included under paragraph 2 above and has not been paid.

(2) Regulations under this Schedule may include provision that such a sum shall be recoverable in a court of competent jurisdiction.

Information

5.—(1) A valuation officer may serve a notice on a person who is an owner or occupier of a hereditament requiring him to supply to the officer such information as is required by him for the purpose of carrying out functions conferred or imposed on him by or under this Part.

(2) A person on whom a notice is served under this paragraph shall supply the information required if it is in his possession or control, and he shall do so in such form and manner as is required in the notice and within the period of 21 days beginning with the day on which the notice is served.

(3) If a person on whom a notice is served under this paragraph fails without reasonable excuse to comply with sub-paragraph (2) above, he shall be liable on summary conviction to a fine not exceeding level 2 on the standard scale.

(4) If a notice has been served on a person under this paragraph, and in supplying information in purported compliance with sub-paragraph (2) above he makes a statement which he knows to be false in a material particular or recklessly makes a statement which is false in a material particular, he shall be liable on summary conviction to imprisonment for a term not exceeding 3 months or to a fine not exceeding level 3 on the standard scale or to both.

6.—(1) If in the course of the exercise of its functions any information comes to the notice of a relevant authority which leads it to suppose that a list requires alteration it shall be the authority's duty to inform the valuation officer who has the duty to maintain the list.

(2) For the purposes of sub-paragraph (1) above each of the following is a relevant authority—

- (a) a charging authority;
- (b) a precepting authority which falls within section 144(2)(a) to (e) above.

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Power of entry

7.—(1) If a valuation officer needs to value a hereditament for the purpose of carrying out functions conferred or imposed on him by or under this Part, he and any person authorised by him in writing may enter on, survey and value the hereditament if sub-paragraph (2) below is fulfilled and (where it applies) sub-paragraph (3) below is fulfilled.

(2) At least 24 hours' notice in writing of the proposed exercise of the power must be given.

(3) In a case where a person authorised by the valuation officer proposes to exercise the power, the person must if required produce his authority.

(4) If a person wilfully delays or obstructs a person in the exercise of a power under this paragraph, he shall be liable on summary conviction to a fine not exceeding level 1 on the standard scale.

Inspection

8.—(1) A person may, at a reasonable time and without making payment, inspect—

- (a) a list currently in force or a list in force at any time in the preceding 5 years;
- (b) any proposal made or notice of appeal given under regulations made under section 55 above, if made or given as regards a list currently in force or a list in force at any time in the preceding 5 years;
- (c) minutes of the proceedings of a valuation and community charge tribunal with respect to a list currently in force or a list in force at any time in the preceding 5 years;
- (d) a copy of a proposed list deposited under section 41(6) or 52(6) above and not yet in force.

(2) A person may—

- (a) make copies of or extracts from a document mentioned in sub-paragraph (1) above, or
- (b) require a person having custody of such a document to supply to him a photographic copy of (or of extracts from) the document.

(3) But if a reasonable charge is required for a facility under sub-paragraph (2) above, the sub-paragraph shall not apply unless the person seeking to avail himself of the facility pays the charge.

(4) If without reasonable excuse a person having custody of a document mentioned in sub-paragraph (1) above—

- (a) intentionally obstructs a person in exercising a right under sub-paragraph (1) or (2)(a) above, or
- (b) refuses to supply a copy to a person entitled to it under sub-paragraph (2)(b) above,

he shall be liable on summary conviction to a fine not exceeding level 1 on the standard scale.

Section 135.

SCHEDULE 10

SOCIAL SECURITY

1986 c. 50.

1. The Social Security Act 1986 shall be amended as mentioned in the following provisions of this Schedule.

2.—(1) Section 20 (income-related benefits) shall be amended as follows.

(2) In subsection (1) the word "and" shall be omitted and at the end of the subsection there shall be inserted "and

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(d) community charge benefits."

(3) After subsection (8) there shall be inserted—

"(8A) A person is entitled to a community charge benefit in respect of a particular day falling after 31 March 1990 if each of the three conditions set out in subsections (8B) to (8E) below is fulfilled.

(8B) In relation to England and Wales, the first condition is that—

- (a) for the day the person concerned is shown, in a charging authority's community charges register, as subject to a personal community charge of the authority and is not there shown as undertaking a full-time course of education on the day, or
- (b) the day consists of or falls within a contribution period in respect of which the person concerned is liable to pay an amount under section 9 of the 1988 Act (collective community charge contributions).

(8C) In relation to Scotland, the first condition is that—

- (a) in respect of the day the person concerned is shown, in a community charges register, as being liable to pay the personal community charge and is not there shown as undertaking a full-time course of education or nursing education on the day, or
- (b) the day consists of or falls within a contribution period in respect of which the person concerned is liable to pay a collective community charge contribution under section 11(11) of the 1987 Act.

(8D) The second condition is that there is an appropriate maximum community charge benefit in the case of the person concerned.

(8E) The third condition is that—

- (a) the day falls within a week in respect of which the person concerned has no income,
- (b) the day falls within a week in respect of which his income does not exceed the applicable amount, or
- (c) neither paragraph (a) nor paragraph (b) above is fulfilled in his case but amount A exceeds amount B.

(8F) As regards a person—

- (a) amount A is the appropriate maximum community charge benefit in his case, and
- (b) amount B is a prescribed percentage of the difference between his income in respect of the week in which the day falls and the applicable amount.

(8G) In respect of the same day, a person shall be entitled to a separate community charge benefit in respect of each charge or contribution period concerned (if more than one).

(8H) But regulations may provide that if—

- (a) a person would (apart from the regulations) be entitled, in respect of the same day, to separate community charge benefits, and
- (b) the circumstances are such as are prescribed,

he shall not be entitled to such one of the benefits as may be identified in accordance with prescribed rules."

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(4) After subsection (9) there shall be inserted—

“(9A) Subsection (9) above does not prevent different members of the same family becoming entitled to different community charge benefits by virtue of their fulfilling the conditions in respect of different charges or of different contribution periods.”

(5) In subsection (11)—

(a) before the definition of child there shall be inserted—

“ “chargeable financial year” has the same meaning as in the 1988 Act;

“charging authority” has the same meaning as in the 1988 Act;”

(b) after the definition of child there shall be inserted—

“ “contribution period”, in relation to England and Wales, has the same meaning as in section 9 of the 1988 Act;

“contribution period”, in relation to Scotland, means a continuous period of residence in any premises (which falls in a chargeable financial year) in respect of each day of which a person is liable to pay a collective community charge contribution under section 11(11) of the 1987 Act;”

(c) after the definition of family there shall be inserted—

“ “levying authority” has the same meaning as in the 1987 Act;”

(d) after the definition of married couple there shall be inserted—

“ “the 1987 act” means the Abolition of Domestic Rates Etc. (Scotland) Act 1987;

“the 1988 Act” means the Local Government Finance Act 1988;”

(e) after the definition of unmarried couple there shall be inserted—

“ “week”, in relation to community charge benefits, means a period of seven days beginning with a Monday.”

3.—(1) Section 21 (amount of entitlement) shall be amended as follows.

(2) After subsection (5) there shall be inserted—

“(5A) Where a person is entitled to a community charge benefit in respect of a day, and section 20(8E)(a) or (b) above applies, the amount to which he is entitled shall be the amount which is the appropriate maximum community charge benefit in his case.

(5B) Where a person is entitled to a community charge benefit in respect of a day, and section 20(8E)(c) above applies, the amount to which he is entitled shall be found by deducting amount B from amount A, where “amount A” and “amount B” have the meanings given by section 20(8F) above.”

(3) In subsection (6) after paragraph (b) there shall be inserted—

“(c) the appropriate maximum community charge benefit.”

4.—(1) Section 22 (calculation) shall be amended as follows.

(2) In subsection (3) for “and housing benefit” there shall be substituted “, housing benefit and any community charge benefit”.

(3) After subsection (8) there shall be inserted—

“(8A) A person’s income in respect of a week shall be calculated in accordance with prescribed rules; and the rules may provide for the calculation to be made by reference to an average over a period (which need not include the week concerned).”

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5. The following shall be inserted after section 22—

“Couples.

22A.—(1) As regards any case where a person is a member of a married or unmarried couple throughout a particular day, regulations may make such provision as the Secretary of State sees fit as to—

- (a) the entitlement of the person to a community charge benefit in respect of the day, and
- (b) the amount to which he is entitled.

(2) Nothing in subsections (3) to (8) below shall prejudice the generality of subsection (1) above.

(3) The regulations may provide that prescribed provisions shall apply instead of prescribed provisions of this Part, or that prescribed provisions of this Part shall not apply or shall apply subject to prescribed amendments or adaptations.

(4) The regulations may provide that, for the purpose of calculating in the case of the person concerned the matters mentioned in subsection (5) below, prescribed amounts relating to the person and his partner are to be aggregated and the aggregate is to be apportioned.

(5) The matters are income, capital, the applicable amount, and the appropriate maximum community charge benefit.

(6) The regulations may—

- (a) amend section 31B(6) below so as to allow for disregarding the whole or part of any pension payable to the partner of the person concerned in determining the latter's income;
- (b) amend section 31B(7) below accordingly.

(7) The regulations may contain different provision as to the following different cases—

- (a) cases where the first condition is fulfilled on the day concerned by the person concerned but not by his partner;
- (b) cases where the first condition is fulfilled on the day concerned by the person concerned and by his partner.

(8) The regulations may include such supplementary, incidental or consequential provisions as appear to the Secretary of State to be necessary or expedient.

(9) In this section—

- (a) references to a person's partner are to the other member of the couple concerned, and
- (b) references to the first condition are to the condition mentioned in section 20(8B) or (8C) above (as the case may be).

Polygamous marriages.

22B.—(1) This section applies to any case where throughout a particular day a person (the person in question) is a husband or wife by virtue of a marriage entered into under a law which permits polygamy; and this section applies whether or not either party to the marriage has for the time being any spouse additional to the other party.

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(2) For the purposes of section 22A above neither party to the marriage shall be taken to be a member of a couple on the day.

(3) Regulations under this section may make such provision as the Secretary of State sees fit as to—

- (a) the entitlement of the person in question to a community charge benefit in respect of the day, and
- (b) the amount to which he is entitled.

(4) Without prejudice to the generality of subsection (3) above the regulations may include provision equivalent to that included under section 22A above subject to any modifications the Secretary of State sees fit."

6. The following shall be inserted after section 31—

"Community charge benefits

Nature of
benefits.

31A.—(1) In relation to England and Wales, regulations shall provide that where a person is entitled to a community charge benefit in respect of a charging authority's personal community charge the benefit shall take such of the following forms as is prescribed in the case of the person—

- (a) a payment or payments by the authority to the person;
- (b) a reduction in the amount the person is liable to pay to the authority in respect of the charge as it has effect for the relevant chargeable financial year;
- (c) both such payment or payments and such reduction.

(2) In relation to Scotland, regulations shall provide that where a person is entitled to a community charge benefit in respect of a personal community charge determined by a regional, islands or district council the benefit shall take such of the following forms as is prescribed in the case of the person—

- (a) a payment or payments to the person by the levying authority to which the charge is payable;
- (b) a reduction in the amount the person is liable to pay in respect of the charge as it has effect for the relevant chargeable financial year;
- (c) both such payment or payments and such reduction.

(3) Regulations shall provide that where a person is entitled to a community charge benefit in respect of a contribution period the benefit shall take such of the following forms as is prescribed in the case of the person—

- (a) a payment or payments by the relevant authority to the person;
- (b) the reductions mentioned in subsection (4) below;
- (c) both such payment or payments and such reductions.

(4) The reductions are—

- (a) a reduction in the amount the person is liable to pay to the charge payer in respect of the contribution period, and
- (b) a consequential reduction in the amount the charge payer is liable to pay in respect of the charge concerned as it has effect for the relevant chargeable financial year.

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(5) For the purposes of subsections (1) and (2) above the relevant chargeable financial year is the chargeable financial year in which the relevant day falls; and the relevant day is the day in respect of which the person concerned is entitled to the benefit.

(6) For the purposes of subsection (3) above the relevant authority is—

(a) in relation to England and Wales, the authority to which an amount is payable in respect of the collective community charge concerned under section 15 of the 1988 Act;

(b) in relation to Scotland, the levying authority to which the collective community charge is payable.

(7) For the purposes of subsection (4) above the charge payer is—

(a) in relation to England and Wales, the person who is liable to pay an amount in respect of the collective community charge concerned under section 15 of the 1988 Act;

(b) in relation to Scotland, the person who is liable to pay the collective community charge under section 11(5) of the 1987 Act.

(8) For the purposes of subsection (4) above the relevant chargeable financial year is the chargeable financial year in which the contribution period falls.

(9) Regulations under subsection (1), (2) or (3) above may include such supplementary, incidental or consequential provisions as appear to the Secretary of State to be necessary or expedient; and such provisions may include provisions amending or adapting provisions of the 1987 Act or the 1988 Act.

**Arrangements for
benefits.**

31B.—(1) Any community charge benefit provided for by virtue of a scheme under section 20(1) above (in this Act referred to as a community charge benefit scheme) is to be administered by the appropriate authority.

(2) For the purposes of this section in its application to England and Wales, the appropriate authority in relation to a particular benefit is the charging authority as regards whose personal or collective community charge a person is entitled to the benefit.

(3) For the purposes of this section in its application to Scotland, the appropriate authority in relation to a particular benefit is the levying authority—

(a) to which the personal community charge is payable by a person entitled to the benefit; or

(b) in whose area is situated the premises in respect of residence in which for a contribution period a collective community charge contribution is payable.

(4) Charging authorities may agree that one shall carry out responsibilities relating to community charge benefits on another's behalf.

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(5) Levying authorities may agree that one shall carry out responsibilities relating to community charge benefits on another's behalf.

(6) A charging authority or levying authority may modify any part of the community charge benefit scheme administered by the authority—

(a) so as to provide for disregarding, in determining a person's income, the whole or part of any war disablement pension or war widow's pension payable to that person;

(b) to such extent in other respects as may be prescribed, and any such modifications may be adopted by resolution of an authority.

(7) Modifications other than such modifications as are mentioned in subsection (6)(a) above shall be so framed as to secure that, in the estimate of the authority adopting them, the total of the benefits which will be allowed by the authority for any year will not exceed the permitted total of benefits for that year.

(8) An authority which has adopted modifications may by resolution revoke or vary them.

(9) If the community charge benefit scheme includes power for an authority to exercise a discretion in allowing community charge benefits, the authority shall not exercise that discretion so that the total of the benefits allowed by it for any year exceeds the permitted total of benefits for that year.

(10) In relation to any authority the permitted total of benefits for any year shall be such amount as is calculated in accordance with rules contained in an order made by the Secretary of State.

Adjudication.

31C.—(1) Regulations shall provide that, where a person has claimed a community charge benefit as regards—

(a) a personal or collective community charge of a charging authority, or

(b) a personal or collective community charge payable to a levying authority,

the authority shall notify the person of its determination of the claim.

(2) Any such notification shall be given in such form as may be prescribed.

(3) Regulations shall make provision for reviews of determinations relating to community charge benefits.

Excess benefits.

31D.—(1) Regulations may make provision as to any case where a charging authority or a levying authority has allowed a community charge benefit to a person and the amount allowed exceeds the amount to which he is entitled in respect of the benefit.

(2) As regards any case where the benefit is in respect of a personal community charge the regulations may provide that—

(a) a sum equal to the excess shall be due from the person concerned to the authority (whatever the form the benefit takes);

- (b) any liability under any provision included under paragraph (a) above shall be met by such method mentioned in subsection (3) below as is prescribed as regards the case concerned, or by such combination of two or all three of the methods as is prescribed as regards the case concerned.

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(3) The methods are—

- (a) payment by the person concerned;
- (b) addition to any amount payable in respect of the charge concerned;
- (c) deduction from any other income-related benefit which he may be allowed by the authority concerned.

(4) As regards any case where the benefit is in respect of a contribution period the regulations may provide that—

- (a) a sum equal to the excess shall be due from the person concerned to the authority (whatever the form the benefit takes);
- (b) any liability under any provision included under paragraph (a) above shall be met by such method mentioned in subsection (5) below as is prescribed as regards the case concerned, or by such combination of the methods as is prescribed as regards the case concerned;
- (c) there is to be no adjustment as between the person concerned and the charge payer, or as between the charge payer and the authority concerned.

(5) The methods are—

- (a) payment by the person concerned;
- (b) deduction from any other income-related benefit which he may be allowed by the authority concerned.

(6) In a case where the regulations provide that a sum or part of a sum is to be paid, and the sum or part is not paid on or before such day as may be prescribed, the regulations may provide that the sum or part shall be recoverable in a court of competent jurisdiction.

(7) For the purposes of subsection (4) above the charge payer is—

- (a) in relation to England and Wales, the person who is liable to pay an amount in respect of the collective community charge concerned under section 15 of the 1988 Act;
- (b) in relation to Scotland, the person who is liable to pay the collective community charge under section 11(5) of the 1987 Act.

(8) The regulations may provide that they are not to apply as regards any case falling within a prescribed category.

SCH. 10 **Shortfall in
benefits.**

31E.—(1) Regulations may make provision as to any case where a charging authority or a levying authority has allowed a community charge benefit to a person and the amount allowed is less than the amount to which he is entitled in respect of the benefit.

(2) In particular, as regards any prescribed case where the benefit is in respect of a contribution period the regulations may provide that—

- (a) a sum equal to the difference shall be due from the authority to the person concerned;
- (b) any liability under any provision included under paragraph (a) above shall be met by payment and not by such reductions as are mentioned in section 31A(4) above (whatever the form the benefit actually allowed takes);
- (c) there is to be no adjustment as between the person concerned and the charge payer, or as between the charge payer and the authority concerned.

(3) For the purposes of subsection (2) above the charge payer is—

- (a) in relation to England and Wales, the person who is liable to pay an amount in respect of the collective community charge concerned under section 15 of the 1988 Act;
- (b) in relation to Scotland, the person who is liable to pay the collective community charge under section 11(5) of the 1987 Act.

**Community
charge benefit
finance.**

31F.—(1) For each year the Secretary of State shall pay a subsidy (to be known as community charge benefit subsidy) to each charging authority and to each levying authority.

(2) The amount of community charge benefit subsidy to be paid to a charging authority or a levying authority for a year shall be calculated in such manner as may be specified by an order made by the Secretary of State.

(3) Any such order shall require the calculation to be made by reference to an amount found by—

- (a) taking the total amount allowed by the authority for the year by way of community charge benefits, and
- (b) adjusting that total by making such additions or subtractions (or both) as are specified in the order.

(4) The Secretary of State may deduct, from the amount which would (apart from this subsection) be payable to a charging or levying authority by way of community charge benefit subsidy for a year, such amount as he considers it unreasonable to pay by way of such subsidy.

(5) The Secretary of State may pay to an authority, as part of the amount of community charge benefit subsidy payable to the authority for a year, an additional sum in respect of the costs of administering community charge benefits; and any such additional sum shall be calculated in a manner specified by an order made by the Secretary of State.

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(6) Subsidy under this section shall be payable by the Secretary of State at such time and in such manner as the Treasury may direct, but subject—

- (a) to the making of a claim for it in such form and containing such particulars as the Secretary of State may from time to time determine; and
- (b) to such conditions as to records, certificates, audit or otherwise as the Secretary of State may, with the approval of the Treasury, impose.

(7) The amount of any subsidy payable to an authority shall be calculated to the nearest pound, by disregarding an odd amount of 50 pence or less and by treating an odd amount exceeding 50 pence as a whole pound.

Information.

31G.—(1) The Secretary of State may supply to charging authorities and levying authorities such information of a prescribed description obtained by reason of the exercise of any of his functions under the benefit Acts as they may require in connection with any of their functions relating to community charge benefits.

(2) Charging authorities and levying authorities shall supply to the Secretary of State such information of a prescribed description obtained by reason of the exercise of their functions relating to community charge benefits as he may require in connection with any of his functions under the benefit Acts.

(3) It shall also be the duty of each charging authority and of each levying authority to supply the Secretary of State, in the prescribed manner and within the prescribed time—

- (a) with such information as he may require concerning its performance of any of its functions relating to community charge benefits;
- (b) with such information as he may require to enable him to prepare estimates of likely future amounts of community charge benefit subsidy; and
- (c) with such information as he may require to enable him to decide questions relating to the development of policy as regards community charge benefits.

(4) Each charging authority shall take such steps as appear to it appropriate for the purpose of securing that any person who may be entitled to a community charge benefit as regards a personal or collective community charge of the authority becomes aware that he may be entitled to it.

(5) Each levying authority shall take such steps as appear to it appropriate for the purpose of securing that any person who may be entitled to a community charge benefit in respect of a personal community charge payable to the authority becomes aware that he may be entitled to it.

(6) Each charging authority and each levying authority shall make copies of the community charge benefit scheme, with any modifications adopted by it under section 31B above, available for public inspection at its principal office at all reasonable hours without payment."

7. In section 51 (regulations about claims for and payments of benefit) in subsection (1) paragraphs (j) and (u) shall be omitted.

SCH. 10 8. The following shall be inserted after section 51—

"Community
charge benefits:
administration.

51A.—(1) Regulations may provide as follows as regards any community charge benefit—

- (a) for requiring a claim for a benefit to be made by such person, in such manner and within such time as may be prescribed;
- (b) for treating a claim made in such circumstances as may be prescribed as having been made at such date earlier or later than that at which it is made as may be prescribed;
- (c) for permitting a claim to be made, or treated as if made, for a period wholly or partly after the date on which it is made;
- (d) for permitting an award on a claim to be made for such a period subject to the condition that the claimant satisfies the requirements for entitlement when benefit becomes payable, or any right to a reduction or a consequential reduction becomes available, under the award;
- (e) for a review of any award if those requirements are found not to have been satisfied;
- (f) for the disallowance on any ground of a person's claim for a benefit to be treated as a disallowance of any further claim by that person for that benefit until the grounds of the original disallowance have ceased to exist;
- (g) for enabling one person to act for another in relation to a claim for a benefit and for enabling such a claim to be made and proceeded with in the name of a person who has died;
- (h) for requiring any information or evidence needed for the determination of a claim or of any question arising in connection with a claim to be furnished by such person as may be prescribed in accordance with the regulations;
- (i) for the time when and manner in which any benefit (or part) which takes the form of a payment is to be paid, and for the information and evidence to be furnished in connection with the payment;
- (j) for the time when the right to make a reduction or consequential reduction may be exercised;
- (k) for notice to be given of any change of circumstances affecting the continuance of entitlement to a benefit;
- (l) for calculating the amount of a benefit according to a prescribed scale or otherwise adjusting it so as to avoid fractional amounts or facilitate computation;
- (m) for suspending (in whole or in part) any payment or right to make a reduction or consequential reduction, where it appears to the authority which allowed a benefit that a question arises whether the conditions for entitlement to the benefit are or were fulfilled or whether the award ought to be revised or whether an appeal ought to be brought against the award;
- (n) for withholding in prescribed circumstances any payment or right to make a reduction or consequential reduction, and for subsequently

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making in prescribed circumstances any withheld payment or restoring in prescribed circumstances any right to make a reduction or consequential reduction;

- (o) in the case of any benefit (or part) which takes the form of a payment, for payment or distribution to or among persons claiming to be entitled on the death of any person, and for dispensing with strict proof of their title;
- (p) for making a payment on account of a benefit, or conferring a right to make a reduction or consequential reduction on account, where no claim has been made and it is impracticable for one to be made immediately;
- (q) for making a payment on account of a benefit, or conferring a right to make a reduction or consequential reduction on account, where a claim has been made but it is impracticable for the claim or an appeal, reference, review or application relating to it to be determined immediately;
- (r) for making a payment on account of a benefit, or conferring a right to make a reduction or consequential reduction on account, where an award has been made but it is impracticable to institute the benefit immediately;
- (s) generally as to administration.

(2) Regulations under this section may include provision that prescribed provisions shall apply instead of prescribed provisions of the 1987 Act or the 1988 Act, or that prescribed provisions of the 1987 Act or the 1988 Act shall not apply or shall apply subject to prescribed amendments or adaptations.

(3) References in subsection (2) above to the 1987 Act or the 1988 Act include references to regulations made under the Act concerned.

Administration of
benefits: general.

51B.—(1) Regulations may provide for a claim for one relevant benefit to be treated, either in the alternative or in addition, as a claim for any other relevant benefit that may be prescribed.

(2) Regulations may provide for treating a payment made or right conferred by virtue of regulations under section 51(1)(t) above, or of regulations under section 51A(1)(p) to (r) above, as made or conferred on account of any relevant benefit that is subsequently awarded or paid.

(3) For the purposes of subsections (1) and (2) above relevant benefits are—

- (a) any benefit to which section 51 above applies, and
- (b) any community charge benefit."

9.—(1) Section 56 (legal proceedings) shall be amended as follows.

(2) In subsection (2)(a) and (b) after "housing benefit" there shall be inserted "or community charge benefits".

(3) In subsection (4) for "concerning" there shall be substituted "which relates to housing benefit and concerns".

U

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(4) After subsection (4) there shall be inserted—

“(4A) In subsections (2) and (3) above “the appropriate authority” means, in relation to an offence relating to community charge benefits, such authority as is prescribed in relation to the offence.”

(5) In subsection (5) for “(4)” there shall be substituted “(4A)”.

10. In section 61 (consultations on subordinate legislation) after paragraph (b) of subsection (7) there shall be inserted—

“(c) regulations relating to community charge benefits (other than regulations of which the effect is to increase any amount specified in regulations previously made);

(d) an order under section 31B(10) or 31F above.”.

11.—(1) Section 83 (orders and regulations) shall be amended as follows.

(2) In subsection (2) after “housing benefit” there shall be inserted “or community charge benefits”.

(3) In subsection (3) after paragraph (c) there shall be inserted—

“(cc) regulations under Part II of this Act which relate to community charge benefits and are made before 1 April 1990;

(ccc) orders under section 31F(2) or (5) above which are made before 1 April 1990;”.

(4) In subsection (5) after “30” there shall be inserted “, 31F”.

12. In section 85 (financial provision) in subsection (1)(a) after sub-paragraph (v) there shall be inserted—

“(vi) community charge benefit subsidy;”.

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SCHEDULE 11

TRIBUNALS

Establishment

1.—(1) The Secretary of State shall make regulations providing for the establishment of tribunals (to be known as valuation and community charge tribunals).

(2) The regulations may include such provision as he sees fit in relation to membership, staff, accommodation, equipment, procedure and other matters relating to the tribunals.

Jurisdiction

2. The tribunals shall exercise the jurisdiction conferred on them by—

(a) section 23 above;

(b) regulations under section 55 above.

3.—(1) The Secretary of State may by regulations provide for the tribunals to exercise the jurisdiction conferred (apart from the regulations) on local valuation courts by the 1967 Act or any other Act.

(2) The regulations may apply as regards matters arising or appeals instituted before, as well as those arising or instituted after, the coming into force of the regulations.

Arbitration

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4.—(1) This paragraph applies as regards any matter which falls within the jurisdiction conferred on tribunals by or under this Act.

(2) The Secretary of State may by regulations provide that, where the persons mentioned in sub-paragraph (3) below agree in writing that the matter is to be referred to arbitration, the matter shall be so referred.

(3) The persons are the persons who, if the matter were to be the subject of an appeal to a tribunal, would be the parties to the appeal.

Membership

5.—(1) Regulations under paragraph 1 above may include provision—

- (a) that the number of members of a tribunal is to be such as is determined by the Secretary of State;
- (b) for the appointment by a prescribed person or persons of the members of each tribunal;
- (c) that one of the members is to be president of the tribunal;
- (d) that the president is to be appointed by the members by a prescribed method, and that if one is not so appointed within a prescribed period the president is to be appointed by the Secretary of State after consulting such prescribed persons as he sees fit;
- (e) that some of the members (who may include the president) are to be appointed to the position of chairman, that the number to be appointed is to be stated by a prescribed person or persons, and that the appointments are to be made by the members themselves by a prescribed method or (if they default) by a prescribed person or persons;
- (f) that persons are to be disqualified from becoming or continuing to be members in prescribed circumstances;
- (g) that members are to be disqualified from acting in cases falling within prescribed descriptions;
- (h) that prescribed factors are not to disqualify persons from becoming or continuing to be members;
- (i) that prescribed factors are not to disqualify members from acting;
- (j) as to the duration (subject to disqualification, termination or resignation) of any appointment as president or member or chairman;
- (k) allowing the Secretary of State to terminate an appointment as president;
- (l) requiring the person or persons who appointed a member to terminate the appointment if the Secretary of State so directs after consulting the person or persons who made the appointment;
- (m) allowing a president to terminate a person's appointment as chairman, and requiring a president to do so if the Secretary of State directs him to do so;
- (n) allowing a person appointed as president or member or chairman to resign if such notice as may be prescribed is given;
- (o) that a person who ceases to be president or member or chairman is to be eligible for re-appointment in prescribed circumstances;
- (p) that a member is to be entitled to such travelling, subsistence and other allowances as may be prescribed.

(2) The regulations may include provision for the administration of members' allowances to be the responsibility of the clerk of the tribunal.

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Staff

6.—(1) Regulations under paragraph 1 above may include provision—

- (a) that a tribunal shall appoint a clerk of the tribunal and may appoint other employees;
- (b) that a tribunal shall pay to its employees such remuneration and allowances as the tribunal determines;
- (c) that (subject to disqualification) employees shall be appointed on such other terms and conditions as the tribunal may determine;
- (d) that an appointment shall be invalid unless made with the approval of the Secretary of State;
- (e) that a determination as to remuneration or allowances shall be invalid unless made with the approval of the Secretary of State given with the Treasury's consent;
- (f) that persons are to be disqualified from becoming or continuing to be employees in prescribed circumstances;
- (g) that employees are to be disqualified from acting in cases falling within prescribed descriptions;
- (h) that prescribed factors are not to disqualify persons from becoming or continuing to be employees;
- (i) that prescribed factors are not to disqualify employees from acting.

(2) The regulations may include provision—

- (a) that any function of making an appointment, or determining remuneration or allowances or other terms or conditions, may be performed on behalf of a tribunal by two or more of its members;
- (b) that one of those members must be the president.

(3) The regulations may include provision for the administration of employees' remuneration and allowances to be the responsibility of the clerk of the tribunal.

1978 c. 44.

(4) The regulations may include provision that where a person ceases to be employed by a local valuation panel and immediately becomes employed by a valuation and community charge tribunal, for the purposes of the Employment Protection (Consolidation) Act 1978 his period of employment by the panel shall count as a period of employment by the tribunal and the change of employment shall not break the continuity of the period of employment.

(5) For the purposes of sub-paragraph (4) above a local valuation panel is a local valuation panel constituted under a scheme under section 88 of the 1967 Act.

1972 c. 11.

(6) Employment with a valuation and community charge tribunal shall be included among the kinds of employment to which a scheme under section 1 of the Superannuation Act 1972 can apply, and accordingly in Schedule 1 to that Act (in which those kinds of employment are listed) "a valuation and community charge tribunal" shall be inserted after "Police Complaints Authority".

Accommodation and equipment

7.—(1) Regulations under paragraph 1 above may include provision requiring a tribunal to—

- (a) maintain a permanent office, and
- (b) make arrangements to secure that the tribunal has such other accommodation, and such secretarial and other equipment, as is sufficient for the performance of its functions.

(2) The regulations may include provision that any function as to accommodation or equipment may be performed on behalf of a tribunal by its clerk.

Procedure

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8.—(1) Regulations under paragraph 1 above may include—

- (a) provision for determining which tribunal is to deal with an appeal;
- (b) provision that prescribed functions of a tribunal relating to an appeal may be discharged on its behalf by its clerk or other prescribed employee;
- (c) provision that prescribed functions of a tribunal relating to an appeal may be discharged on its behalf by one of its members;
- (d) provision that prescribed functions of a tribunal relating to an appeal may be discharged on its behalf by some of its members;
- (e) provision as to the selection of a member who is to discharge functions relating to an appeal on behalf of a tribunal (which may include provision that he must be the president or a chairman);
- (f) provision as to the number and selection of members who are to discharge functions relating to an appeal on behalf of a tribunal (which may include provision that one of them must be the president or a chairman).

(2) The regulations may include provision—

- (a) prescribing the procedure to be followed for initiating an appeal, and authorising or requiring it to be dismissed if it is not initiated within a prescribed time;
- (b) authorising an appeal to be disposed of on the basis of written representations in prescribed circumstances;
- (c) prescribing the procedure to be followed before the hearing of an appeal;
- (d) authorising an appeal to be withdrawn before the hearing in prescribed circumstances.

(3) The regulations may include provision prescribing the procedure to be followed at the hearing of an appeal, and such provision may include provision—

- (a) requiring the hearing to take place in public except in prescribed circumstances;
- (b) as to the persons entitled to appear and to be heard on behalf of parties to the appeal;
- (c) authorising the hearing to proceed in the absence of a party or parties to the appeal in prescribed circumstances;
- (d) requiring persons to attend to give evidence and produce documents;
- (e) as to evidence generally (whether written evidence or oral evidence given under oath or affirmation) and, in particular, as to the use as evidence of information supplied under Schedule 9 above or under regulations under Schedule 2 above or under section 82 of the 1967 Act;
- (f) as to the adjournment of the hearing.

(4) The regulations may include provision—

- (a) that where two or more members of a tribunal are acting the decision of the majority is to prevail or, if the votes are equal, the appeal is to be reheard;
- (b) requiring reasons for a decision to be given;
- (c) authorising a decision to be given orally or in writing;
- (d) authorising a decision to be reserved;
- (e) authorising or requiring an order to be made in consequence of a decision;

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- (f) that an order may require a register or list to be altered (prospectively or retrospectively), or an estimate to be altered, or a designation of an individual as a responsible individual to be revoked, or a penalty to be quashed, or a designation under section 5 above to be revoked;
 - (g) that an order may require any ancillary matter to be attended to;
 - (h) authorising or requiring a tribunal to review or set aside a decision, or to vary or revoke an order, of the tribunal in prescribed circumstances.
- (5) The regulations may include provision—
- (a) requiring decisions and orders to be recorded;
 - (b) as to the proof of decisions and orders;
 - (c) authorising the correction of clerical errors in records of decisions and orders;
 - (d) requiring decisions, orders and corrections to be communicated to the parties to appeals.
- (6) The regulations may include provision that, subject to any other provision of the regulations, a tribunal may regulate its own procedure.
- (7) The regulations may include provision that a person who without reasonable excuse fails to comply with any requirement imposed by the regulations under sub-paragraph (3)(d) above shall be liable on summary conviction to a fine not exceeding level 1 on the standard scale.

Orders

- 9.—(1) This paragraph applies where a tribunal orders—
- (a) the community charges registration officer for a charging authority to alter the authority's community charges register,
 - (b) the valuation officer for a charging authority to alter a local non-domestic rating list of the authority, or
 - (c) the central valuation officer to alter a central non-domestic rating list.
- (2) If the order is recorded in accordance with any provision included in regulations under paragraph 1 above, the officer or authority ordered shall—
- (a) alter the register or list concerned accordingly, and
 - (b) attend to any ancillary matter provided for in the order (such as the repayment of an amount, or the allowance of an amount by way of deduction against a sum due).
- 10.—(1) This paragraph applies where a tribunal orders—
- (a) the community charges registration officer for a charging authority to revoke a designation of an individual as a certification officer under regulations under section 30 above,
 - (b) a charging authority to alter an estimate, made for the purposes of regulations under Schedule 2 above, of the amount a person is liable to pay in respect of a community charge of the authority,
 - (c) the community charges registration officer for a charging authority to revoke a designation of an individual as a responsible individual under regulations under Schedule 2 above,
 - (d) a charging authority to quash a penalty imposed by it under Schedule 3 above,
 - (e) the community charges registration officer for a charging authority to quash a penalty imposed by him under Schedule 3 above, or
 - (f) the community charges registration officer for a charging authority to revoke a designation under section 5 above.

(2) If the order is recorded in accordance with any provision included in regulations under paragraph 1 above, the authority or officer ordered shall—

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- (a) revoke the designation, alter the estimate or quash the penalty accordingly, and
- (b) attend to any ancillary matter provided for in the order (such as the repayment of an amount, or the allowance of an amount by way of deduction against a sum due).

Appeals

11.—(1) Regulations under paragraph 1 above may include provision that—

- (a) an appeal shall lie to the High Court on a question of law arising out of a decision or order which is given or made by a tribunal on an appeal under section 23 above;
- (b) an appeal shall lie to the Lands Tribunal in respect of a decision or order which is given or made by a tribunal on an appeal under regulations under section 55 above.

(2) The regulations may include—

- (a) provision as to the persons who may appeal to the High Court or the Lands Tribunal;
- (b) provision authorising or requiring an appeal to the High Court or the Lands Tribunal to be dismissed if it is not initiated within a prescribed time;
- (c) provision as to the powers of the High Court or the Lands Tribunal on an appeal to it (which may include provision allowing the tribunal's decision or order to be confirmed, varied, set aside, revoked or remitted, and provision allowing the making of any order the tribunal could have made);
- (d) provision requiring a charging authority, the community charges registration officer or valuation officer for a charging authority, or the central valuation officer, to act in accordance with any order made by the High Court or the Lands Tribunal, and provision that paragraph 9 or 10 above is to have effect subject to such a requirement.

Inspection of records

12.—(1) This paragraph applies to records which relate to decisions and orders of a tribunal and which are required to be made under any provision included in regulations under paragraph 1 above.

(2) The regulations may include provision that a person may, at a reasonable time stated by or on behalf of the tribunal concerned and without making payment, inspect records to which this paragraph applies at the tribunal's permanent office.

(3) The regulations may include provision that if without reasonable excuse a person having custody of records to which this paragraph applies intentionally obstructs a person in exercising a right under any provision included under subparagraph (2) above, he shall be liable on summary conviction to a fine not exceeding level 1 on the standard scale.

Finance

13. The Secretary of State shall make such payments as are necessary to meet any expenditure incurred in or in connection with the performance by tribunals of their functions (whether as regards remuneration, allowances, accommodation, equipment or otherwise).

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General

14. Regulations under paragraph 3 above may include—

- (a) provision for the winding up of local valuation courts or for their reconstitution as valuation and community charge tribunals;
- (b) provision as to orders, which may include provision requiring the carrying out of an order made by a valuation and community charge tribunal in exercising jurisdiction conferred by the regulations;
- (c) provision that an appeal shall lie to the Lands Tribunal in respect of a decision or order which is given or made by a valuation and community charge tribunal in exercising jurisdiction conferred by the regulations;
- (d) provision as to the persons who may appeal to the Lands Tribunal, as to the time within which an appeal may be initiated, and as to the powers of the Lands Tribunal on an appeal to it;
- (e) provision requiring the carrying out of an order made by the Lands Tribunal on an appeal to it.

15. Regulations under paragraph 4 above may include—

- (a) provision applying enactments relating to arbitration;
- (b) provision that an award in an arbitration may include any order a valuation and community charge tribunal could have made in the matter concerned;
- (c) provision requiring the carrying out of an order so included.

16.—(1) Without prejudice to section 143(1) above, regulations under this Schedule may make different provision for cases where valuation and community charge tribunals exercise jurisdiction conferred on them by or under different provisions of this Act.

(2) Without prejudice to section 143(2) above, regulations under this Schedule may include provision amending, adapting, repealing or revoking any provision of or made under the 1967 Act or any other Act.

17.—(1) Where a tribunal, arbitrator, umpire or court deals with a matter falling within the jurisdiction conferred on tribunals by section 23 above, section 8(3) above shall not apply as regards the matter if the tribunal, arbitrator, umpire or court so orders.

(2) But sub-paragraph (1) above shall not have effect if the order is set aside on appeal.

Interpretation

1967 c. 9.

18. In this Schedule “the 1967 Act” means the General Rate Act 1967.

Section 137.

SCHEDULE 12

AMENDMENTS

PART I

ENGLAND AND WALES

City of London (Various Powers) Act 1957 (c. x)

1.—(1) The following shall be substituted for section 6(1)(a) of the City of London (Various Powers) Act 1957 (qualification of voters at ward elections)—

- “(a) are occupying as owner or tenant the whole or part of a hereditament which is shown in a local non-domestic rating list, which is in that ward, and for which the rateable value shown in that list is not less than £10; or”.

(2) This paragraph shall have effect as regards qualifying dates after 31 March 1990.

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Justices of the Peace Act 1979 (c. 55)

2.—(1) In section 41(1)(b) of the Justices of the Peace Act 1979 (application to City) for “general rate fund of the City” there shall be substituted “City fund”.

(2) This paragraph shall have effect as regards any time after 31 March 1990.

Local Government Finance Act 1982 (c. 32)

3.—(1) The Local Government Finance Act 1982 shall be amended as follows.

(2) The following shall be substituted for section 12(3) (accounts subject to audit)—

“(3) This section also applies to—

- (a) the accounts of the collection fund of the Common Council and the accounts of the City fund; and
- (b) the accounts relating to the superannuation fund established and administered by the Common Council under the Local Government Superannuation Regulations 1974 as amended by the Local Government Superannuation (City of London) Regulations 1977;

and any reference in this Part of this Act to the accounts of a body shall be construed, in relation to the Common Council, as a reference to the accounts mentioned in paragraphs (a) and (b) above.”

(3) The following shall be inserted after section 25A (power of auditor to issue prohibition order)—

“Restriction on
power to issue
prohibition order.

25AA.—(1) In a case where—

- (a) a report is made under section 114(2) of the Local Government Finance Act 1988 (the 1988 Act), and
- (b) copies of the report are sent in accordance with section 114(4) of the 1988 Act,

during the relevant period no prohibition order may be issued as regards any decision, course of action or item of account which led to the report being made.

(2) For the purposes of subsection (1) above the relevant period is the period—

- (a) beginning with the day on which copies of the report are sent, and
- (b) ending with the day (if any) on which the body's consideration of the report under section 115(2) of the 1988 Act begins.

(3) If section 115(3) of the 1988 Act is not complied with, it is immaterial for the purposes of subsection (2)(b) above.”

(4) In section 29 (miscellaneous functions of Audit Commission for Local Authorities in England and Wales) at the end of subsection (1) there shall be inserted “or

- (c) for certifying the body's calculation under paragraph 5(6)(b) of Schedule 8 to the Local Government Finance Act 1988 of the amount of its non-domestic rating contribution for a financial year, and for certifying the amount calculated.”

- SCH. 12 (5) Sub-paragraphs (2) and (4) above shall have effect for financial years beginning in or after 1990.

PART II

SCOTLAND

Valuation and Rating (Scotland) Act 1956 (c. 60)

4. In section 6 of the Valuation and Rating (Scotland) Act 1956 (ascertainment of certain values of lands and heritages) after subsection (8) there shall be inserted the following subsections—

“(8A) The Secretary of State may by regulations made under this subsection prescribe—

- (a) the manner in which and the principles, rules and considerations by reference to which the net annual value of lands and heritages is to be arrived at under subsection (8) above;
- (b) that the principles, rules and considerations referred to in paragraph (a) above or any of them shall be such as are determined in accordance with the regulations.

(8B) Regulations made under subsection (8A) above—

- (a) may be made so as to apply differently to different areas or in relation to different cases or classes of case;
- (b) may include such supplementary, incidental, consequential or transitional provisions as appear to the Secretary of State to be necessary or expedient; and
- (c) shall be made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.”

5. In section 22 of that Act (exemption of churches etc. from rates)—

(a) after subsection (1) there shall be inserted the following subsection—

“(1A) Without prejudice to subsection (1) of this section, in respect of the year 1989–90 and of any subsequent year, no rate shall be levied on any premises to the extent that they are occupied by a religious body and used by it for such purposes and to such extent for those purposes as the Secretary of State may prescribe by order made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.”;

(b) in subsection (2), for the words “the foregoing subsection” there shall be substituted the words “subsection (1) or (1A) of this section”;

(c) after subsection (2) there shall be inserted the following subsection—

“(2A) Where any such premises as are mentioned in subsection (1A) of this section are used to an extent for a use other than one so prescribed, the net annual value of or attributable to the premises shall be apportioned as between these respective uses and the amounts so apportioned shall be shown separately in the valuation roll.”;

(d) in subsection (3), for the words “last foregoing subsection” there shall be substituted the words “subsection (2) or (2A) of this section”.

6. After section 22 of that Act, there shall be inserted the following section—

“Exemption of
certain
fishings from
rates.

22A.—(1) In respect of each of the following years, that is to say the year 1989–90 and subsequent years, no rate shall be levied in respect of lands and heritages which fall within any of paragraphs (a) to (c) below—

(a) lands and heritages which—

- (i) consist of rights of salmon fishing entered separately in the valuation roll; and

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- (ii) are situated in a salmon fishery district for which there is, immediately before the beginning of the year, a district salmon fishery board;
 - (b) lands and heritages which consist of rights of salmon fishing entered separately in the valuation roll, being rights which are exercisable in the River Tweed and as regards which an annual rate or assessment is levied under section 79 of the Tweed Fisheries Act 1857 or section 5 of the Tweed Fisheries (Amendment) Act 1859.
- In this paragraph, "River Tweed" means "the River" as defined by the Tweed Fisheries (Amendment) Act 1859 as amended by the byelaw made under section 4 of the Salmon Fisheries (Scotland) Act 1863;
- (c) lands and heritages which consist of rights of fishing entered separately in the valuation roll, being rights which are exercisable in an area defined by an order which—
 - (i) is made under section 28(3) of the Salmon and Freshwater Fisheries Act 1975; and
 - (ii) contains such provision as is mentioned in paragraph 1(a) of Schedule 3 to that Act (contributions imposed by water authorities).

(2) Subsection (1) of this section is without prejudice to subsections (2) to (4) of section 7 of the Local Government and Miscellaneous Financial Provisions (Scotland) Act 1958 (certain rights of salmon fishing deemed for the purposes of making up the valuation roll to be agricultural lands and heritages).

(3) In subsection (1) of this section—

- (a) "salmon fishery district" has the meaning assigned to it by section 40(1) of the Salmon Act 1986;
- (b) "district salmon fishery board" means a district salmon fishery board which exists by virtue of section 14 of that Act."

Local Government (Financial Provisions etc.) (Scotland) Act 1962 (c. 9)

7. In subsection (2) of section 4 of the Local Government (Financial Provisions etc.) (Scotland) Act 1962 (reduction and remission of rates payable by charitable and other organisations) in paragraph (i) for the words "one-half" there shall be substituted the words "one-fifth".

Registration of Births, Deaths and Marriages (Scotland) Act 1965 (c. 49)

8. After section 28A of the Registration of Births, Deaths and Marriages (Scotland) Act 1965 there shall be inserted the following new section—

"Intimation of death to Community Charges Registration Officer.

28B.—(1) The district registrar for each registration district shall furnish to the Community Charges Registration Officer of each region or islands area within which the registration district wholly or partly falls such particulars of such deaths as may be prescribed by regulations made under this section.

(2) Regulations under this section may provide that the duty imposed on a district registrar by subsection (1) above shall, instead, be a duty imposed on the Registrar General.

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(3) Regulations under this section may make provision as to the time at which and manner in which particulars are to be furnished under this section, and may make different provision for different cases or classes of case.

(4) Regulations made under this section shall be made by the Secretary of State by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament."

Town and Country Planning (Scotland) Act 1972
(c. 52)

9. In section 181 of the Town and Country Planning (Scotland) Act 1972 (scope of provisions relating to interests of owner-occupiers affected by planning proposals) after subsection (4) there shall be inserted the following subsection—

"(4A) The Secretary of State may, by regulations made under this subsection, substitute for any reference in these provisions to "annual value" or "hereditament" such other reference as he may consider appropriate; and such regulations may make such supplemental or consequential amendments of this Act or of any other enactment whether passed before or after this Act as the Secretary of State thinks fit."

Local Government (Scotland) Act 1973 (c. 65)

10. After section 110 of the Local Government (Scotland) Act 1973 there shall be inserted the following new section—

"Estimate of
amount due for
non-domestic
district rate.

110A.—(1) In relation to each financial year a regional council shall estimate the amount due to the council of each district which falls within their region in respect of the non-domestic district rate for that year as that amount falls to be ascertained in pursuance of regulations made under section 110 of this Act.

(2) For the purposes of making the estimate mentioned in subsection (1) above, it shall be assumed that in respect of the financial year concerned both the regional council and the district council determine the maximum non-domestic rate prescribed in relation to each of them in respect of that financial year under section 3(2) of the Abolition of Domestic Rates Etc. (Scotland) Act 1987.

(3) The regional council shall, before such date as may be prescribed in relation to each financial year, notify the council of each district in their region of the estimate made under subsection (1) above in relation to that district for that financial year."

Local Government (Scotland) Act 1975 (c. 30)

11. In section 6 of the Local Government (Scotland) Act 1975 (valuation by formula of certain lands and heritages) for subsection (1) there shall be substituted the following subsection—

"(1) In the case of such lands and heritages as may be prescribed or of any class or description of such lands and heritages as may be prescribed, the Secretary of State may by order provide that their rateable values or the aggregate amount of their rateable values shall be—

(a) such as is prescribed; or

(b) such as is determined in accordance with prescribed rules."

12.—(1) In section 9 of that Act (payment of rates pending valuation appeal) for subsection (1) there shall be substituted the following subsection—

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“(1) Notwithstanding that an appeal under the Valuation Acts is pending with respect to any lands and heritages the rates levied on those lands and heritages shall be payable in accordance with section 8 of this Act.”

(2) The amendment made by sub-paragraph (1) above shall not have effect as regards any lands and heritages with respect to which an appeal under the Valuation Acts is pending at the date of commencement of that sub-paragraph.

13. After section 9 of that Act there shall be inserted the following section—

“Interest on rates
paid in error.

9A.—(1) Where any amount, in excess of such limit as may be prescribed, has been paid in error to a rating authority in respect of rates and the rating authority repays the amount the rating authority shall also pay to the person to whom the repayment is made interest on the amount at such rate as may be determined in accordance with subsection (3) below.

(2) No payment of interest under subsection (1) above shall be made after the end of the sixth year after that in respect of which the amount was paid in error unless application for repayment was made before that time.

(3) The rate of interest referred to in subsection (1) shall be such rate—

(a) as the Secretary of State may prescribe; or

(b) as is to be determined in such manner as he may prescribe,

and regulations made under this subsection may not make provision for a rate of interest in respect of any period before the regulations come into force.

(4) Subsections (1), (2) and (3) above shall apply to the repayment of the amount of an overpayment which a rating authority is required to repay under section 9(2) of this Act as they apply to the repayment of an amount referred to in the said subsection (1).

(5) This section shall not require the payment of interest in respect of any period before the commencement of paragraph 13 of Schedule 12 to the Local Government Finance Act 1988; and subsection (4) above shall not have effect in relation to any repayment in consequence of an appeal which was lodged before such commencement.”

Local Government, Planning and Land Act 1980 (c. 65)

14. In subsection (7) of section 2 of the Local Government, Planning and Land Act 1980 (manner in which local authorities are required to publish information) in paragraph (a) the words “or the Local Government (Scotland) Act 1973” shall be omitted and after that paragraph there shall be inserted the following paragraph—

“(aa) its dispatch with, or inclusion in—

(i) a demand note for payment of rates issued under section 237(1) of the Local Government (Scotland) Act 1947; or

(ii) a demand notice for payment of a community charge issued under paragraph 2 of Schedule 2 to the Abolition of Domestic Rates Etc. (Scotland) Act 1987.”

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Abolition of Domestic Rates Etc. (Scotland) Act 1987 (c. 47)

15.—(1) Section 2 of the Abolition of Domestic Rates Etc. (Scotland) Act 1987 (exclusion of domestic subjects from valuation roll) shall be amended as follows.

(2) After subsection (2) there shall be inserted the following subsection—

“(2A) Where, after 1st April 1989 by virtue of regulations made under subsection (4) below, any lands and heritages or any parts of lands and heritages—

(a) cease to be domestic subjects, they shall be entered in the valuation roll;

(b) become domestic subjects, any entry in the valuation roll in respect of such lands and heritages shall be deleted,

with effect from such date as may be prescribed by such regulations.”

(3) For subsection (4) of that section there shall be substituted the following subsection—

“(4) The Secretary of State may vary the definition of domestic subjects in subsection (3) above by including or excluding such lands and heritages or parts thereof or class or classes of lands and heritages or parts thereof as may be prescribed.”

16.—(1) Section 3 of that Act (non-domestic rates) shall be amended as follows.

(2) In paragraph (b) of subsection (4) after the word “earlier” there shall be inserted the words “or such lesser figure as may be specified in (or calculated in a manner specified in) an order made by the Treasury in respect of the financial year in respect of which the calculation is to be made”.

(3) After subsection (4) there shall be added the following subsection—

“(4A) For the purposes of paragraph (b) of subsection (4) above, where the base month for the retail prices index for September of the financial year which precedes that preceding the year concerned (the first year) differs from that for the index for September of the year which precedes the year concerned (the second year), the Secretary of State may substitute for the retail prices index for September of the first year the figure which he calculates would have been that index if the base month for that index had been the same as the base month for the index for September of the second year.”

(4) In subsection (5)—

(a) after the word “section” where it first occurs there shall be inserted the following paragraph—

“(za) in subsection (4A) above, the base month for the retail prices index for September of a particular year is the month for which the retail prices index is taken to be 100 and by reference to which the index for the September in question is calculated;”;

(b) for paragraph (b) there shall be substituted the following paragraph—

“(b) references to the retail prices index are references to the general index of retail prices (for all items) published by the Department of Employment; and if that index is not published for a month for which it is relevant for the purposes of this section, the references shall be construed as references to any substituted index or index figures published by that Department;”.

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(5) After subsection (10) there shall be added the following subsection—

“(11) An order made under paragraph (b) of subsection (4) above shall be made by statutory instrument; but such an order in its application to a particular financial year (including an order amending or revoking another) shall not be effective unless it is approved by resolution of the Commons House of Parliament before—

- (a) regulations have been made under subsection (2) above prescribing a maximum non-domestic rate in relation to any local authority in respect of that financial year; and
- (b) the first order made by the Secretary of State, in respect of that year, under paragraph 2(1) of Schedule 4 to this Act has been approved by a resolution of that House.”

17.—(1) Section 5 of that Act (statutory and other references to rateable values etc.) shall be amended as follows.

(2) In subsection (3) for the words “Where in any enactment” there shall be substituted the words “Subject to subsection (3A) below, where in any enactment (including an enactment contained in a subordinate instrument)”.

(3) After the said subsection (3) there shall be inserted the following subsections—

“(3A) Where in any enactment (including an enactment contained in a subordinate instrument or an enactment which falls to be construed in accordance with subsection (3) above) there is a reference to a rate or rateable value or to any factor connected with rating, or valuation for rating, the Secretary of State may make regulations providing that the reference shall instead be such as is prescribed.

(3B) Regulations may provide as mentioned in subsection (3A) above—

- (a) as regards such enactment, or enactments of such description, as may be prescribed;
- (b) in such way as the Secretary of State thinks fit (whether by amending enactments or otherwise).”

18.—(1) Section 8 of that Act (liability for personal community charge) shall be amended as follows.

(2) In subsection (1) for the words “aged 18 or over who is solely or mainly resident in the area of a local authority in any financial year shall be liable to pay” there shall be substituted the words “who is, at any time in a financial year—

- (a) aged 18 or over;
 - (b) solely or mainly resident in the area of a local authority; and
 - (c) not exempt from liability under subsection (8) below,
- shall be liable to pay, in respect of that time.”

(3) For subsections (2) and (3) of that section there shall be substituted the following subsection—

“(2) Notwithstanding subsection (1) above and subsection (8) below, a person’s liability to pay the personal community charge in respect of any time in a financial year shall subsist until the date on which the deletion of the entry in the register in respect of such liability takes effect.”

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(4) After subsection (5) there shall be inserted the following subsection—

“(5A) The Secretary of State may, by regulations made under this subsection—

- (a) require such educational establishments as may be prescribed to supply, in such manner and at such time as may be prescribed, to every person undertaking or about to undertake a full time course of education provided by the establishment a certificate containing such particulars as may be prescribed;
- (b) require such educational establishments as may be prescribed to supply to the registration officer within such period (being not less than 21 days) as may be prescribed such information as the registration officer may reasonably require for the purposes of the exercise of his functions under this Act, being information which is in the possession or control of the establishment.”

(5) In subsection (6) after the word “of” where it first occurs there shall be inserted the words ““educational establishment,” ”.

(6) After subsection (6) there shall be inserted the following subsections—

“(6A) Subsections (4) and (5) above shall not apply to persons undertaking a full-time course of nursing education, but such a person shall, in respect of the period beginning when he undertakes the course and ending when he ceases to do so, be liable for only such percentage as may be prescribed of the amount of the personal community charge for which he would otherwise be liable.

(6B) The Secretary of State may, by regulations made under this subsection—

- (a) require such bodies as may be prescribed to supply, in such manner and at such time as may be prescribed, to every person undertaking or about to undertake a full time course of nursing education a certificate containing such particulars as may be prescribed; and
- (b) require such bodies as may be prescribed to supply to the registration officer within such period (being not less than 21 days) as may be prescribed such information as the registration officer may reasonably require for the purposes of the exercise of his functions under this Act, being information which is in the possession or control of the body.

(6C) References in subsections (6A) and (6B) above to a full-time course of nursing education, a person undertaking such a course and to ceasing to undertake such a course shall be construed in such manner as may be prescribed.”

(7) In subsection (7)—

- (a) after the word “shall” there shall be inserted “, notwithstanding that they are not otherwise liable under this Act for a personal community charge,”; and
- (b) for the word “each” where it second occurs there shall be substituted the word “either”.

19.—(1) Section 10 of that Act (liability for and calculation of standard community charge) shall be amended as follows.

(2) In subsection (3) after the word “factors” there shall be inserted the words “(including factors relating to persons of prescribed descriptions)”.

(3) In subsection (4) for the words from “and that liability” to the end there shall be substituted the words “and where at any time two or more people are liable to pay the standard community charge under this subsection they shall be jointly and severally liable to pay the charge.”

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(4) For subsection (8) there shall be substituted the following subsections—

“(8) Subject to subsections (8B) and (9) below, the standard community charge shall not be payable in respect of relevant premises in respect of whichever is the shorter of—

- (a) the period for which the premises are unoccupied and unfurnished;
- (b) a period of three months or such longer period as the levying authority may determine;

and the levying authority may determine that different periods shall have effect for different premises or different classes of premises.

(8A) For the purposes of subsection (8) above ‘relevant premises’ are premises to which this section applies, being premises—

- (a) which are unoccupied and unfurnished; and
- (b) as regards which notice is given to the levying authority by a person liable to pay the standard community charge in respect of the premises that they are unoccupied and unfurnished.

(8B) Subsection (8) above shall have effect in respect of any relevant premises only once during any period (whether it falls in one or more than one financial year) in respect of which the standard community charge is, or would but for that subsection be, payable in respect of the premises.

(8C) Before making a determination under paragraph (b) of subsection (8) above a levying authority which is a regional council shall consult the district council for the district in which the premises are situated.”

(5) In subsection (9) of that section for the words “that subsection” there shall be substituted the words “subsection (8A) above”.

(6) In paragraph (b) of subsection (10) after the word “charge” there shall be inserted the words “which would, if the premises were for the whole of that financial year premises to which this section applies and were not, at any time in that year, relevant premises for the purposes of subsection (8) above, be”.

(7) After the said subsection (10) there shall be inserted the following subsection—

“(10A) Where at any time premises are let, sub-let or permitted to be occupied as mentioned in subsection (10) above to more than one person, only one standard community charge contribution in respect of the standard community charge payable in respect of any financial year shall be recovered in respect of the period of such lease, sub-lease or permission to occupy and such persons shall be jointly and severally liable to pay the contribution.”

20.—(1) Section 11 of that Act (liability for and calculation of collective community charge) shall be amended as follows.

(2) In subsection (3) at the beginning there shall be inserted the words “Subject to subsection (3A) below,”.

(3) After subsection (3) there shall be inserted the following subsection—

“(3A) The registration officer shall not designate premises—

- (a) which are of a description prescribed for the purposes of this paragraph; or
- (b) which are or form part of land designated by the Secretary of State under paragraph 11 of Schedule 1A to this Act.”

(4) After subsection (4) there shall be inserted the following subsection—

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"(4A) A designation made by the registration officer under subsection (3) above shall be revoked by him—

- (a) where, in his opinion, the premises have ceased to be premises which may be designated under that subsection;
- (b) if the premises become premises which are of a description prescribed for the purposes of paragraph (a) of subsection (3A) above;
- (c) if the premises become premises which are designated by the Secretary of State under paragraph 11 of Schedule 1A to this Act."

(5) In subsection (5) for the words from "and that liability" to the end there shall be substituted the words "and where at any time two or more people are liable to pay the collective community charge under this subsection they shall be jointly and severally liable to pay the charge."

(6) In subsection (7)—

- (a) after the words "shall be" there shall be inserted the words "the amount which is"; and
- (b) at the end there shall be added the words "less the relevant proportion, being 5 per cent. or such other proportion as may be prescribed".

(7) In sub-paragraph (a) of subsection (10) for the words "section 8(8)(c) of" there shall be substituted the words "paragraph 12 of Schedule 1A to".

(8) In subsection (11)—

- (a) after the word "person" where it first occurs there shall be inserted the words "who, at any time in a financial year";
- (b) in paragraph (a) for the words "who is, at any time in a financial year," there shall be substituted the word "is";
- (c) in each of paragraphs (b) and (c) the word "who" shall be omitted; and
- (d) in paragraph (c) for the words "section 8(8)(c) of" there shall be substituted the words "paragraph 12 of Schedule 1A to".

21.—After section 11 of that Act there shall be inserted the following new sections—

"Apportionment of amounts to be paid

Apportionment,
etc.

11A—(1) Where a person is liable to pay a community charge in respect only of part of a financial year, the amount for which he is liable shall be calculated by apportionment on a daily basis, and the period in respect of which he is liable shall be referred to in this section as the apportioned period.

(2) Subsections (3) to (5) below shall have effect for the purposes of determining—

- (a) where a person is liable to pay a community charge in respect only of part of a financial year, the first or, as the case may be, last day of an apportioned period; and
- (b) as regards the standard or collective community charge contribution, the day on which the requirement to pay such a contribution commences or, as the case may be, ends.

(3) As regards any community charge imposed by a local authority—

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- (a) the day on which a person becomes liable to pay that charge shall be the first day of an apportioned period; and
- (b) the day on which a person ceases to be liable to pay that charge shall not be included in an apportioned period; and
- (c) in respect of the personal community charge imposed by the authority, as regards any day on which a person both becomes and ceases to be liable to pay that charge, paragraph (b) above shall apply and paragraph (a) shall not.

(4) As regards the standard community charge contribution—

- (a) any day on which a person starts to lease or sub-lease or is first permitted to occupy any premises to which section 10 of this Act applies is a day on which the person is required to pay a contribution; and
- (b) any day on which a person ceases to lease or sub-lease or ceases to be permitted to occupy such premises is a day on which he is not so required.

(5) As regards the collective community charge contribution—

- (a) any day on which a person becomes solely or mainly resident in premises to which section 11 of this Act applies is a day on which he is required to pay the contribution; and
- (b) any day on which he ceases to be so resident is a day on which he is not so required.

Estimates

Estimate of amount produced in districts.

11B.—(1) In relation to each financial year a regional council shall estimate the amount produced by each of the district community charges for that year in each district in their region as that amount falls to be ascertained in pursuance of regulations made under paragraph 6 of Schedule 2 to this Act.

(2) For the purposes of making the estimate mentioned in subsection (1) above, it shall be assumed that in respect of the financial year concerned both the regional council and the district council determine—

- (a) a personal community charge of £1, or such other amount as may be prescribed; and
- (b) a standard community charge multiplier of 2, or such other number as may be prescribed.

(3) The regional council shall, before such date as may be prescribed in relation to each financial year, notify the council of each district in their region of the estimate made under subsection (1) above in relation to that district for that financial year.

(4) In this section "district community charges" has the same meaning as in paragraph 1 of Schedule 2 to this Act."

22.—(1) Section 13 of that Act (community charges register) shall be amended as follows.

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(2) In subsection (1) for paragraphs (a), (b) and (c) there shall be substituted the following paragraphs—

- “(a) the name of every person liable to pay any of the community charges in the registration area;
- (b) in the case of a person liable to pay the personal community charge, the address of his sole or main residence;
- (c) in the case of a person liable to pay the standard or collective community charge, his address and the address of the premises in the registration area in respect of which that charge is payable;
- (cc) in the case of premises in respect of which the collective community charge is payable, the collective community charge multiplier determined for the time being in respect of those premises;”.

(3) In paragraph (e) of that subsection for the word “these” there shall be substituted the word “the”.

23. In section 14(2) of that Act (notice of registration)—

- (a) for the words “person whose name is entered in the register” there shall be substituted the words “registered person”;
- (b) for the words “a notice” there shall be substituted the words “such notice”;
- (c) at the end of paragraph (b) the word “and” shall be omitted; and
- (d) after paragraph (c) there shall be added the following paragraphs—
 - “(d) his right to apply to the registration officer under section 20A(3) of this Act for a determination that the entry relating to him be a special entry within the meaning of that section;
 - (e) such other matters as may be prescribed”.

24.—(1) Section 15 of that Act (amendment of community charges register) shall be amended as follows.

(2) In subsection (3)—

- (a) after the word “entry” where it second occurs there shall be inserted the words “including a note of the date upon which the record is made”; and
- (b) for the words “the date on which it was made” there shall be substituted the words “that date”.

(3) For subsection (4) there shall be substituted the following subsection—

“(4) The provisions of section 20 of this Act relating to the inspection of the register and the obtaining of copies of entries in the register (including such provisions as are prescribed under that section) shall apply, subject to such modifications as may be prescribed, to the inspection or obtaining of copies of a record made under subsection (3) above as they apply to the inspection of or obtaining copies of entries in the register.”

(4) In subsection (5)—

- (a) for the words “any amendment to the register which might affect that person, but” there shall be substituted the words “or amending any entry in the register which might affect that person, but, except in the case of an amendment such as is mentioned in subsection (6) below,”;
- (b) for paragraphs (a) and (b) there shall be substituted the following paragraphs—
 - “(a) a copy of the entry or (as the case may be) the entry as amended; or
 - (b) where the amendment consists of the deletion of an entry, notification of such deletion”;

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(c) for paragraph (i) there shall be substituted the following paragraph—

“(i) the effect of the entry or (as the case may be) of the amendment to the entry in the register;”.

(d) at the end there shall be added the following paragraph—

“(iv) in the case of a new entry, or an amendment of an entry which consists in whole or in part in a change of the address of the sole or main residence of the registered person, his right to apply to the registration officer under section 20A(3) of this Act for a determination that the entry relating to him be a special entry within the meaning of that section”.

(5) After subsection (5) there shall be inserted the following subsections—

“(6) Where an amendment requires to be made to an entry in the register in consequence of the death of a registered person, the registration officer shall send to the executors of the deceased notice of the fact that he has, with effect from the date of the deceased's death, deleted the entry in the register relating to the deceased.

(7) Except where the context otherwise requires, any reference in this Act to the amendment of the register or of any entry in the register shall include a reference to the deletion of such an entry.”

25.—(1) Section 16 of that Act (registration appeals) shall be amended as follows.

(2) In subsection (1) for the words “A person who is registered in the register as being liable to pay any of the community charges” there shall be substituted the words “A registered person”.

(3) In paragraph (a) of that subsection for the words “in respect of his liability to pay any of the community charges” there shall be substituted the words “in relation to him”.

(4) In paragraph (b) of that subsection for the word “any” where it first occurs there shall be substituted the word “the”.

26. In section 17 of that Act (duties in relation to registration) in subsection (6) after the words ““responsible person”” there shall be inserted the words “in relation to any premises”.

27. In section 18 of that Act (obtaining of information from individuals) after subsection (2) there shall be inserted the following subsection—

“(2A) Where a registered person dies his executors shall notify the registration officer of the date of the person's death—

(a) in the case of executors nominate, not later than one month after that date;

(b) in the case of executors dative, not later than one month after the date of their appointment.”

28. After the said section 18 there shall be inserted the following section—

“Obtaining of
information
generally.

18A.—(1) The registration officer may require any person whom he reasonably believes is, has been or is about to be resident in the registration area to supply to him such information—

(a) as the registration officer may reasonably require for the purposes of the exercise of his functions under this Act; and

(b) as is in the possession or control of such person.

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(2) A person required to supply any information in pursuance of subsection (1) above shall supply the information within such period, not being less than 21 days, as the registration officer may require.

(3) Subsections (10) to (12) of section 17 of this Act shall have effect for the purposes of this section as they have for the purposes of that section; and for the purposes of this section any reference in those subsections—

- (a) to a responsible person shall be construed as a reference to a person required to supply information under subsection (1) above;
- (b) to the prescribed period shall be construed as a reference to the period mentioned in subsection (2) above; and
- (c) to a requirement under subsection (5) shall be construed as a reference to a requirement under subsection (1) above."

29.—(1) Section 20 of that Act (inspection of register) shall be amended as follows.

(2) In paragraph (a) of subsection (2)—

- (a) at the beginning of the paragraph there shall be inserted the words "subject to section 20A of this Act and with effect from the prescribed date"; and
- (b) for sub-paragraphs (i), (ii) and (iii) there shall be substituted the following paragraphs—

"(i) the addresses of premises in the registration area;

(ii) the name of any person appearing in an entry relating to such premises (but not so as to enable him to ascertain whether that person resides at the address of such premises); and

(iii) the collective community charge multiplier determined for the time being in relation to any premises (other than premises of such class or classes as may be prescribed) in respect of which a collective community charge is payable.

Provided that no new entry, or amendment of an entry which consists in whole or in part in a change of the address of the sole or main residence of a registered person, shall be available for inspection under this paragraph until after the end of a period of 28 days starting with the date of the notice relating to the entry under section 15(5) of this Act."

(3) In paragraph (c) of that subsection at the end there shall be added the words "other than any entry which is a special entry within the meaning of section 20A of this Act".

(4) After paragraph (c) of that subsection there shall be inserted the following paragraph—

"(d) any such other person as may be prescribed shall be entitled to inspect the register to such extent and for such purposes as may be prescribed."

(5) After subsection (3) there shall be inserted the following subsections—

"(3A) Without prejudice to subsection (3) above, the register shall be available for inspection to the extent permitted by subsections (1) and (2) above in such circumstances, subject to such restrictions and in such other places in the registration area as may be prescribed.

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(3B) In relation to as much of the register as is kept otherwise than in documentary form, a right of inspection conferred by this section is a right to inspect the information in the register in legible form."

(6) For subsections (4) and (5) there shall be substituted the following subsections—

"(4) The Secretary of State may, by regulations, require the registration officer to make such extracts of the register as may be prescribed, containing the information which is available at the date on which the extract is made for inspection by members of the public under subsection (2)(a) above.

(5) Regulations made under subsection (4) above may prescribe—

- (a) such date or dates in each financial year on which an extract is to be made;
- (b) such requirements as to publication of the effect of such regulations as the Secretary of State thinks fit; and
- (c) that the regional or islands council shall make the extract available for inspection by members of the public to such extent and at such times and places as may be prescribed."

30. After the said section 20 there shall be inserted the following section—

"Exemption from inspection.

20A.—(1) Where this section applies to a registered person the registration officer shall, as soon as it is reasonably practicable for him to do so, exclude from the right of inspection by a member of the public under section 20(2)(a) of this Act the entry in the register relating to that person, and in this section such an entry is referred to as a "special entry".

(2) This section applies to any registered person—

- (a) who has made an application under subsection (3) below and whose application has not been finally determined;
- (b) in respect of whom the registration officer, or the sheriff on an appeal under subsection (6) below, has determined that the entry relating to him should be a special entry,

until, in a case to which paragraph (a) applies, on the final determination of the application it is refused or, in a case to which paragraph (b) applies, the determination that the entry be a special entry is revoked or, in any case, the registered person notifies the registration officer that he no longer desires that the entry relating to him be a special entry.

(3) Any registered person who falls within such class or classes of person as the Secretary of State may prescribe may make an application to the registration officer for a determination that the entry relating to that person be a special entry.

(4) An application under subsection (3) above—

- (a) shall state the reasons why it is desired that the entry be a special entry;
- (b) shall be accompanied by any relevant documents or evidence;

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(c) shall be dealt with by the registration officer in such manner and within such period as may be prescribed, and no such application shall be made after an application which has been refused until the end of such period as may be prescribed without the prior approval of the registration officer.

(5) If the registration officer is satisfied that the person making the application falls within subsection (3) above he shall grant the application and determine that the entry relating to that person be a special entry.

(6) If the registration officer refuses an application the person making the application may appeal against the refusal to the sheriff of any sheriffdom which wholly or partly falls within the registration area; and the sheriff may determine that the entry be a special entry or may refuse the application.

(7) Where it appears to the registration officer that a person to whom a special entry relates has ceased to fall within subsection (3) above he shall, subject to subsection (8) below, revoke the determination that the entry be a special entry.

(8) Where it appears to the registration officer as mentioned in subsection (7) above, he shall notify the person to whom the entry relates that he is required to revoke the determination, and the person—

(a) may apply to the registration officer in such manner and within such period as may be prescribed not to revoke the determination and the registration officer shall determine the application in such manner and within such period as may be prescribed; and

(b) may appeal against a determination by the registration officer under paragraph (a) above to the sheriff of any sheriffdom which wholly or partly falls within the registration area.

(9) Subject to subsection (10) below, rules of court may provide for the procedure to be followed in any proceedings in the Court of Session or before the sheriff arising from this section.

(10) An appeal under subsection (6) or (8)(b) above and any appeal under section 29(2) of this Act against a decision of the sheriff under this section shall be heard and determined in private unless the sheriff or, as the case may be, the Court of Session otherwise directs.

(11) For the purposes of this section an application is finally determined if it has been refused by the registration officer and—

(a) the time limit for appealing against the refusal has expired without an appeal having been made; or

(b) where an appeal is made all proceedings arising from the appeal (including any proceedings on an appeal under section 29(2) of this Act) have been concluded."

31. After section 20A there shall be inserted the following section—

"Information
concerning Social
Security.

20B.—(1) Regulations under this section may prescribe that the Secretary of State may, notwithstanding any duty of confidentiality, supply relevant information to the registration officer.

(2) For the purposes of this section, information is relevant information if— SCH. 12

- (a) it was obtained by the Secretary of State in exercising his functions under the Social Security Act 1986;
- (b) the Secretary of State believes it would be useful to the registration officer in exercising his functions under this Act; and
- (c) it falls within a prescribed description."

32.—(1) Section 24 of that Act (duty to provide for rebates from community charges) shall be amended as follows.

(2) In paragraph (a)—

(i) for the words "local authorities" there shall be substituted the words "levying authorities"; and

(ii) for the words from "community charges" to "this Act)" there shall be substituted the words "personal community charges and collective community charge contributions".

(3) In paragraph (b) for the words "local authority in respect of each year" there shall be substituted the words "levying authority".

(4) That section as so amended shall be subsection (1) and there shall be added the following subsection—

"(2) This section shall have effect only in respect of the financial year 1989–90."

33. In section 26(1) of that Act (interpretation)—

(a) after the definition of "net annual value" there shall be inserted the following—

"'new entry' in relation to the register, means the making of an entry in respect of a person's liability for a community charge, there having been no such entry in the register in respect of that liability immediately before its making"; and

(b) after the definition of "register" there shall be inserted the following—

"'registered person' means a person who is registered in the register as being liable to pay any of the community charges, and cognate expressions shall be construed accordingly;"

34. In section 30 of that Act (Crown application) in subsection (3) for the words "this subsection does not render the Crown liable to these charges" there shall be substituted the words "where, in relation to any premises, the Crown would, but for this subsection, be liable to pay any such charge, the charge shall not be payable in respect of the premises".

35. After Schedule 1 to that Act there shall be inserted the following Schedule—

"SCHEDULE 1A

PERSONAL COMMUNITY CHARGE: EXEMPTION

Persons in detention

1.—(1) A person is exempt if—

- (a) he is detained in a prison, a hospital or any other place by virtue of an order of a court to which sub-paragraph (2) below applies;
- (b) he is detained under paragraph 2 of Schedule 3 to the Immigration Act 1971 (deportation);

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(c) he is detained under Part V or section 69, 70, 71 or 118 of the Mental Health (Scotland) Act 1984; or

(d) he is detained under a warrant issued under the Repatriation of Prisoners Act 1984.

(2) This sub-paragraph applies to the following courts—

(a) a court in the United Kingdom; and

(b) a Standing Civilian Court established under the Armed Forces Act 1976.

(3) If a person is temporarily discharged under section 22 of the Prisons (Scotland) Act 1952, or temporarily released under rules under section 35(6) of that Act, for the purposes of sub-paragraph (1) above he shall be treated as detained.

(4) Sub-paragraph (1) above does not apply where the person is detained only under section 407 of the Criminal Procedure (Scotland) Act 1975, for non-payment of a fine.

(5) In sub-paragraph (1) above, "order" includes a sentence, direction, warrant or other means of giving effect to the decision of the court concerned.

(6) The Secretary of State may by regulations provide that a person is exempt if—

(a) he is imprisoned, detained or in custody under the Army Act 1955, the Air Force Act 1955 or the Naval Discipline Act 1957; and

(b) such conditions as may be prescribed are fulfilled.

Visiting forces

2.—(1) A person is exempt if he has a relevant association with a visiting force.

(2) A visiting force, in relation to any particular time, is any body, contingent or detachment of the forces of a country to which any provision in Part I of the Visiting Forces Act 1952 applies at that time.

(3) A person has, at any particular time, a relevant association with a visiting force if he has at that time such an association within the meaning of that Part.

International headquarters and defence organisations

3.—(1) A person is exempt if he is a member of a headquarters or a dependant of such a member.

(2) A headquarters, in relation to any particular time, is a headquarters or organisation designated at that time by an Order in Council under section 1 of the International Headquarters and Defence Organisations Act 1964.

(3) A person is, at any particular time, a member of a headquarters if he is at that time such a member within the meaning of the Schedule to that Act.

(4) A person is, at any particular time, a dependant of such a member if he is at that time such a dependant within the meaning of that Schedule.

The severely mentally impaired

4.—(1) A person is exempt if—

(a) he fulfils one or more of the conditions mentioned in sub-paragraph (2) below;

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- (b) he is severely mentally impaired; and
 - (c) he is stated to be severely mentally impaired in a certificate of a registered medical practitioner.
- (2) The conditions are that—
- (a) he is entitled to an invalidity pension under section 15 of the Social Security Act 1975;
 - (b) he is entitled to a severe disablement allowance under section 36 of that Act;
 - (c) he is of pensionable age within the meaning given by section 27 of that Act.
- (3) A person is severely mentally impaired if he is suffering from—
- (a) a state of arrested or incomplete development of mind which involves severe impairment of intelligence and social functioning; or
 - (b) an injury to the brain causing severe impairment of intelligence and social functioning which appears to be permanent.
- (4) The Secretary of State may by regulations amend sub-paragraph (2) above as it has effect for the time being (whether by adding, deleting or amending conditions, or by any combination of those methods).
- (5) The Secretary of State may by regulations substitute another definition for the definition of severe mental impairment for the time being effective for the purpose of this paragraph.

Children

5. A person is exempt if another person is entitled to child benefit in respect of him.

Students

- 6.—(1) A person is exempt if he is undertaking a full-time course of education and he is resident during term time in England, Wales or Northern Ireland for the purpose of undertaking the course.
- (2) Regulations made under this paragraph—
- (a) shall make provision for the purpose of determining for the purposes of this paragraph whether a person is undertaking a full-time course of education; and
 - (b) shall prescribe the meaning of “term time” for the purposes of this paragraph.

Members of religious communities

- 7.—(1) A person is exempt if—
- (a) he is a member of a relevant religious community; and
 - (b) he has no income or capital of his own and is dependent on the community concerned for his material needs.
- (2) A relevant religious community is a religious community whose principal occupation—
- (a) is prayer, contemplation, the relief of suffering, education, or any prescribed occupation; or
 - (b) consists of two or more of the occupations mentioned in paragraph (a) above.

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(3) A prescribed occupation is such occupation as may for the time being be prescribed for the purposes of this paragraph.

(4) In construing sub-paragraph (1)(b) above, income by way of pension in respect of a former employment is to be ignored.

Hospital patients

8.—(1) A person is exempt if he is a patient who is solely or mainly resident in a hospital.

(2) "Hospital" means a health service hospital within the meaning of section 108(1) of the National Health Service (Scotland) Act 1978.

(3) The Secretary of State may by regulations substitute another definition for the definition of hospital for the time being effective for the purposes of this paragraph.

Patients in homes

9.—(1) A person is exempt if—

- (a) he is solely or mainly resident in a residential care home, nursing home, private hospital or hostel; and
- (b) he is receiving care or treatment (or both) there.

(2) A residential care home is—

- (a) a residential establishment provided and maintained by a local authority in respect of the functions under section 27 of the National Health Service (Scotland) Act 1947 transferred to them by section 1(4)(c) of the Social Work (Scotland) Act 1968; or
- (b) a residential establishment to which Part IV of the said Act of 1968 applies; or
- (c) residential accommodation provided and maintained by a local authority under section 7 of the Mental Health (Scotland) Act 1984,

where the sole or main function of the establishment or accommodation is to provide personal care or support, combined with board, to persons who are solely or mainly resident in the establishment or accommodation.

(3) A nursing home is—

- (a) a nursing home within the meaning of section 10(2) of the Nursing Homes Registration (Scotland) Act 1938 in respect of which a person is registered; or
- (b) any premises in respect of which an exemption has been granted under section 6 or 7 of that Act.

(4) A private hospital is a private hospital within the meaning of section 12 of the Mental Health (Scotland) Act 1984 which is registered under that Act.

(5) A hostel is an establishment in which residential accommodation is provided and which is—

- (a) managed by a housing association registered for the time being in a register maintained under section 3 of the Housing Associations Act 1985; or
- (b) operated other than on a commercial basis and in respect of which funds are provided wholly or in part by a Government department or agency or a local authority; or

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(c) managed by a voluntary organisation,
where the sole or main function of the establishment is to provide personal care or support, combined with board, to persons who are solely or mainly resident in the establishment.

(6) The Secretary of State may by regulations made under this paragraph substitute another definition for any definition of a residential care home, nursing home, private hospital or hostel for the time being effective for the purpose of this paragraph.

(7) In this paragraph—

“personal care” includes the provision of appropriate help with physical and social needs;

“support” means counselling or other help provided as part of a planned programme of care; and

“voluntary organisation” has the meaning given by section 94(1) of the Social Work (Scotland) Act 1968.

Care workers

10.—(1) A person is exempt if—

(a) he is employed to provide care or support (or both) to another person or other persons; and

(b) such conditions as may be prescribed are fulfilled.

(2) Without prejudice to the generality of sub-paragraph (1)(b) above the conditions may—

(a) require the person's employer to be a charity or fulfil some other description;

(b) relate to the period for which he is employed or other factors concerning his employment;

(c) require his income for a prescribed period not to exceed a prescribed amount;

(d) require his capital not to exceed a prescribed amount;

(e) require him to be resident in prescribed premises;

(f) require him not to exceed a prescribed age; and

(g) require the other person or persons to fulfill a prescribed description (whether relating to age, disablement or otherwise).

Residents of certain Crown land

11.—(1) A person is exempt if he is solely or mainly resident in Crown land which is designated under this paragraph.

(2) The Secretary of State may designate land under this paragraph if at the time of designation the first and second conditions are fulfilled.

(3) The first condition is that it is land in which there is any interest belonging to Her Majesty in right of the Crown or to a Government department or to a Minister of the Crown or held on behalf of Her Majesty for the purposes of a Government department.

(4) The second condition is that in the Secretary of State's opinion the land is used wholly or mainly as the sole or main residence of individuals, and in his opinion most or all of them—

(a) reside there for short periods; or

(b) should in the interests of national security not be registered as subject to a personal community charge.

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(5) The Secretary of State—

- (a) at any time may, and
- (b) if the first or second condition ceases to be fulfilled shall, revoke a designation under this paragraph.

(6) A designation under this paragraph shall take effect at the beginning of the day following that on which it was made, and shall cease to have effect at the end of the day (if any) on which it is revoked.

Residents of certain other premises

12. A person other than a person such as is mentioned in section 8(4) or (6A) of this Act is exempt if he is solely or mainly resident in premises—

- (a) in respect of which the collective community charge is payable;
- (b) which are premises of a description prescribed for the purposes of paragraph (a) of section 11(3A) of this Act; or
- (c) which are subject to non-domestic rates.

Persons without fixed abode

13.—(1) A person is exempt in relation to any day if—

- (a) he has no fixed abode in Scotland or elsewhere; and
- (b) at the end of the day the place of his sole or main residence does not consist of a building, caravan or residential boat.

(2) If a person has no fixed abode (in Scotland or elsewhere) he shall be treated as having his sole or main residence in the place where he is at any particular time.

(3) Whether anything is a caravan shall be construed in accordance with Part I of the Caravan Sites and Control of Development Act 1960.

(4) In this paragraph—

- (a) a building includes a chalet or hut; and
- (b) a residential boat is a boat which is designed or adapted for human habitation."

36.—(1) Schedule 2 to that Act (levy, collection, payment and recovery of community charges) shall be amended as follows.

(2) In paragraph 2(1) (demand notices) at the beginning there shall be inserted—

"Subject to paragraph 2A below,".

(3) After paragraph 2 there shall be inserted the following paragraph—

"2A. Where a person's liability to pay a community charge arises only by virtue of section 8(7) of this Act (joint and several liability)—

- (a) the levying authority shall not issue a demand notice before the date prescribed under paragraph 2(1) above; but
- (b) they shall issue such a notice at such time as it appears to them that they will be unable to recover payment of the community charge from any other person who is liable to pay the charge."

(4) In paragraph 3 (appeals against demand notices) in sub-paragraph (a) after the word "against" there shall be inserted the words—

"(i) where the liability to pay the community charge is stated to be by virtue of section 8(7) of this Act (joint and several liability), such liability; and

(ii) in every case,".

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(5) In paragraph 4 (payment of community charges)—

(a) in sub-paragraph (3) at the beginning there shall be inserted the words "Subject to sub-paragraph (8) below,";

(b) in sub-paragraph (7)—

(i) after the words "amount due" where they first occur there shall be inserted the words "in respect of any community charge (including any amount due in respect of the corresponding community water charge)"; and

(ii) for the words "rebate under or by virtue of section 24 of this Act from that amount or instalment" there shall be substituted the words "reduction in that amount or instalment in consequence of any rebate or community charge benefit in pursuance of Part II of the Social Security Act 1986";

(c) in sub-paragraph (8) at the end there shall be added the words "or on such other day in that month as the levying authority may determine";

(d) after sub-paragraph (10) there shall be inserted the following sub-paragraphs—

"(11) Where rebates in respect of collective community charge contributions take the form of vouchers issued by a levying authority to persons liable to pay such contributions, the persons liable to pay the collective community charge shall be entitled—

(a) to use any such vouchers collected by them in respect of part of such contributions to satisfy as much of their liability to pay the charge as represents the value of such vouchers; or

(b) to obtain from the levying authority such sum as represents the value of such vouchers.

(12) Where community charge benefits in respect of contribution periods (within the meaning of section 20(11) of the Social Security Act 1986) take the form of vouchers issued by a levying authority to persons liable to pay collective community charge contributions in respect of a contribution period, the persons liable to pay the collective community charge shall be entitled—

(a) to use any such vouchers collected by them in respect of part of such contributions to satisfy as much of their liability to pay the charge as represents the value of such vouchers; or

(b) to obtain from the levying authority such sum as represents the value of such vouchers."

(6) After the said paragraph 4 there shall be inserted the following paragraphs—

"Discounts and incentives

4A.—(1) Where a person enters into an agreement with a levying authority under sub-paragraph (10) of paragraph 4 above for payment of a community charge and the levying authority are satisfied that it would be of greater financial benefit to them if the payment were made under such an agreement than if it were made in accordance with sub-paragraphs (1) to (9) of that paragraph they may reduce the amount which the person is liable to pay by not more than such limit as is prescribed.

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(2) The limit mentioned in sub-paragraph (1) above may be calculated by reference to such percentage as the Secretary of State may prescribe.

4B.—(1) Subject to sub-paragraph (2) below, a levying authority may, for the purpose of encouraging persons to enter into agreements under paragraph 4(10) above and without prejudice to the making of such reductions as are mentioned in paragraph 4A above, offer inducements of a financial or other nature (including giving persons the opportunity either to take a cash benefit or to apply the value of such benefit to the purchase of chances in a local lottery within the meaning of section 6(1) of the Lotteries and Amusements Act 1976).

(2) In any financial year the aggregate cost of any inducements offered under sub-paragraph (1) above taken with the cost of any reductions made under paragraph 4A shall not exceed the savings which the levying authority estimates will accrue from agreements made by them under paragraph 4(10) above."

(7) In paragraph 5 (arrangements with housing bodies)—

- (a) in sub-paragraph (1) after the word "under" there shall be inserted the words "or by virtue of";
- (b) at the end of sub-paragraph (1) there shall be added the words "or of any of the authority's responsibilities as regards rebates or community charge benefit in pursuance of Part II of the Social Security Act 1986"; and

(c) at the end there shall be added the following sub-paragraph—

"(7) No document issued by a housing body in pursuance of an arrangement made under this paragraph to a person liable to pay a community charge or any instalment thereof shall contain or refer to arrangements for any payment other than—

- (a) the payment of any community charge or instalment;
- (b) the payment of any community water charge; or
- (c) the payment of any rebate or community charge benefit in pursuance of Part II of the Social Security Act 1986."

(8) In paragraph 6 (accounting for district community charges)—

- (a) for sub-paragraph (3) there shall be substituted the following sub-paragraph—

"(3) The Secretary of State may prescribe what deductions are to be made in estimating and ascertaining the amount produced by each of the regional and district community charges levied by a regional council."

- (b) in sub-paragraph (4) after the words "community charge" there shall be inserted the words "and community water charge"; and
- (c) in sub-paragraph (6) for the words "'district community charges' has" there shall be substituted the words "'regional community charges' and 'district community charges' have".

(9) In paragraph 7 (recovery of arrears of community charges)—

- (a) in sub-paragraph (1) for the words "(4) to (6)" there shall be substituted the words "(5) and (6)";
- (b) in sub-paragraph (2)(a) after the word "application" where it first occurs there shall be inserted the words—

"(i) have each been issued with a demand notice and that in each case the time limit for appealing against a demand notice under paragraph 3 above has expired without an appeal being made or that in a case where an appeal has been made it has been finally determined in favour of the levying authority; and

(ii) ";

- (c) after sub-paragraph (2) there shall be inserted the following sub-paragraph—

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“(2A) In the application of sub-paragraph (2) above to the recovery of civil penalties under this Act or of any sum required to be paid under section 18(3) of this Act, for sub-paragraph (2)(a)(i) there shall be substituted the words—

“(i) have each had imposed upon them a civil penalty in pursuance of section 17(10) or (11) of this Act or are required to pay a sum of money under section 18(3) of this Act and that in each case any time limit for appealing against such imposition or requirement has expired without an appeal being made or, that in a case where such an appeal has been made, it has been finally determined in favour of the registration officer or, as the case may be, the levying authority.”

- (10) After the said paragraph 7 there shall be inserted the following paragraph—

“Deductions from income support

7A.—(1) Regulations made under this paragraph may provide that where a levying authority has obtained a summary warrant or a decree against a person (the debtor) in respect of arrears of community charges and the debtor is entitled to income support within the meaning of the Social Security Act 1986—

- (a) the levying authority may, without prejudice to their right to pursue any other means of recovering such arrears, apply to the Secretary of State asking him to deduct sums from any amounts payable to the debtor by way of income support in order to secure the payment of any outstanding sum which is or forms part of the amount in respect of which the summary warrant or decree was granted; and
- (b) the Secretary of State may deduct such sums and pay them to the authority towards satisfaction of any such outstanding sum.

(2) Regulations made under this paragraph may include—

- (a) provision allowing or requiring adjudication as regards an application and provision as to appeals and reviews;
- (b) a scheme containing provision as to the circumstances and manner in which and times at which sums are to be deducted and paid, provision about the calculation of such sums (which may include provision to secure that amounts payable to the debtor by way of income support do not fall below prescribed figures), and provision as to the circumstances in which the Secretary of State is to cease making deductions;
- (c) provision requiring the Secretary of State to notify the debtor, in a prescribed manner and at any prescribed time, of the total amount of sums deducted up to the time of the notification;
- (d) provision that, where the whole amount to which the application relates has been paid, the authority shall give notice of that fact to the Secretary of State.”

- (11) After paragraph 9 there shall be inserted the following—

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"Use of information"

10. The Secretary of State may prescribe that, in carrying out their functions under this Act, a levying authority, or a housing body exercising functions under paragraph 5 above, may use information which—

- (a) is obtained under any other enactment; and
- (b) does not fall within any prescribed description of information which cannot be used."

37. In Schedule 4 to that Act (revenue support grants) in paragraph 2(4) for the words "any amount produced under sub-paragraph (2) or (3)" there shall be substituted the words "the amount produced in relation to a local authority in pursuance of sub-paragraph (2)".

38. In Schedule 5 to that Act (water and sewerage charges) in paragraph 11 for the word "Schedule" there shall be substituted the words "Schedules 1A and".

PART III

ENGLAND AND WALES AND SCOTLAND

Commonwealth Secretariat Act 1966 (c. 10)

39.—(1) In paragraph 3 of the Schedule to the Commonwealth Secretariat Act 1966 for "the general rate" there shall be substituted "any non-domestic rate".

(2) In its application to England and Wales, this paragraph shall have effect for financial years beginning in or after 1990.

(3) In its application to Scotland, this paragraph shall have effect for financial years beginning in or after 1989.

International Organisations Act 1968 (c. 48)

40. In section 2(2) of the International Organisations Act 1968 after paragraph (a) there shall be inserted—

"(aa) the like exemption or relief from being subject to a community charge, or being liable to pay anything in respect of a community charge or anything by way of contribution in respect of a collective community charge, as in accordance with that Article is accorded to a diplomatic agent, and".

Tribunals and Inquiries Act 1971 (c. 62)

41. In Part I of Schedule 1 to the Tribunals and Inquiries Act 1971 (tribunals under direct supervision of Council on Tribunals) the following shall be inserted after paragraph 12—

"Local taxation. 12A. Valuation and community charge tribunals established by regulations under Schedule 11 to the Local Government Finance Act 1988."

Road Traffic Regulation Act 1984 (c. 27)

42.—(1) In section 55(2) and (4) of the Road Traffic Regulation Act 1984 (financial provisions relating to designation orders) for "general rate fund" there shall be substituted "general fund".

(2) In its application to England and Wales, this paragraph shall have effect for financial years beginning in or after 1990.

(3) In its application to Scotland, this paragraph shall have effect for financial years beginning in or after 1989.

SCHEDULE 13

Section 149.

REPEALS

PART I

ABOLITION OF RATES AND PRECEPTS

Chapter	Short title	Extent of repeal
1907 c. cxl.	City of London (Union of Parishes) Act 1907.	In section 11(1) the words from "and from" to "poor rate". Section 15. In section 16(1) the words "together with and as part of the general rate". Sections 17 to 19 and 21.
1963 c. 33.	London Government Act 1963.	Section 66. Section 68(1).
1967 c. 9.	General Rate Act 1967.	The whole Act.
1969 c. 19.	Decimal Currency Act 1969.	In Schedule 2, paragraph 28.
1970 c. 19.	General Rate Act 1970.	The whole Act.
1971 c. 23.	Courts Act 1971.	In Schedule 9, the entry relating to the General Rate Act 1967.
1971 c. 39.	Rating Act 1971.	Part I.
1971 c. 78.	Town and Country Planning Act 1971.	In Schedule 23, in Part II, the entries relating to the General Rate Act 1967.
1976 c. 45.	Rating (Charity Shops) Act 1976.	Section 1(1).
1979 c. 46.	Ancient Monuments and Archaeological Areas Act 1979.	In Schedule 4, paragraph 10.
1980 c. 43.	Magistrates' Courts Act 1980.	In Schedule 7, paragraphs 57 to 60.
1983 c. 2.	Representation of the People Act 1983.	Section 98. In Schedule 1, rule 22(3) of the parliamentary election rules.
1985 c. 9.	Companies Consolidation (Consequential Provisions) Act 1985.	In Schedule 2, the entry relating to the General Rate Act 1967.
1985 c. 51.	Local Government Act 1985.	Section 83(1).
1986 c. 10.	Local Government Act 1986.	Section 1. In section 12(2) the words "Part I comes into force on the day this Act is passed;".
1986 c. 44.	Gas Act 1986.	In Schedule 7, paragraph 8.

These repeals shall have effect for financial years beginning in or after 1990, but subject to any saving under section 117(8) above.

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PART II

SUPPLEMENTARY GRANTS FOR TRANSPORT PURPOSES

Chapter	Short title	Extent of repeal
1974 c. 7.	Local Government Act 1974.	Section 6(1) to (7).
1985 c. 51.	Local Government Act 1985.	Section 8(3).

These repeals shall have effect for financial years beginning in or after 1990.

PART III

LONDON REGIONAL TRANSPORT

Chapter	Short title	Extent of repeal
1984 c. 32.	London Regional Transport Act 1984.	Sections 13 and 14.

These repeals shall have effect in accordance with section 127 above and any regulations made under it.

PART IV

SCOTLAND

Chapter	Short title	Extent of repeal
1947 c. 42.	Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947.	In section 5, in subsection (3), the words "from the valuation roll or otherwise known", and the words from "Service of a notice" to the end of the subsection.
1975 c. 30.	Local Government (Scotland) Act 1975.	Schedule 1.
1978 c. 4.	Local Government (Scotland) Act 1978.	Section 2.
1980 c. 45.	Water (Scotland) Act 1980.	In Schedule 10, the entry relating to Schedule 1 to the Local Government (Scotland) Act 1975.
1981 c. 23.	Local Government (Miscellaneous Provisions) (Scotland) Act 1981.	Section 10.
1981 c. 38.	British Telecommunications Act 1981.	Section 36.

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Chapter	Short title	Extent of repeal
1982 c. 23.	Oil and Gas (Enterprise) Act 1982.	In Schedule 3, paragraph 23.
1984 c. 31.	Rating and Valuation (Amendment) (Scotland) Act 1984.	In Schedule 2, paragraph 18.
1986 c. 44.	Gas Act 1986.	In Schedule 7, paragraph 21.
1987 c. 47.	Abolition of Domestic Rates Etc. (Scotland) Act 1987.	In section 2, in subsection (3), paragraph (b), and, in subsection (5), the words "or part of a class" and the words "(3)(b) or". In section 4(1), the words "or of section 7(3) of the 1966 Act (which relates to the reduction of rates on premises occupied partly as a dwelling house by reference to the domestic element)". In section 11(11), in paragraph (c) the words "under this Act". In section 17(5), the words "in respect of any premises in his registration area". In section 20, in subsection (3), the words "and at such other places as may be prescribed" and the words from "and in relation" to the end and, in subsection (7), the words "(other than a copy made available for sale under subsection (4) above)". Section 24. Section 30(2). In Schedule 2, paragraph 4(2) and, in paragraph 7, in sub-paragraph (2), the words "Subject to sub-paragraph (4) below", and sub-paragraph (4).